



# **TRACY HILLS II COMMUNITY ASSOCIATION**

## **ARCHITECTURAL GUIDELINES**

Adopted by the Board of Directors  
X/XX/XXXX



## Section I: Introduction.

As community living relies on the mutual cooperation of all to be successful, Tracy Hills II Community Association (“**Association**”) created these architectural guidelines (“**Architectural Guidelines**”). The goal of these Architectural Guidelines is to maintain the aesthetic beauty of the Community.

Prior to making any Improvements to your Residential Lot or Residence, you must submit a complete application for architectural approval to the Architectural Review Committee (“**ARC**”). After receiving written approval from the Board or ARC and complying with applicable requirements of the City of Tracy (“**City**”) and other Governmental Agencies, you may install your Improvements or undertake your approved action. Please review these Architectural Guidelines prior to completing your application form to ensure your submittal is complete.

These Architectural Guidelines are subject to the Declaration of Covenants, Conditions and Restrictions and Establishment of Easements of Tracy Hills II (“**Declaration**”) and the Bylaws of Tracy Hills II Community Association (“**Bylaws**”). The Association has the power to revise the rules, regulations, guidelines, policies and procedures set forth in these Architectural Guidelines from time to time. If you would like to contribute suggestions for these Architectural Guidelines, please submit them to the Community’s management company (“**Management Company**”) for consideration by the Association. In the event of any conflict between these Architectural Guidelines and the Declaration or the Bylaws, the provisions of the Declaration or the Bylaws (whichever applies) shall prevail.

It is recommended that you refer to Article 7 of the Declaration in conjunction with these Architectural Guidelines to insure a complete understanding of the submittal and review process of the Association. If you have questions regarding the review process, please contact the Management Company.

As you read through these Architectural Guidelines, you will encounter initially capitalized terms. Except as otherwise defined in these Architectural Guidelines and as the context otherwise requires, those initially capitalized terms have the same meanings given them in the Declaration.

If any of the provisions of these Architectural Guidelines are held to be invalid, the remainder of the provisions shall remain in full force and effect.

### **A. Purpose; Application.**

These Architectural Guidelines are not intended to restrict individual creativity or personal preference, but rather to assure and preserve the value, desirability, attractiveness and architectural integrity of the Community. The purposes of these Architectural Guidelines are (1) to preserve the aesthetic character of the Community as established by the initial development, (2) to assure compatibility among Improvements, and (3) to preserve a high quality of appearance. The Architectural Guidelines are intended to both give specific design criteria to Owners, their consultants, or contractors in preparing drawings for architectural, landscape, and other Improvements (both for initial Improvements and for subsequent landscape and architectural Improvements after completion of initial residential construction), and to give the ARC a basis upon which to review the drawings submitted by Owners for compliance with the requirements of the Architectural Guidelines. The ARC reviews proposed Improvements for aesthetic purposes only. It is the Owner’s responsibility to follow all applicable federal, state and local building codes. Any items or issues not addressed in the Governing Documents for this Community are matters left to the discretionary judgment of the ARC or its appointed architectural review consultant acting in good faith on behalf of the best interests of the Community as a whole.

These Architectural Guidelines do not apply to any Improvements installed by Declarant or Neighborhood Builders, and neither the Board nor the ARC shall have any rights of review or approval with respect thereto.

### **B. Amendments to Architectural Guidelines.**

The Board of the Association may, at its discretion, amend these Architectural Guidelines from time to time as it deems necessary or desirable.

**C. Model Complexes.**

The construction features and landscaping provided by the Declarant at the model complexes should not be considered as an example of what may be constructed consistent with and under these Architectural Guidelines. The construction features and landscape materials located at the model complex were provided for sales and marketing purposes only. Some of the landscape and construction features at the model complex may not comply with these Architectural Guidelines and therefore may not be approved by the ARC when so submitted to the ARC in the context of a submittal of an application for ARC review ("**Application**," which also may be referred to herein and in other forms regarding the Community's design review as the "**Architectural Review Request Form**") to the ARC.

**D. Architectural Review Committee.**

If formed, the Architectural Review Committee (ARC) will consist of a minimum of 3 members and a maximum of 5 members. Additionally, 1 alternate member may be designated by the Board to act as a substitute on the ARC in the event of absence or disability of any member. If no ARC is formed by the Board of Directors, then the Board will conduct all architectural review. There will be references throughout these Architectural Guidelines to the ARC. If no ARC is formed, then such references will refer to the Board.

## Section II: Architectural Review Classifications

Prior to the commencement of any addition, alteration, construction work or other Improvements of any type on any Residential Lot, you must first submit an application to the ARC for approval of such work. Unless specifically exempted under these Architectural Guidelines, you should submit an application for approval of all Improvements in accordance with the procedures set forth below. The following is intended to describe some of the Improvements that require approval by the ARC. Even though a proposed Improvement may not be listed below, you should submit an Application for your proposed Improvement, unless the particular Improvement is explicitly exempt from architectural review by the Declaration or these Architectural Guidelines.

**A. Exemptions; Improvements Not Requiring ARC Approval.**

Certain design elements within the Community generally do not require architectural review. However, if the ARC determines that a proposed Improvement exceeds the scope of the relevant exemption, the ARC may require an Application for approval of the Improvement to be submitted. The elements that generally do not require architectural review include:

1. Potted plants in decorative pots; limited to no more than two (2) in view from common area
2. Entryway patio tables and chairs that are in good repair (i.e. no fading, damage, rips, tears, etc.);
3. U.S. flag and decorative flags, subject to the discretion of the ARC as described in the Declaration and above;
4. Satellite dishes (must follow the general requirements within these Architectural Guidelines and Applicable Laws)
5. Retractable screen doors (must match the color of adjacent trim);
6. Window coverings including draperies, blinds, shades, interior shutters, etc.;
7. Any Improvements installed by Declarant;
8. Painting of Residence exterior, if repainted the same color as the original color;
9. Patio furniture in good condition;
10. Seasonal flower planting in rear yard; and
11. Exterior security cameras (including video doorbells).

**B. Pre-Approved Improvements.**

Certain architectural Improvements may be made to an Owner's property without obtaining prior written approval from the ARC. However, an Application must be filed with the Association notifying the Association of your intent to install "Pre-Approved" Improvements prior to the commencement of ANY work. Each Owner must

ensure that all “Pre-Approved” Improvements conform to the guidelines listed for such “Pre-Approved” Improvement type, as detailed in these Architectural Guidelines prior to commencement of work. The following is a list of “Pre-Approved” Improvements:

1. Replacing garage doors, entry doors, or side yard gates to match the original door or gate installed by the Declarant. The replacement garage door, entry door, or side yard gate must match the original color, appearance and material of such door or gate;
2. Disappearing or invisible screen doors that match the existing trim of the Residence; and  
Playground equipment, greenhouses or storage sheds in the rear yard of the Residence that do not extend above the fence line of the rear or side yards.

**C. Improvements Requiring Minor Review.**

Other architectural elements will require minor review (“**Minor Review**”) by the ARC. The only difference in the ARC review process under these Architectural Guidelines for a Minor Review versus a Full Review is a reduced submittal fee for such Minor Review, as set forth below. If the ARC determines that a proposed Improvement exceeds the scope of a Minor Review, the ARC may require that an Application be submitted for a full review as otherwise provided for under these Architectural Guidelines (“**Full Review**”). All Minor Review elements are still subject to all architectural standards and guidelines, as may be set forth in these Architectural Guidelines or otherwise. Minor Review elements include:

1. Painting of exterior of Residence, if repainted with a color different from the original color;
2. Storage sheds in the rear yard of the Residence that extend above the fence line in the rear or the side yards;
3. Post-mounted lighting fixtures exceeding fence height;
4. Exterior lighting;
5. House-attached flag poles;
6. Garden art, if visible from the street or common area;
7. Lamp posts;
8. Screen doors;
9. Shutters, if altered from original design;
10. Window awnings;
11. Gutters and downspouts that match or blend with the existing trim of the Residence and/or other structure;
12. Air conditioners;
13. Screen and security doors (other than retractable screen doors);
14. Exterior painting (unless painting is identical to the original paint palette); and
15. Garage door, entry door, or side yard gate replacements that do not match the original color, appearance and material of such door or gate.

**D. Improvements Requiring Full Review.**

All other modifications to the exterior of the Residence or to the Residential Lot, including without limitation installation of landscaping and modifications to the Residence, will require Full Review from the ARC. Please see the applicable fees for a Full Review, as provided below. Improvements requiring a Full Review include, without limitation:

1. Any new or modification to existing landscaping and hardscaping, excluding seasonal flower plantings;
2. All changes to existing and newly proposed walls and fences;
3. Any Improvement that encroaches upon or is placed upon slopes;
4. Built-in barbecues, fire pits and fire rings;
5. Pools, spas, ponds, fountains, or any type of water feature;
6. Patio covers, arbors, trellis and shade structures;
7. Solar panels;

8. ADU's & JADU's;
9. Detached Accessory Structures;
10. Free-standing structures, i.e. gazebo, playhouse, greenhouse, play structure (other than playground equipment, greenhouses or storage sheds in the rear yard of the Residence that extend above the fence line in the rear or the side yards and that are subject to a Minor Review);
11. Roofs; and
12. Any Improvement that is not exempt, Pre-Approved or subject to Minor Review under these Architectural Guidelines.

**E. Landscape Theme / Plant Palette.**

The landscape theme plays a significant role in defining and supporting the Community character. Consequently, Residents must comply with the water use requirements for the City of Tracy. Residents also must comply with all plant, design, and construction restrictions in the community's Fire Protection Plan which can be found in Exhibit A.

**F. Failure to Obtain Approval.**

Failure to obtain approval by the ARC regarding any Improvement may constitute a violation of the Declaration and may require modification or removal of unauthorized works of Improvement at your expense. In addition, a building or other permit may be required by the City Building Department, or other Governmental Agencies prior to the commencement of any work. Neither the Board, nor the ARC, nor the Association assumes any responsibility for failure to obtain such permits. Also, obtaining such permits does not waive the obligation to obtain any required approval from the ARC.

**G. Submittal Fees.**

The submittal fee for a Full Review by the ARC is \$200, the submittal fee for a Minor Review is \$175. The submittal fee should be made payable to Tracy Hills II Community Association. The submittal fees are non-refundable.—

**H. Deposit.**

The Association requires a \$250 deposit to pay for the cost to repair any damage to Association Property or Association Maintenance Areas caused by the Owner's work. If the Association determines after the completion of the Improvements and via the Notice of Completion that no damage was done to Association Property or Association Maintenance Areas, the deposit will be returned to the Owner. To the extent that any damage to Association Property or Association Maintenance Areas caused by the Owner's work exceeds the amount of such deposit, the Association shall retain all rights and remedies available to it under the Declaration, the Governing Documents, or at law.

## Section III: Review and Approval Process

### A. Extent of ARC Review.

1. The ARC approval of Plans and Specifications is required for all architectural modifications and Improvements, including without limitation landscape improvements and/or modifications. The ARC may condition its approval on such changes it deems appropriate and may require submission of additional Plans and Specifications or other information or materials prior to approving or disapproving Plans and Specifications. In the event of a conflict between these Architectural Guidelines and the Declaration, the Declaration shall control.
2. Upon approval, disapproval, or in the event the ARC requests clarification or additional information, all submissions shall be distributed as follows:
  - a. **Incomplete Plans and Specifications:** Shall be returned to the Owner.
  - b. **Approved Plans and Specifications:** Two approved Plans and Specifications shall be placed in the Association files and one approved set of Plans and Specifications shall be returned to the Owner.
  - c. **Denied Plans:** A copy of disapproved Plans and Specifications or those requiring clarification or additional information or conditional approval (requiring certain items to be corrected and re-submitted for approval) shall be returned to the Owner.
3. Review and approval of completed Improvements will be made by the ARC or its designated representatives once the Owner has notified the ARC of the completion of such Improvements by filling out and submitting a Notice of Completion Form (Form E) ("**Notice of Completion**"), the form of which is attached to these Architectural Guidelines. Photographs indicating the installation of all Improvements including equipment locations, retaining wall systems, and drain inlets are required as a part of each submittal of a Notice of Completion. If the subject Improvement results in a setback issue, a photograph of the setback issue clearly showing the measurement from the Improvement to the property line or setback is required to be included with the submission. The Owner shall provide the ARC with the Notice of Completion and all required materials promptly after the Improvement's completion, but in no event later than 30 days following completion.

If it is determined that the Improvements were not installed in compliance with the Plans and Specifications approved by the ARC, the ARC shall notify the Owner in writing of such noncompliance within 30 days of the ARC's receipt of the Notice of Completion and all materials required to be submitted therewith. The Owner is required to remedy any such noncompliance within 30 days of Owner's receipt of the ARC's notice of noncompliance.

4. The ARC's review of Plans and Specifications only extends to confirming that the Plans and Specifications adhere to the Declaration and these Architectural Guidelines. By approving Plans and Specifications, neither the ARC, the Board, their designated representatives, agents or members, nor the Declarant, assume any liability or responsibility therefore, including without limitation for the architectural or engineering design of, or any defect in, any Improvement or structure constructed based upon the Owner's Plans and Specifications, irrespective of whether such Plans and Specifications include any modification suggested or required by the ARC or the Association.

### B. Right of Entry/Local Permit/Variances.

After the ARC has approved the Owner's Plans and Specifications for aesthetic purposes, the Owner must contact local Governmental Agencies to confirm that he or she is in compliance with all building and zoning regulations currently in force. In the event modifications to the Plans and Specifications previously approved by the ARC are required to comply with a government regulation or Governmental Agency requirement, the Owner shall submit

to the ARC all modifications to the Plans and Specifications. The ARC shall have the right to review and impose further conditions on such modifications which are inconsistent with the requirements imposed by the City or other Governmental Agency or modifications to the Plans and Specifications that are made in response to the requirements imposed by the City or Other Governmental Agency.

The Association may authorize variances from compliance with these Architectural Guidelines and the Declaration, including, without limitation, restrictions upon height, size, floor area or placement of structures, or similar restrictions, when circumstances such as topography, natural obstructions, hardship, aesthetic or environmental considerations may require such variances. All variance requests must be made in writing by submitting the Appeal Request (Form F), the form of which is attached to these Architectural Guidelines and are subject to the written approval of the Association. Such variances must be evidenced in writing, be signed by at least 2 members of the Board, be approved at a duly called regular meeting of the Association and shall become effective upon such execution. The granting of such variance shall not operate to waive any of the terms and provisions of these Architectural Guidelines or the Declaration for any purpose except as to the particular Residential Lot and particular provision of these Architectural Guidelines and the Declaration covered by the variance, nor shall it affect in any way the Owner's obligation to comply with all Applicable Laws affecting its use of the Residential Lot, including, without limitation, zoning ordinances and lot setback lines or requirements imposed by the City or any other Governmental Agencies. The fact that Improvements are already installed, without ARC approval or in deviation from approved Plans and Specifications, is not an appropriate basis for a request for variance and will not be a basis for approval. In such situations, the review process associated with such Improvements will be conducted as if the Improvements had not been installed.

### **C. Inspection and Correction of Work.**

1. **Right of Inspection During Course of Construction.** The ARC or its duly authorized representative may enter onto any Residential Lot during the course of construction or installation of any Improvements for the purpose of inspecting such construction and/or installation to determine whether it was performed in substantial compliance with the approved Plans and Specifications, the contractor's guidelines, as may be promulgated by the ARC or the Association, and Applicable Laws. If the ARC determines that such construction and/or installation is not being done in substantial compliance with the approved Plans and Specifications, it shall notify the Owner of such non-compliance. If the ARC determines that such construction and/or installation is not being done in substantial compliance with the guidelines or Applicable Laws, work may be stopped by the ARC and/or the City or other Governmental Agency until the work complies with the applicable standards and Applicable Laws. Copies of inspection sign-off(s) by the City shall be provided to the ARC or the Management Company within 48 hours of such request by the ARC or Association.
2. **Notice of Completion.** Upon the completion of any construction or reconstruction or the alteration or refinishing of any Improvements, or upon the completion of any other work for which approved Plans and Specifications are required, the Owner shall give written notice of completion to the ARC using the Notice of Completion Form (Form E) attached to these Architectural Guidelines and incorporated herein.
3. **Inspection.** Within 30 days after the ARC's receipt of the applicable Notice of Completion, the ARC, or its duly authorized representative, shall have the right to enter onto the Residential Lot, as provided in Section 9.7 of the Declaration, to inspect such Improvement to determine whether it was constructed, reconstructed, altered or refinished to substantial compliance with the approved Plans and Specifications. If the ARC finds that such construction, reconstruction, alteration or refinishing was not done in substantial compliance with the approved Plans and Specifications, it shall notify the Owner in writing of such non-compliance within 30 days after the ARC's receipt of the applicable Notice of Completion, specifying particulars of non-compliance, and shall require the Owner to remedy such non-compliance.

4. **Non-Compliance.** If the Owner fails to remedy non-compliance with approved Plans and Specifications within 30 days from the date of such notification, the Board, after affording such Owner Notice and Hearing, shall determine whether there is a non-compliance, and if so, the nature thereof and the estimated cost of correcting or removing the same. If non-compliance exists, the Board shall require the Owner to remedy or remove the same within a period of not more than 30 days from the date of the Board ruling. If the Owner does not comply with the Board ruling within such period or within any extension of such period as the Board, in its discretion, may grant, the Association, at its option, may either remove the non-complying Improvement or remedy the non-compliance, and the Owner shall reimburse the Association for all costs and expenses incurred in connection therewith, including without limitation attorneys' fees and costs, upon demand. If such expenses are not promptly repaid by the Owner to the Association, the Board may, after Notice and Hearing, levy a Compliance Assessment against such Owner for reimbursement.
5. **Review Oversight.** Any architectural review approval involving an oversight of the Declaration or architectural review policy does not constitute a waiver of that rule and therefore, must be corrected upon notice by the Board.
6. **Review Only Applicable to Specific Submittal.** Any approval by the ARC or Board of any Plans and Specifications shall only apply to such specific Improvements set forth in such approved Plans and Specifications and shall not act as an estoppel, waiver or any other limitation on the ARC or Board regarding any future review of a proposed Improvement, irrespective of the asserted similarity of such Improvement to an Improvement for which the ARC or Board previously approved Plans and Specifications.
7. **Variance Process.** The Board may authorize variances from compliance with any of the architectural provisions set forth herein, including, without limitation, restrictions upon height, size, floor area or placement of Improvements or other similar restrictions, when circumstances such as topography, natural obstructions, aesthetic or environmental considerations may require. Such variances must be evidenced in writing, be signed by at least 2 members of the Board, be approved at a duly called regular meeting of the Association and shall become effective upon such execution. If such variances are granted, no violation of the requirements set forth herein or in the Declaration shall be deemed to have occurred with respect to the matter for which the variance was granted. The granting of such variance shall not operate to waive any of the terms and provisions of these Architectural Guidelines or the Declaration for any purpose except as to the particular Residential Lot and particular provision of these Architectural Guidelines and the Declaration covered by the variance, nor shall it affect in any way the Owner's obligation to comply with all Applicable Laws affecting its use of the Residential Lot, including, without limitation, zoning ordinances and lot setback lines or requirements imposed by the City or any other Governmental Agencies.

**D. Review and Approval Process.**

Construction of any Improvement, including landscaping, may not begin until the ARC has approved Plans and Specifications depicting the proposed Improvement. Initial landscape Improvement plan submittals must be submitted within 90 days from close of escrow and completed within 180 days from close of escrow.

1. Other than initial landscape Improvements, Owner shall substantially commence all other construction or other modifications within 12 months from the date of approval by the ARC and such construction or other modifications shall be completed within 6 months of commencement.
2. In accordance with the Declaration, in the event of a failure to commence construction or other modifications within 12 months of issuance of the ARC's approval and thereafter diligently pursue the same to completion, the approval shall be automatically revoked, and a new approval must be obtained under the process set forth in these Architectural Guidelines before work can commence.
3. The ARC shall not review Plans and Specifications for any Improvements on a Residential Lot until escrow

has closed on such Residential Lot. The ARC has established a non-refundable architectural review fee, which is outlined on the Submittal Application Checklist and set forth above with respect to a Full Review and Minor Review. Additionally, the ARC has established a security deposit to be refunded (subject to offset as provided below) after the Notice of Completion is approved by the ARC.

4. The specified security deposit must accompany every submittal of Plans and Specifications for ARC review. The purpose of the deposit is to ensure the timely completion of the proposed Improvements and to guarantee that the Association is reimbursed for any damage to the Association Property, and/or Public Property maintained by the Association, associated with the construction of an Owner's Improvements. Funds may be withheld and offset from any return of the security deposit for any of the following reasons: 1) to repair Association Property or Association Maintenance Area damaged as a result of the Owner's construction; 2) to pay fines assessed against an Owner's account levied in response to a violation of the Declaration; or 3) to pay for legal fees associated with a violation of the Declaration by an Owner. All Plans and Specifications and any required forms should be sent to the Management Company for ARC review.
5. The ARC has 45 days from the receipt of the submittal of a "complete" (as determined by the ARC) Application submittal package, including a complete set of Plans and Specifications and any required forms, to approve or deny the submittal. The applying Owner should obtain a dated written receipt for all Plans and Specifications submitted. In order to establish the date of the delivery to the ARC, Plans and Specifications and any required forms can be delivered by certified or registered mail with return receipt requested, or a reputable overnight delivery service with package tracking. Incomplete submittals will be denied. In the event the Board or ARC fails to approve or disapprove the complete Application within 45 days after all documents and information requested by the Board or ARC have been received by it, the Owner requesting said approval may submit a written notice to the Board advising the same of its failure to act. If the Board or ARC fails to approve or disapprove any such Application within 15 days after the receipt of said notice from such Owner, said Application shall be deemed approved, provided that any Improvements conform to all conditions and restrictions contained in the Declaration and these Architectural Guidelines and are aesthetically harmonious with similar structures erected within the Community. The ARC may deny a complete Application for reasons set forth in the Declaration or these Architectural Guidelines.
6. After ARC review and approval of an Application, the Plans and Specifications may need to be approved by the City. If the City requires the ARC-approved Plans and Specifications to be changed, then the modified Plans and Specifications shall be resubmitted to the ARC, as provided in these Architectural Guidelines, for review of the ARC. No construction of Improvements shall commence until ARC approval of such Plans and Specifications. To the extent the ARC again requests modifications to the City-approved Plans and Specifications that requires further review and approval by the City, no construction of Improvements shall commence until the ARC approves City-approved Plans and Specifications.
7. When construction is completed, a "Notice of Completion" and photographs of the completed Improvements must be delivered to the ARC for its use in determining if the Improvements were constructed according to the ARC-approved Plans and Specifications; and for determining how much of the security deposit, if any, should be refunded. A representative of the ARC may also inspect the Improvements. An appointment will be made at a mutually convenient time for any such inspection of the completed Improvements, as provided above in Section III.C. (Inspection and Correction of Work).
8. Construction of Improvements must not unreasonably disturb neighbors. The use of a neighbor's yard for construction access is not permitted unless such neighbor has given written consent of such access that must include a description of the access area. The use of Association Property for construction access is not permitted, unless authorized by the Association and the applying Owner enters into a written

agreement in form and substance satisfactory to the Association indemnifying the Association for damage, claims and losses associated therewith and posts a construction deposit for repairs of any damage to Association Property. Any authorization for construction access by the Association must be in writing, signed by an authorized representative of the Association and must include a specific description of the access area. Construction materials are not permitted to be stored on the neighborhood streets. Additionally, construction and/or landscape materials are not allowed to be stored on an Owner's driveway for more than 7 consecutive days.

9. Approval of Improvements and the associated Application and Plans and Specifications by the ARC is for aesthetic purposes only. It is the applying Owner's responsibility to see that all Applicable Laws, including without limitation, building codes, are followed. It is the applying Owner's sole responsibility to obtain all permits and inspections that may be required by a Governmental Agency before commencing construction.
10. The ARC's review of Plans and Specifications only extends to confirming that the Plans and Specifications adhere to the Declaration and these Architectural Guidelines. By approving Plans and Specifications, neither the ARC, the Board of Directors, their designated representatives, agents or members, nor the Declarant, assume any liability or responsibility therefore, including without limitation for the architectural or engineering design of, or any defect in, any Improvement or structure constructed based upon the Owner's Plans and Specifications, irrespective of whether such Plans and Specifications include any modification suggested or required by the ARC or the Association.
11. Proposed Improvement Plans and Specifications must be clear, complete and prepared in accordance with applicable building codes and these Architectural Guidelines. All plans for Improvements, including without limitation, all exterior hardscape and landscape Improvements, must be submitted to the ARC for review and approval, as provided for in these Architectural Guidelines.
12. All Minor and Major Review Applications and packages submitted to the ARC must be submitted by an Owner to the Management Company and must contain the following items, the forms of which are attached to these Architectural Guidelines:
  - a. Architectural Review Application Checklist (Form B)
  - b. Architectural Review Request Form (Form C)
  - c. One copy of the Neighbor Notification Form (Form D). It is the intent of the ARC that the Owner's neighbors be notified of any Improvements which may impact the use and enjoyment of such neighbor's property. The following applicable neighbors of an Owner seeking ARC approval for Improvements should be notified:

Adjacent Neighbor: means all neighbors with adjoining property lines to the Owner.

Facing Neighbor: means the 3 neighbors most directly across the street from the Owner.

Impacted Neighbor: means all neighbors in the immediate surrounding area which would be affected by the construction of an Improvement.

Owners should show the drawings illustrating the proposed Improvements that are a part of the Plans and Specifications to neighbors and request their signatures on the Neighbor Notification Statement. **Signature of this form does not constitute neighbor approval of the Improvements, nor does it require the ARC to so approve any such Improvements or associated Plans or Specifications.** Should any neighbor be unavailable or decline to sign the form or if the Facing, Adjacent or Impacted Neighbor is the Declarant or a Guest Builder, such circumstances must be noted by the Owner on the Neighbor Notification Statement.

- d. 1 complete set of proposed Improvement Plans and Specifications. Owners must specifically depict all property lines, easements, all utilities and any Improvements, including noting any Improvements that vary from these Architectural Guidelines. Improvements not depicted on Plans and Specifications submitted to the ARC are not approved, regardless of any approval by the ARC of Plans and Specifications submitted by such Owner. Improvements located on property other than Owner's Lot, including without limitation Association Property or another Owner's Lot, are not approved, regardless of whether such Improvements are indicated or included on the Plans and Specifications approved by the ARC. Erroneous information and/or depictions included in an Application may render any approval thereof null and void. Approval of Plans and Specifications by the ARC does not mean approval of any Improvements indicated or included therein that are not in compliance with these Architectural Guidelines, unless specifically noted in the approval of the ARC.
  - e. Applicable fees and deposits.
  - f. Photographs of areas to be improved.
  - g. Signature of plan preparer that he/she has read and understands these Architectural Guidelines.
  - h. 1 signed copy of the Water Quality Management Best Management Practice Guidelines (Form G).
  - i. Any other materials required by the Association or the ARC in accordance with these Architectural Guidelines including evidence satisfactory to the Board that the proposed Improvements are acceptable under the terms of the Declaration and these Architectural Guidelines, and comply with all Applicable Laws and, as applicable, building code requirements.
13. The Management Company shall review the Application package for completeness. Applications, including without limitation included Plans and Specifications, must meet the submission standards as indicated in this Section. The ARC recommends that each Owner retain the services of a licensed professional to prepare all Improvement drawings, including without limitation Plans and Specifications. Complete Application packages are forwarded to the ARC. The ARC will not review incomplete Application submissions. Incomplete Application submissions will be returned to the applying Owner along with a copy of the Architectural Review Application Checklist noting the areas of deficiency. The 45 day review period for Applications will not commence until the ARC has acknowledged receipt of a complete Application submittal.
14. **Resubmittal Fees:** After the initial submission and 2 revisions submitted by such Owner in response to ARC comments, subsequent Application submissions, or portions thereof, for additional ARC review will require payments of an additional non-refundable submittal fees equal to the initial submittal fees payable to the Association. The ARC may also require an additional fee for any submission (whether for initial or subsequent approval) if changes are made to Plans and Specifications previously approved by the ARC.
15. **Appeal:** In the event the Plans and Specifications submitted to the ARC are disapproved, an Owner may, as provided in the Declaration, appeal in writing to the Board no later than 30 days following the final decision of disapproval by the ARC. Within 30 days following receipt of the request for appeal, the Board shall render a written decision in accordance with California Civil Code Section 4765. The decision of the Board shall be binding and final. Only the Owner who submitted the initial Application that was disapproved by the ARC may appeal such decision of the ARC

**E. Procedures for Applications – Submittal Requirements.**

The following is a step-by-step process of the ARC review and submission procedure:

**Step 1**

Owner reviews Architectural Guidelines, Sample Landscape Plan Submittal Document (attached hereto as Exhibit A) and prepares or has prepared 1 complete set of Plans and Specifications, including:

- a. Owner's name, date, address and Lot number, north arrow, scale of plans (1/8" = 1'-0" or 1/4" = 1'-0")
- b. Designer/contractor's name, address, and phone numbers.
- c. Designer/contractor's signature confirming that he/she/they have read these Architectural Guidelines and understand the requirements set forth herein.
- d. Photographs and dimensioned details as needed to describe the proposed Improvements, including a cross-section of any patio cover, description of play structures, and a photograph of any light fixture specifying the height, material, color and appearance.
- e. Photographs of front and rear elevations of the subject Residence (architectural elevations) and photographs of the subject Residence from each direction.

The speed of ARC review is based, in part, on the completeness of information that the applying Owner provides in the submitted Plans and Specifications. Inadequate information will cause the ARC to deny the application.

## **Step 2**

- a. Owner completes the Architectural Review Application Checklist (Form B) and the Architectural Review Request (Form C).

## **Step 3**

- a. Owner submits all required forms, plans not otherwise previously submitted with the Plans and Specifications, and photos to the Management Company for delivery to the ARC or its designated reviewer.
- b. Each submittal for architecture or landscape Improvements must be submitted separately with its own submittal Application, including documents and associated fees.
- c. The ARC shall not review any Application, including Plans and Specifications for any Improvements on a Residential Lot, until escrow has closed on such Residential Lot.

## **Step 4**

- a. ARC reviews the Application for completeness and consistency with these Architectural Guidelines. Incomplete Application submittals are rejected. Application submittals without the submittal of applicable fees or deposits are not approved and are returned to the Owner.
- b. The ARC approves or denies the Application submittal. Approval by the ARC may be given with conditions, the satisfaction of which are required for final approval, which must be satisfied prior to the commencement of construction of the referenced Improvements.

## **Step 5**

Owner reviews the ARC's comments and conditions, if any, and notifies the ARC if there are any questions.

## **Step 6**

If the ARC has granted final approval of the Application and Owner understands the ARC's comments, Owner submits the approved Plans and Specifications to the City for approval, if required, and obtains any necessary permits.

## **Step 7**

If the City requires the ARC-approved Plans and Specifications to be changed, then the modified Plans and Specifications shall be resubmitted to the ARC, as provided in these Architectural

Guidelines, for review by the ARC. To the extent the ARC again requests modifications to the City-approved Plans and Specifications that requires further review and approval by the City, no construction of Improvements shall commence until the ARC approves City-approved Plans and Specifications

#### **Step 8**

All construction must be consistent with the approved Plans and Specifications. All deviations from ARC-approved Plans and Specifications must be reviewed and approved in writing by the ARC prior to construction thereof.

#### **Step 9**

The ARC reviews the photographs provided by Owner with the Notice of Completion and determines if the Improvements were constructed according to the ARC-approved Plans and Specifications and then, following approval of the Notice of Completion, refunds the construction deposit, minus any costs to repair Association Property that was damaged during the construction and any assessments of fines outstanding against an Owner's account associated with the construction and legal fees, if any. Construction of any Improvement prior to receipt of ARC approval or deviation from approved Plans and Specifications is a violation of the Declaration and these Architectural Guidelines, and in such event the Owner shall have the obligations and the Board shall the remedies set forth in Section III.C. (Inspection and Correction of Work) of these Architectural Guidelines.

#### **F. Important Notes.**

- Refer to the "*New Owner Timeline*" to assist you with deadline dates.
- Read these Architectural Review Guidelines carefully before submitting your Application and Plans and Specifications.
- The ARC may place conditions and/or limitations on your approval, which must be satisfied prior to commencing construction of any Improvements and followed.

#### **G. Architectural Improvements / Submittal Documents and Plans and Specifications.**

1. Plans and Specifications: Must graphically illustrate (at not less than 1/8" = 1' - 0") all building/architectural existing and proposed Improvements to Residences within the Community, to include, but not limited to, the following:
2. Include appropriate site plan, floor plan(s) and roof plan.
3. Clearly indicate setbacks from the property line to building Improvements.
4. Fully dimension existing and proposed plans.
5. Site Photographs: Include site photos of the front and rear elevations of the Residence and Residential Lot; of the rear yard and each side yard; and of all surrounding conditions adjacent to the location of the proposed Improvements, including neighboring Residential Lots and Association Property. Photos must be in color and may be generated from a computer, but must be at least 4 inches x 6 inches in size.
6. Plot Plan: (at not less than 1/8" = 1' - 0") Owner has the obligation to ensure that the submitted plot plan does all of the following. Any ARC approval of an Application or Plans and Specifications given without the following information depicted on the Plans and Specifications is null and void:
7. Shows all lot lines accurately. Locates and identifies all existing and proposed buildings, structures, fences, walls, pilasters, gates, sidewalks and other Improvements. Indicate all required setbacks, easements, streets, or rights of way and top and toe of slopes.
8. Shows all dimensions of work to be considered; shows distances between existing and proposed work and privacy wall, perimeter wall or property lines, setback lines and slopes.
9. Shows all existing and proposed easements located upon Owner's Residential Lot.
10. Show, by spot elevations, all existing vertical gradients.
11. Elevations: Depict elevations of all proposed architectural Improvements in relationship to the existing

building, to include, but not limited to, the following:

12. Heights of any proposed Improvements (may not exceed the height of existing structure).
13. Exterior finishes and materials.
14. Architectural Details: Provide all architectural details of the exterior Residence fenestration. Details must match existing or be architecturally compatible based on the architectural style.
15. Drawings shall include specifications of materials, sizes, color and finishes. For alterations or additions, note if finish and color is to match existing finish and color. Provide samples of all proposed materials, finishes and colors.

#### **H. Landscape Site Improvements / Submittal Documents and Plans and Specifications.**

1. **Site Photographs:** Include site photos of the front and rear elevations of the Residence and Residential Lot; of the rear yard and each side yard; and of all surrounding conditions adjacent to the location of the proposed Improvements, including neighboring Residential Lots and Association Property. Photos must be in color and may be generated from a computer, but must be at least 4 inches x 6 inches in size.
2. **Landscape Construction Plans and Design Details: (at not less than 1/8" = 1' - 0")**
  - a. The plan must graphically illustrate all hardscape and other Improvements including but not limited to; fences, walls, pilasters, gates, trellises, arbors, patio covers, spas, barbecues, fireplaces, fire pits, fountains, garden art, statuary, mechanical equipment and storage enclosures.
  - b. Design details/elevations of all vertical hardscape Improvements in the side and rear yard. Include specifications of materials, sizes, heights, color and finishes.
  - c. Indicate the height for all hardscape features in relation to the adjacent ground elevations (existing grade), and the finish floor elevation.
  - d. List all hardscape materials, colors and finishes.
  - e. Clearly indicate proposed setbacks from the perimeter walls and adjoining Residences.
  - f. Locate and identify all existing and new drain inlets. Note on the plan that all new inlets shall be connected to the existing system provided by the Declarant.
  - g. Provide a complete written description of the proposed irrigation system on the plan or provide a separate irrigation plan, including location of new drains and drain pipe routing.
  - h. Locate and identify all trees, shrubs, groundcovers, and their proposed installed plant container size. A separate planting plan is encouraged but not required. Include the following note on the plan: "All existing Association Property landscape shall be protected in place during all phases of construction."
  - i. Locate and identify all proposed light fixtures. Include the following note on the plan: "No exterior lighting shall be placed or maintained upon any Residential Lot so as to cause an unreasonable glare or illumination upon property outside such Residential Lot."

#### **I. Construction Drawings & Specifications.**

Construction drawings and specifications shall be required per local agency requirements. ARC review and approval of design development shall not be considered to act in lieu of required construction/building permit drawings. Any revisions required by any Governmental Agencies that conflict with these Architectural Guidelines shall be resubmitted to the ARC for review and approval. Owner is not required to submit working drawings to the ARC; however, it is the Owner's responsibility that construction drawings and final implementation of Improvements are in conformance with ARC-approved design development plans. Construction drawings shall be resubmitted to the ARC if they deviate from the ARC-approved preliminary plans.

#### **J. Conditions of Approval.**

Each Owner must comply with the "General Conditions of Approval" contained in Section IV of these Architectural Guidelines in connection with the construction and maintenance of all Improvements approved by the ARC for such Owner's Residential Lot.

## **Section IV: Architectural Guidelines**

### **A. Architecture.**

All architectural Improvements must be compatible with the original architecture of the Community. Below are guidelines for building alterations, building materials, colors, and forms which are expressive of the Community's architectural character, and which will be used by the ARC in reviewing Plans and Specifications for compatibility with the original design of the Community and enforcing these Architectural Guidelines.

**COMPLIANCE WITH THESE ARCHITECTURAL GUIDELINES SHALL NOT BE IN LIEU OF ARC APPROVAL. RATHER, THESE ARCHITECTURAL GUIDELINES ARE INTENDED TO ASSIST THE OWNER IN THE PREPARATION OF PLANS THAT ARE MORE LIKELY TO BE APPROVED. ULTIMATELY, COMPLIANCE WITH THESE ARCHITECTURAL GUIDELINES SHALL BE DETERMINED BY THE ARC AS PART OF THE REVIEW AND APPROVAL PROCESS. THESE ARCHITECTURAL GUIDELINES MAY BE MODIFIED FROM TIME TO TIME AS SET FORTH IN THE DECLARATION.**

**OWNER IS RESPONSIBLE TO MAKE SURE THE CURRENT ADOPTED ARCHITECTURAL GUIDELINES ARE USED IN PREPARING PLANS AND SPECIFICATIONS.**

#### **1. Exterior Improvements.**

Improvements including, but not limited to, any of the following, are not permitted:

- a. Roof modifications (except as applicable to room additions)
- b. Accessory buildings in the front yard

#### **2. Garages and Garage Doors.**

- a. Additional garages may not be added.
- b. Replacements or changes to garage doors must match the design, materials, finish and color of the existing garage door or painted or stained a color that is compatible with the exterior color scheme of the Residence.
- c. Treatments that draw attention to the garage door, such as mirrored glass or ornate decoration on or around the garage door, are not permitted.
- d. Garages at all times shall be maintained in such a manner to be capable of accommodating full sized automobiles to the capacity to which it was intended.

#### **3. Detached Accessory Structures:**

- a. Accessory structures are not permitted in the front yard area.
- b. An accessory structure shall not exceed one story or 14 feet in height or occupy more than 25% of a required rear yard plus 55% of the buildable area.
- c. Must be at least 5 feet from any residential house and 3 feet from the side or rear property line.
- d. Swimming pools, spas, and jacuzzis must be at least 3 feet from the side or rear property line.
- e. Ground mounted air conditioners, swimming pool pumps, heaters, filters, and fans may be located in a required side or rear yard provided that such structures or equipment do not exceed a height of 54 inches measured from the base of the unit. Such equipment shall be screened from adjacent property or street by a solid fence or wall.
- f. Accessory structures and guest houses may only be permitted on a Residential Lot on which there is one owner-occupied primary dwelling.

#### **4. ADU's**

The purpose of this section is to expand the variety of housing opportunities within the Lot, is available. In doing so, it is the intent of these regulations to ensure that Casita units are located in areas where services are adequate to support them and to ensure that Casita units are maintained as a compatible and integral part of the community in which they are located.

Casita units shall comply with all development standards of the City. Casita's must conform to the standards set below:

- a. An ADU may only be permitted on a Residential Lot on which there is one owner occupied single-family detached dwelling (primary dwelling).
- b. No more than one ADU may be permitted on any parcel or lot.
- c. ADU shall have adequate water supply pursuant to specifications of the Building and Safety Code and the City of Tracy.
- d. The ADU may be either attached or detached from the primary dwelling.
- e. The total area of floor space for either an attached or detached ADU shall not exceed 1,200 square feet.
- f. The driveway serving the primary dwelling must be used to serve the ADU unit. Separate utility meters serving the ADU shall not be permitted.
- g. ADU's attached to the primary dwelling unit shall comply with the development standards for the Specific Plan.
- h. Detached ADU's shall not exceed one story or 14 feet in height and may not occupy more than 25% of the required rear yard plus 55% of the buildable area provided the total building coverage allowed in the Community is not exceeded.
- i. Detached ADU's shall not be located within any side or rear yard setback area.
- j. The ADU shall be architecturally compatible with the design of the main dwelling and shall incorporate the same colors and materials of the primary unit.
- k. The ADU must have a bathroom and/ or kitchen plumbing and fixtures.
- l. Detached Casita ADU's must be a minimum of 10 feet from any front property line, and are not allowed in any side or rear setback area.

5. **Exterior Building Wall Materials.**

- a. Changes and/or modifications to a Residence's exterior wall and veneer finishes, materials and colors are not permitted.
- b. Repair and maintenance to a Residence's exterior walls must match existing exterior walls.

6. **Windows and Doors.**

- a. The size, location, material, and color of new or replacement windows and doors shall be compatible with the windows and doors of the existing Residence, with regard to style, frame, glazing color, divided lights, and other structural and design components.
- b. Glass tinting or shading must be compatible with the existing treatment. Mirrored glass, reflective glass film and plastic roll-up shades are not permitted.
- c. New accent windows and doors, such as greenhouse windows or French doors, must be compatible with the color and design of the existing Residence.
- d. Decorative front doors must be compatible with the color and design of the existing Residence.

7. **Skylights.**

- a. Skylights must be designed as an integral part of the roof. The form, location and color must be compatible with and relate to the Residence.
- b. Owners must use bronze-color glass (white or clear glass are not permitted).
- c. Bubble skylights are not permitted.

8. **Walls, General / Courtyard Walls / Wall Extensions / Fences / Gates**

Proposed alterations or additions to existing walls must be approved, in writing, by the ARC prior to work commencing. There shall be no attachments, of any kind, to any property line wall. However, an exception may, subject to the review and discretion of the ARC, be allowed for the installation of an interior mounted trellis. All replacement walls must match the dimensions, material, color, etc. as was originally installed by the Declarant. Any deviation must have prior written approval from the ARC. All

fences must be at least 4' from the inside edge of sidewalks on corner lots. In addition, the fence cannot extend past the face of the front of the residence.

- a. **Front Sidewall Extensions:** Wall extensions will be considered by the ARC on a case-by-case basis, depending on the location of the wall as it relates to the adjacent neighbor and how well it will complement the overall aesthetics of the property and neighborhood as a whole. However, no fence can extend further than the front of the house.
- b. **Wall Waterproofing:** All walls must be waterproofed with "Thoroseal" or its equivalent when soil is mounded against wall above the original grade as a landscaping feature. The same requirement applies when raised planters are constructed against walls.
- c. **Gates:** All proposed gates will be considered by the ARC on a case-by-case basis, depending on the overall design and how well the gate will complement the intended aesthetic theme of the property and neighborhood as a whole. Gates generally shall not exceed the height of the wall or approved metal fence surrounding it. If the gate has an arch (or design), the peak of the arch (or design) can be a maximum of 6 inches above the wall or approved metal fence. These gates typically lead to the rear yard and do not include an archway. All gates shall generally be metal or wrought iron. In order to receive ARC approval, a picture or sketch is required including the pattern, color and dimensions of the proposed gate. The color shall match the color of the stucco, or the house trim. Black may only be used on metal or wrought iron. The ARC may consider a gate material other than metal or wrought iron. Gate privacy screens must be made of steel (metal) mesh painted to match the color of the gate (this provision is not intended to apply to security screen doors). Exceptions will be considered by the ARC for lots that have an existing archway leading to a courtyard. Courtyard archway gates may use decorative privacy glass, or decorative privacy Plexiglas, treated to prevent discoloration.

9. **Screen Doors.**

- a. All screen doors must be approved by the ARC prior to installation, with the exception of a retractable screen door (frame must match trim color of the Residence). Screen doors are not allowed to be installed on the front or main entry of the Residence, unless it is a retractable type screen door. Screen doors are allowed on the side garage entry door. All screen doors must be compatible with the trim color of the Residence. Owner shall include a color photograph and the screen door specifications in the Application package.

10. **Window Coverings and Treatments.**

- a. Window coverings may consist of curtains, draperies, blinds, shades or shutters. Aluminum foils or other reflective materials, bed sheets, papers, and the like may not be applied to windows, at any time.
- b. Exterior wrought iron or metal bars are prohibited.
- c. Drapes, curtains, shutters, blinds and other window materials must be kept in good condition. The Association can compel an Owner to replace shabby and torn materials visible from the exterior of the Residence.

11. **Awnings and Shades.**

- a. Awnings and exterior shades may be approved if they reinforce the architectural style and design of the existing Residence. Actual material samples are required for ARC review (reviewed on a case-by-case basis by the ARC).
- b. The size, location, and form of awnings and exterior shades must be in scale with the window and should not dominate the architecture of the Residence.
- c. Awnings proposed on front elevations or on side elevations at corner Residential Lots will be considered relative to their compatibility with the architecture of the Residence and the

Community.

- d. Awnings are not considered appropriate on certain elevation styles and on certain accent windows.
- e. Temporary sun shades attached to the vertical face of the Residence, patio cover, or gazebo, such as rolls of bamboo, fiberglass, or reed, are not permitted.

12. **Exterior Colors and Finishes.**

- a. Color is intended to act as a primary theme-conveying element and be reflective of the architectural styles.
- b. Exterior colors of buildings shall match those applied by the original Declarant and/or comply with the color palette approved by the Board and available from the Association.
- c. For any proposed modification of exterior material and any proposed modification of exterior color of the Residence, the following must be included:
  - i. A color sample board and an elevation sheet with color chips attached clearly noting where colors are to be used.
  - ii. All samples must be identified with manufacturer's name, color and/or number.
  - iii. Color photographs of properties located on each adjoining side of the Residence including those across the street that face the Residence with the proposed color change.

13. **Reflective Finishes.**

No highly reflective finishes shall be used on exterior surfaces (other than surfaces of hardware fixtures), including the exterior surfaces of any of the following: roofs, all projections above roofs, doors, trim, pipes, solar panels, or equipment.

14. **Solar Panels and Mechanical Devices.**

Replacement or expansion of Solar Energy Systems installed by Declarant, if any, or if Declarant has not installed a Solar Energy System on a Residence, the installation of a new Solar Energy System by Owner, may be installed within the Community subject to prior written approval from the ARC.

- a. **Submittal Requirements.** All Applications including Solar Energy Systems shall indicate within the applicable Plans and Specifications the location of any Solar Energy System panels on the roof of the Residence. As part of its review, the ARC will evaluate the appearance of the proposed Solar Energy System to ensure that said equipment and its proposed installation comply with the following:
  - ii. Integrated into the roof design of the building and flush with the existing roof slope, and hidden from view when possible.
  - iii. Solar panels located on top of roofs must conform with all Governmental Agency and fire authority regulations. In addition, to maintain the aesthetics and integrity of the roof, the panels must be setback a minimum of 2 feet from the outside perimeter of the roof.
  - iv. Solar collectors must be non-reflective in nature and frames must be colored to complement the roof, such as black or dark bronze in color.
  - v. Natural aluminum frames are prohibited.
  - vi. Support solar equipment shall be enclosed and screened from view.
  - vii. All mechanical equipment exposed to the exterior shall be located in a manner that minimizes visual impact.
- b. **Liability.** Neither the ARC nor the Board shall be liable to the Owner of a Solar Energy System for any approval or disapproval by the ARC or Board of any other Owner's Application for the installation of particular trees or shrubs on a Residential Lot adjacent to a Solar Energy System. The ARC and the Board shall not be responsible for any damage, loss or prejudice suffered or claimed on account of the approval or disapproval of the planting of any tree or shrub on another Residential Lot that blocks, interferes with, adversely impacts, damages, or otherwise renders a Solar Energy System less efficient than if the tree or shrub had not been approved by the Board or ARC. Owners

who plant trees or shrubs on their Residential Lots that are adjacent to a residence with a Solar Energy System shall be responsible for compliance with all Applicable Laws, including without limitation the Solar Shade Control Act (California Public Resources Code Section 25982).

## **16. Antennae and Satellite Dishes.**

These Architectural Guidelines are not intended in any way to impair the installation, maintenance or use of Covered Antenna (as defined below). These guidelines regarding Covered Antennas are not a part of a pre-approval submittal process as described in Article 8.2.9 of the Declaration; however, the ARC has the right to ensure that any Covered Antenna installed by an Owner is installed in accordance with the following guidelines.

### **a. Definitions.**

- i. **"Antenna"** - any device used for the transmission and receipt of video or audio services, including direct broadcast satellite (DBS), television broadcast, and multipoint distribution service (MDS), including antennas that have limited transmission capability which are designed to aid the user in selecting or using video programming. A mast, cabling, supports, guy wires, conduits, wiring, fasteners, or other accessories necessary for the proper installation, maintenance, and use of a reception antenna shall be considered part of the antenna.
- ii. **"Covered Antenna"** - an Antenna covered by the FCC's Over-the-Air Reception Devices (OTARD) Rule.

### **b. Antenna Size and Type:** Owners may install the following Covered Antennas in accordance with the architectural review process set forth in the Declaration and these Architectural Guidelines, provided that such rules do not unreasonably delay Covered Antenna installation, maintenance, or use; unreasonably increase the cost of Covered Antenna installation, maintenance, or use; or preclude reception of acceptable-quality signals from Covered Antennas.

- i. Antennas designed to receive Direct Broadcast Satellite (DBS) service that are 39.4 inches (1 meter) or less in diameter.
- ii. Antennas designed to receive Multipoint Distribution Service (MDS) that are 39.4 inches (1 meter) or less in diameter.
- iii. Antennas designed to receive television broadcast signals, regardless of size.

### **c. Location.**

- i. Covered Antennas shall not encroach upon, or overhang into, any Association Property or any other Residential Lot.
- ii. Covered Antennas shall be located in a place shielded from view from other Residences, from streets, or from outside the Community to the maximum extent possible. If Covered Antennas can receive acceptable-quality signals from more than one location, then Covered Antennas must be located in the least visible preferred location.
- iii. If an installation cannot comply with the foregoing provisions because the installation would cause unreasonably delay, unreasonably increase the cost, or preclude reception of acceptable-quality signals, the Owner installing the Covered Antenna must ensure that the installation location is as close to a conforming location as possible. The Association may request an explanation of why the nonconforming location is necessary.

### **d. Installation and Removal.**

- i. Covered Antennas shall be neither larger nor installed higher than is absolutely necessary for reception of an acceptable-quality signal.
- ii. Covered Antenna Camouflaging
  - Provided that paint will not degrade the signal, Covered Antennas shall be neutral in

color or painted to match the color of the structure (wall, railing) near where they are installed.

- Covered Antennas installed on the ground and visible from the street or other Owners' Residences must be camouflaged, provided that such camouflage will not degrade the signal. A Covered Antenna preferably should be camouflaged by existing landscaping or screening. If existing landscaping will not adequately camouflage the Covered Antenna, then the Association may require additional camouflage. If the camouflaging will cause an unreasonable cost increase, then the Association has the option to pay for additional camouflaging and require its installation.
  - Exterior Covered Antenna wiring shall be installed so as to be minimally visible and blend into the material to which it is attached.
- e. **Safety.** Because the Association has a legitimate safety interest in preventing personal injury or property damage occurring due to improper or unsafe Covered Antenna installation, Owners must follow the following safety guidelines:
- i. Covered Antennas shall be installed and secured in a manner that complies with all Applicable Laws, including applicable codes, safety ordinances, City and state laws and regulations, and manufacturer's instructions. If an Owner must obtain a permit in compliance with Applicable Laws, then the Owner shall provide a copy of that permit to the Association before installation. The purpose of this rule is to ensure that Covered Antennas are installed safely and securely, and to minimize the possibility of detachment and resulting personal injury or property damage.
  - ii. Unless the above-cited Applicable Laws, codes, safety ordinances, laws, and regulations require a greater separation, Covered Antennas shall not be placed within 5 feet of electrical power lines (above-ground or buried) and in no event shall Covered Antennas be placed where they may come into contact with electrical power lines. The purpose of this requirement is to prevent injury or damage resulting from Covered Antenna contact with power lines.
  - iii. Covered Antennas shall not obstruct access to or exit from any doorway or window of a Residence, walkway, ingress or egress, electrical service equipment, water shut-off valves, or any other areas necessary for the safe operation of the Community. The purpose of this requirement is to ensure the safe ingress and egress of Owners, Invitees, guests and Management Company personnel.
  - iv. To prevent electrical and fire damage, Covered Antennas shall be permanently and effectively grounded.
  - v. To prevent detachment during a storm, Covered Antennas shall be installed to withstand wind speeds of at least 70 mph.

#### **17. Exterior Lighting.**

- a. New exterior light fixtures, such as decorative wall fixtures, must be compatible with the design of the Residence. They must be simple in design and color and should be compatible with the existing light fixtures.
- b. Pathway solar lighting is acceptable but must be approved by the Architectural Committee.
- c. For specific landscape lighting requirements refer to Section IV.F.

#### **B. Landscape.**

The landscape plays a significant role in establishing the overall Community character and value. The landscape objective for the Community is to create a cohesive community framework. The desire is to ensure that the landscape and hardscape improvements (i) are of the same high quality as the Residences and Association Property, and (ii) aesthetically and horticulturally compatible to the design of the Community.

The Declarant has installed the Association Property landscaping and the Association is responsible for the maintenance thereof. With respect to any landscaping to be installed by an Owner on a Residence, the following provisions shall apply:

1. **Landscape Standards.**

- a. Plans for side and rear yard landscaping must be submitted to the ARC at the same time for initial landscaping review.
- b. Proposed changes to the front yard landscape require prior approval from the Architectural Committee.
- c. No changes are permitted to the parkways in front of the lots.
- d. All plans must be in accordance with the community's Fire Protection Plan.
- e. Plants must not encroach on walkways or Public Streets. Handicap access features at sidewalks and driveways shall not be modified or removed.
- f. Irrigation lines must be subterranean unless they are "drip" systems. The irrigation system shall be designed and installed to irrigate different landscape zones (e.g., sun, shade, lawn and shrubs).
- g. Appropriate drainage shall be installed so as to be directed to the street, and to prevent run-off onto adjacent Residential Lots, Association Property or other areas. There should be a slope / drainage of 2% away from the building, and water should be collected in a landscape drainage system.
- h. Sprinklers must be adjusted so as to spray landscaped areas only. Spray irrigation heads shall not spray on walls of Residences, block walls or fences. Irrigation controllers shall be set to apply the correct amount of irrigation and avoid runoff to adjacent lots, including Residential Lots and Association Property.
- i. Applications for landscape must include:
  - i. Listing of plant material and size, including height of trees at maturity. Trees should be kept at least 5 feet from property lines and have non-invasive and non-surface root systems.
  - ii. Site plan showing house (plot plan) and location of the proposed landscaping (plant materials) shall be included in the Application.
  - iii. Non-retaining planters and walls shall not exceed 2 feet in height.
  - iv. Hardscape, such as concrete walkways, pavers and patios, decks, patio covers with elevations (side views) and construction detail shall be indicated in the Application's Plans and Specifications. Colors of decorative concrete, brick, stone, or block must be specified. Earth tone, neutral colors are required. No vivid colors are allowed. Walkways must be a minimum of 4' wide.
  - v. Drainage plan, including location of drain inlets, water flow direction, and outlets must be identified and included in the Application's Plans and Specifications. All water shall be directed away from the Residence.

2. **Grading.**

- a. The grade adjacent to an existing Residence must remain at existing grade for 12 inches clear of the wall.
- b. The grade may not be lowered or raised in excess of 8 inches within the Residential Lot.

3. **Drainage.**

- a. There shall be no interference with the established drainage patterns, level, or grade over any Residential Lot, or Association Property unless an adequate alternative provision is made for proper drainage and written approval is obtained from the ARC.
- b. Failure to make adequate provisions for proper drainage in the event it is necessary to change the established drainage over Owner's Residential Lot could cause major problems and result in imminent danger to person(s) or property, including other residences.
- c. If you alter drainage, or if you install Improvements in such a way as to alter the drainage, you, not the Association, will be responsible for any resulting consequences, claims, losses or damages in any way related to drainage.

- d. The drainage pattern established with the original grading of the Residential Lot must be maintained. No drainage will be permitted onto Association Property slopes, landscaping, or adjacent lots.
- e. All Residential Lots' construction/hardscape surfaces shall have positive surface drainage of one percent (1%) minimum.
- f. All landscape areas shall have positive surface drainage of two percent (2%) minimum.
- g. All surface drainage shall be directed away from building walls, top of slopes and perimeter walls.
- h. All on Residential Lot drainage features and systems must adhere to all applicable codes.
- i. Modifications cannot allow for the sheet flow of water to adjacent lots.

4. **Flatwork.**

- a. All paving materials must be compatible with the Residence architectural style and exterior elevation materials.
- b. Proposed driveway replacement materials must be consistent with the Residence architecture and must be submitted to the ARC for review.
- c. Declarant provided entry walkway may be replaced with an enhanced paving material that is consistent with the Residence architecture. Any pavers must be set in sand to support stability.

5. **Walls, Fences and Gates.**

- a. Fence style, materials, and finished color must be compatible with the Community.
- b. Placement of the fence and support structures may not interfere with adjacent Association sprinkler systems, nor shall fences be constructed over irrigation lines.
- c. Structural framing or an unfinished side or a fence varying from existing fence standards shall not be exposed to any public street, sidewalk, walkway or neighboring lot.
- d. Material for side yard fencing will be given special consideration depending on its exposure to the neighborhood.
- e. Fences are required to surround pool and spa areas. Minimum height requirements are established by Applicable Laws and government codes.
- f. Under no circumstances shall any Owner remove or alter in any way walls and fences that have been erected by the Declarant without the prior written consent of the ARC.
- g. At no time shall an Owner attach to, affix, or hang any item on or over any such fences or walls without ARC approval.
- h. Existing masonry pilasters, walls and gates shall not be removed, reconstructed or modified as to structure, finish or color, without prior ARC approval.
- i. Retaining walls are subject to the approval of the ARC. Such approval shall be based on the aesthetic appearance of the wall only and shall not be deemed to warrant or approve in any manner the engineering or structural design of the wall. The maximum permitted height of retaining walls is 2 feet and retaining walls are not permitted to be located adjacent to the existing Residence.
- j. At raised planter wall (retaining wall) conditions, soil level may not be raised against existing perimeter walls without the addition of a 4-inch-wide retaining flash wall, as the perimeter walls are not structurally designed for retaining conditions. A retaining wall must be 18 inches clear of existing perimeter walls and not exceed 2 feet in height.
- k. All walls and pilasters located in the front yard area shall be set back 3 feet minimum from the back of sidewalk and accented with plant material.

6. **Decks, Patio Structures, Sun Shades and Gazebos.**

- a. Materials shall be harmonious with applicant's Residence.
- b. In designing the deck or patio, a minimum of intrusion upon neighbors' privacy should be given every possible consideration.
- c. Adequate drainage must be installed to prevent standing water and run-off onto adjacent properties. Drainage must be directed to the street.

- d. Wooden decks are to be stained and/or sealed to preserve natural color or painted to match existing Residence trim.
- e. Railings are acceptable.
- f. Application for a patio or deck must include the following information:
  - i. Site plans indicating location of patio or deck in relation to existing house.
  - ii. Listing of materials colors and finishes.
  - iii. Drainage provisions and flow or run-off
  - iv. Dimensions
  - v. Elevation drawings
- g. Patio covers should not exceed 10 feet in height for a flat type structure, or 12 feet in height for a sloped pitched structure.
- h. Covered or unenclosed patio covers and trellises attached to the main structure may be located no closer than 3 feet to a side yard, 5 feet from the rear property line and 7 feet from the rear property line when adjacent to a street when the entire structure is in the rear yard.
- i. The patio or trellis shall not cover more than 60% of the rear yard.
- j. Metal patio covers are subject to the approval of the ARC, which must be obtained prior to installation.
- k. Unacceptable construction materials for structures in this section shall include the following:
  - i. Corrugated plastic
  - ii. Corrugated fiberglass
  - iii. Plastic webbing, split bamboo, reed or straw-like materials
  - iv. Asphalt
  - v. Metal support posts for patio covers.
  - vi. The above unacceptable materials are not all inclusive.
- l. Application for patio covers must include:
  - i. Location of cover in relation to house
  - ii. Materials and color
  - iii. Dimensions
  - iv. Elevation drawings
  - v. Open wood beam structures shall be painted a color that is compatible with the Residence color.
  - vi. All vertical support structures or columns, fascia, lattice, trim, beams, etc. must be setback a minimum of 3 feet from side yard, 5 feet from the rear property line and 7 feet from the rear property line when adjacent to a street when the entire structure is located in the rear yard. All measurements are calculated at the outermost part of the structure, including the overhang, to perimeter walls / property lines. Substantial landscape screening is required.
  - vii. Columns may be masonry or wood. Wood columns must appear to be substantial, 6 inches x 6 inches minimum.
  - viii. Generally, the square footage of patio covers will be reviewed in relation with the square footage of the yard of the Residential Lot. The intent is to retain an attractive Community appearance with a balance of buildings and open space. Some yards are not conducive to patio cover construction and will be considered accordingly. All structures will be reviewed on a case-by-case basis by the ARC. The following conditions may be considered:
    - Visibility of the structure from the neighboring lot and Association Property.
    - Screening of the structure with plant material.
    - The balance of hardscape to softscape.
    - The size of structure in relation to the size of the yard.

7. **Freestanding Vine Trellises.**

- a. Freestanding vine trellises shall not exceed 8 feet in height and shall have a 1 foot planting area between the posts and the perimeter walls for vine planting. The length and width shall be reviewed on a case-by-case basis.
- b. Vine trellises shall be ornamental iron or wood construction.
- c. The construction detail and elevation is required for ARC review. Note on the detail that the wood members must be stained/painted to match the Residence or the architectural eaves of the Residence. Ornamental iron must be finished a dark color.
- d. Prefabricated vine trellises will be considered. The Application should include a catalog cut or photograph of such trellises.
- e. Espaliers must be setback 1 inch from perimeter walls and not exceed the height of the perimeter wall.

8. **Fountains / Garden Art / Statuary.**

- a. Fountains that are consistent with the overall Community theme should be considered as an accent feature to the main Residence. Where those elements are visible from the street and/or Association Property, their size and scale should be consistent with other proposed hardscape elements. Statuary and sculpture elements associated with fountains shall not exceed the height of adjacent privacy walls and fences and should be softened with plant materials.
- b. The subject matter of statuary and sculpture elements associated with fountains shall be appropriate for their residential context. Elements that could reasonably be considered to be offensive are not permitted.
- c. The color of fountains should complement the primary Residence structure. Bright colors and reflective surfaces are not permitted
- d. The quality and quantity of fountains, statuary and sculpture elements are subject to review and approval of the ARC.
- e. Fountains located in the rear yard of a Residential Lot shall not exceed the adjacent fence or wall height, must not block a view and must be set back a minimum of 5 feet from the back of the sidewalk and/or side property lines. Fountains located in the front yard of a Residential Lot shall not exceed 2 feet in height and must be set back a minimum of 5 feet from the back of the sidewalk and/or side property lines. Fountains are more appropriately located close to the primary Residence and are not permitted to be placed in a location where they detract from the overall appearance of the street.
- f. Built-in water features and Freestanding (self-contained units) shall be set back a minimum of 5 feet from perimeter walls or the adjacent Residence wall.

9. **Fireplaces, Firepits, Exterior Fires.**

- a. If the fireplace (including the spark arrestor) extends above the adjacent wall or fence line, a setback equal or greater than the height of the fireplace is required and the structure shall be adequately screened from view by other Residential Lots and Association Property. Depending on the Residential Lot configuration in relation to neighboring Residential Lots and Association Property, the setback can be lowered, provided that the screening materials can be installed and appropriately maintained in the space. The minimum setback for barbecues, fireplaces and fire pits is 5 feet or the City required setback standards, whichever is less.
- b. Freestanding outdoor fireplace chimneys shall not exceed 8 feet in maximum height. The fireplace must be set back 3 feet from perimeter walls to provide a planting area for screening.
- c. Fireplace chimneys attached to patio covers are not permitted.
- d. Exterior fire pits, barbecues and fireplaces shall be limited to gas burning type with an electronic starter. Fireplaces must be designed to use natural gas. Wood burning fireplaces are not permitted.
- e. Fire pits shall be setback 3 feet from perimeter walls and must be natural gas.
- f. The structures shall be screened with landscaping.
- g. The fireplace must match the architectural style of the Residence.
- h. The back of the fireplace structure must match the Residence.

- i. Owner shall obtain any permits required by the City or other Governmental Agency for any fire pits, barbecues and fireplaces.
- j. No fire pits, barbecues, fireplaces, barbecue islands, permanent barbecue structures or outdoor kitchens shall be located in the front yard of a Residential Lot.

10. **Ponds.**

- a. Applications for proposed decorative ponds must be submitted with the location, dimensions, and a picture or diagram including the intended appearance, material and color. A piping diagram of the re-circulation system and drainage method must be included. Ponds shall not be constructed on a property line or attached to any common wall or fence.

11. **Barbecue Islands and Outdoor Kitchens.**

- a. Barbecue islands and other types of permanent barbecue structures and outdoor kitchens shall maintain a minimum setback of 5 feet between the burning element and the property line, provided the structure is not visible above the adjacent wall or fence.
- b. If the structure is visible above the wall or fence line, it shall be screened with landscaping.
- c. Owner shall obtain any permits required by the City or other Governmental Agency for any barbecue islands and outdoor kitchens.
- d. No fire pits, barbecues, fireplaces, barbecue islands, permanent barbecue structures or outdoor kitchens shall be located in the front yard of a Residential Lot.
- e. All materials shall be consistent with the Residence architecture and in scale with the size of the yard of the Residential Lot.

12. **Play Equipment.**

- a. Basketball backboards are not permitted. Portable basketball hoops must be returned to garage or placed behind side yard fence when not in use.

**C. Irrigation.**

The following irrigation standards apply to all Residences within the Community:

- 1. All landscape areas are to be irrigated.
- 2. Irrigation systems shall be tailored to the specific site and landscape situation. Important considerations of the design are environmental conditions such as sun and shade, soils, terrain, percolation rates, erosion control, and wind.
- 3. Irrigation systems shall be designed to apply water in an efficient manner and provide adequate coverage without excessive run-off into storm drains or over sidewalks or adjacent property.
- 4. Irrigation systems should be designed and maintained to avoid overspray onto adjacent Residences or property.

**D. Planting.**

- 1. The Association Property and HOA Maintained Public Property trees, shrubs, groundcover and turf provided by the Declarant are to be protected in-place during any construction and replaced in kind and size by the Association at the Owner's expense if damaged. Owner shall note on the landscape improvement Plans and Specifications the following: "All existing Association Property and parkway landscape shall be protected in place during all phases of construction."
- 2. No trees, shrubs, or other plants shall be installed until Plans and Specifications have been approved by the ARC. The Plans and Specifications must show the proposed species, locations and installed sizes. The Plans and Specifications must indicate whether any Solar Energy Systems exist on any properties that border the Owner's Residential Lot. If any such Solar Energy Systems exists on an adjoining property, the

location, type and future height of any proposed tree or shrub may be subject to limitations consistent with the requirements of the Declaration and the restrictions, including without limitation the Solar Shade Control Act, referenced therein. Owners may be required to submit a solar shade study, if applicable.

3. The ARC shall have the right, but not the obligation, to require the Owner to remove, trim, or prune any tree, shrub, or plant which in the reasonable opinion of the ARC, unreasonably impedes the passage of light or air of any Residential Lot or Association Property and to shape and thin trees for wind resiliency and appearance.
4. In addition to selecting landscape plants based upon aesthetic characteristics, consideration shall be given to relative drought-tolerance, solar aspect, and soil type within the Community.
5. Trees with invasive root systems and deciduous / flowering / fruiting trees that drop excessive litter should not be proposed adjacent to Association Property or another Residential Lot.
6. All trees planted within 5 feet from perimeter walls and/or adjoining Residences must utilize a root barrier device.
7. Owner assumes all liability and responsibility for any root damage from trees planted in their yards (including but not limited to damage to walls, structures, utility lines, drainage and adjacent neighbor Improvements).
8. Owner agrees to provide routine maintenance for all trees including, but not limited to, annual pruning and lacing. If the ARC deems any trees a nuisance, the Owner shall bear the expense of tree removal.
9. Shrubs and vines are encouraged to be planted to screen or visually enhance blank wall areas.

#### **E. Synthetic Turf.**

Synthetic turf grass is acceptable in private yards, in accordance with the following guidelines:

1. A minimum twelve inch by twelve inch (12" x 12") sample and specification sheet with warranty shall be submitted for consideration, unless pre-approved product is specified. The following synthetic turf products are pre-approved:
  - a. IST Imperial Synthetic Turf
    - a. California Royal 89
  - b. Boone Action Turf
    - Irvine Fescue One
    - Base Hit 55
    - Base Hit 85

Boone Action Turf (B.A.T.)  
1700 N. Main Street, Orange, CA 92865  
(888) 589-8873  
booneactionturf.com

  - c. Pro Green Synthetic Grass
    - Natural Real 80
    - Natural Real 60
    - Natural Real 50

AmeriTurf Systems  
11710 Chisholm Court, Santa Clarita, CA 91390  
(888) 922-3083  
progreen.com

- d. Tiger Turf
- Diamond Pro Fescue
  - Diamond Pro Spring
  - Diamond Supreme Fescue
  - Diamond Supreme Spring

Synthetic Grass Warehouse  
1400 N. Daly Street, Anaheim, CA 92806  
(800) 730-2675  
syntheticgrasswarehouse.com

The foregoing pre-approvals are not an endorsement of the listed products or manufacturers, and neither the ARC, the Board of Directors, their designated representatives, agents or members, nor the Declarant, assume any liability or responsibility, therefore.

2. Synthetic turf must be replaced when it no longer looks like natural turf due to wear, damage, or discoloration.

**F. Exterior Lighting.**

1. Landscape lighting shall be low-voltage only.
2. All lights must be compatible with the house design color.
3. The up lighting of trees and shrubs is encouraged to provide illumination to the outdoor garden space. No exposed wires or cables are permitted.
4. Mercury vapor lamps or lamps that emit light of a similar character, exposed fluorescent lamps, flashing lights, color lights, unshielded exterior lights, and lights which result in excessive glare are not permitted.
5. Path lighting is acceptable but should be minimized. Path lights shall cast the light downward.
6. Minimal area lighting, post lights, security lights and/or flood lights are permitted but require Architectural Committee approval.
7. The ARC and the Association reserve the right to require that the fixtures be disconnected if they cause an unreasonable glare or illumination upon property outside of the Owner's Residential Lot.

**G. Miscellaneous.**

1. **Speakers.**
  - a. Speakers are permitted but must be installed in such a way as to mitigate noise audible from surrounding residences and may not be used past 10:00 p.m.
2. **Thematic landscape features.**

- a. Thematic landscape features with overly distinctive colors, forms, or materials that establish an independent theme that detracts from the overall street scene, such as glass block, mirror balls, pink flamingos, rock gardens, gravel yards, boulders in turf areas, waterfalls, fountains, concrete statues, railroad ties and split rail fencing are not permitted in areas visible from Association Property or Public Streets.
3. **Exterior Colors.**
  - a. Exterior colors of fences, walls and structures as originally applied and exterior colors pre-approved by the ARC for new construction, additions, or alterations, shall not be changed or altered without prior ARC approval.
4. **Flags and Flag Poles.**
  - a. **Submittal Requirements.** Flags of the United States need not be submitted for ARC approval provided that they conform to the following guidelines. However, the Association reserves its rights set forth in the Declaration to prohibit Improvements that may pose a health or safety risk in the Community.
    - i. Guidelines.
      - Owners may display a flag of the United States made of fabric, cloth or paper displayed from a house-attached flagpole within a Residential Lot.
      - Owners may not display a depiction or emblem of the United States flag made of lights, paint, roofing, siding, paving materials, flora or balloons or any other similar building, landscaping or decorative component.
      - All other flags must be submitted to the ARC in accordance with the procedures set forth in the Declaration and these Architectural Guidelines.
  - b. Non-commercial flags are permitted with the following requirements:
    - i. The flag brackets shall be compatible with the color and scale of the Residence.
    - ii. Flags may not exceed 15 square feet in size.
    - iii. Flags must be maintained continually in good repair.
    - iv. House-attached flagpoles shall be no longer than 6 feet in length.
    - v. Flagpoles must be removed when a flag is not displayed.
  - c. Freestanding flagpoles are not permitted.
5. **Outdoor Storage.**
  - a. Outdoor storage containers are not allowed unless fully screened from view from the exterior of the Residential Lot and stored in the rear yard of the Residential Lot.
  - b. Storage sheds and green houses are only permitted in private yards enclosed by masonry walls. The top of the structure must be below the top of the Residential Lot wall and screened with landscaping approved by the ARC.
6. **Doghouses.**
  - a. Doghouses and other pet enclosures are only allowed in rear yard of the Residential Lot and must be screened from view from the exterior of the Residential Lot.
7. **Clotheslines.**
  - a. Clotheslines are not permitted on a Residential Lot.
8. **Landscape Accessories.**
  - a. Thematic landscape accessories on the front porches of a Residence or within the Association

Property (e.g. sundials, statuettes, chimes, etc.) are not permitted.

**H. Special Notes.**

1. Owners are responsible for maintaining all slope areas on their Residential Lot. Owner must not interfere or modify any maintained slopes, including but not limited to the construction of any structure. If an Owner's Lot is adjacent to or near the bottom of a slope or if drainage otherwise flows into Owner's property, then each Owner accepts such drainage on their property and shall not obstruct the flow of that drainage, divert it away from their property or otherwise alter the flow of that drainage in any manner that will have any effect on an adjacent Residence, Residential Lot, or Association Property.
2. It is important that Improvements such as concrete slabs, decks, planters and walls be designed by qualified soils and structural engineers to compensate for expansive soil conditions and slope creep. Owners are solely responsible for Residential Lot irrigation, landscape maintenance and control of burrowing animals on all landscaped areas on their Residential Lot.
3. Air conditioning units are not to be moved without ARC approval.



## Section V: General Conditions of Approval

The following shall be conditions of any ARC approval and shall be deemed incorporated by reference into all Plans and Specifications and ARC approval. It shall be the responsibility of the applying Owner to ensure that these conditions are enforced upon all persons or firms used, engaged or employed in carrying out any operation or trade in conjunction with the Improvement. The ARC may condition its approval of Plans and Specifications with such changes it deems appropriate and may require submission of additional Plans and Specifications or other information or materials prior to approving or disapproving an Application or Plans and Specifications.

**A. Occupational Safety and Health Act ("OSHA") Compliance.**

All applicable OSHA regulations and guidelines and all other Applicable Laws must be strictly observed at all times.

**B. Signs.**

No signs shall be displayed on any Residential Lot other than a sign advertising the property for sale as permitted by the Declaration. (Refer to the Association Rules for specific requirements.) This limitation applies to tradesmen's, contractors' and installers' signs of any type, including the signs identifying the Residential Lot as the site of their activities or operations. The Declarant is excluded from these Architectural Guidelines.

**C. Hours of Operations.**

As per the City of Tracy Noise Ordinance, all operations shall be carried on between the hours of 8:00 a.m. and 5:00 p.m. on Monday through Saturday. No construction shall be permitted on Sundays or federal holidays.

**D. Temporary Structure.**

No structure of a temporary character will be permitted to remain on any Residential Lot without the written approval of the ARC.

**E. Sanitary Facilities.**

Each Owner shall be responsible for providing adequate sanitary facilities for their construction workers. Portable toilets or similar temporary toilet facilities shall be located only on the Residential Lot itself, setback 5 feet from the side yard property line, or in a location approved by the ARC.

**F. Debris Removal.**

The Residential Lot is to be cleaned at least once a day during construction. Debris must be removed from the site or placed in a debris bin. Refer to Water Quality Management Best Management Practice Guidelines, (Form G), attached to these Architectural Guidelines.

**G. Unightly Items.**

All rubbish and unsightly material or objects of any kind shall be regularly removed from the Residential Lot and will not be allowed to accumulate thereon. Removal shall be made weekly, preferably on Friday, and rubbish will not be allowed to accumulate on streets or Association Property. The Owner will be responsible for the cost of any trash cleanup work performed by the Association due to Owner's failure to adhere to these requirements. Owners are prohibited from dumping, burying, or burning trash anywhere within the Community. Concrete trucks washing out their spill pans before leaving the construction site shall do so only on the Residential Lot and with adherence Refer to Water Quality Management Best Management Practice Guidelines, (Form G)

**H. Streets and Sidewalks.**

No construction debris or material is permitted to remain on the Community's streets or walkways. All items of such nature must be stored on the Residential Lot. In the event that any materials are delivered or deposited on

the streets, walkways or in Association Property, the Owner will be held responsible for the costs involved in cleaning and/or restoring the affected Association Property, streets and walkways to their original condition.

**I. Street Trees and Parkway Improvements.**

Street trees shall be protected in place in a healthy condition during all phases of construction. All parkway irrigation and planting improvements shall likewise be protected in place in a functional and healthy condition during all phases of construction.

**J. Construction Equipment.**

Trucks, concrete mixers, trailers, trash bins, compressors, and other types of construction equipment, as well as private vehicles of construction crew members, shall be parked only in ARC designated areas. The Owner shall be financially responsible for any equipment removal or necessary repairs required by the ARC due to the breach of this provision.

**K. Building Permits.**

Building permits may be required for certain Improvements or changes. The applicant shall obtain ARC approval of any Improvements requiring a building permit prior to requesting such permit from the City or other Governmental Agency.

**L. Damage to Association Property or Association Maintenance Areas.**

An Owner shall be responsible for any damage to the Association Property or Association Maintenance Areas caused by an Owner or such Owner's Invitees, or any other persons deriving their right to use the Association Property or Association Maintenance Areas from the Owner or such Owner's family, tenants or guests, as set forth in the Declaration.

**M. Effect of Approval.**

Approval of Plans and Specifications is not authorization to proceed with Improvements on any property other than the Residential Lot owned by the applicant.

**N. Building Code Requirements.**

It shall be the responsibility of the Owner to ensure that proposed modifications are consistent with applicable building code requirements and other Applicable Laws.

**O. Requirements for Contractors, Subcontractors and any Other Workers.**

1. **Insurance and Contractors License.** Each Owner shall ensure that all contractors, subcontractors, or any other person or entity who/which performs work on or within the Community, including without limitation the interior of any Residence or any Residential Lot, shall provide proof of insurance, proof of valid workers' compensation insurance, a California State Contractors License (if applicable) and a Business License (if applicable) to the ARC. The Association shall be named as an additional insured on the Certificates of Insurance for the period of time the work is in progress, which must be submitted to the Association together with the deposit, if required, before work may commence.
2. **Owner Responsibility.** Each Owner is responsible for any violations by such Owner's contractor or subcontractors of the Architectural Guidelines, the Association Rules and the Declaration.
3. **Damage.** Any damage caused by contractors or sub-contractors to any Association Property, Association Maintenance Areas, Residence or Residential Lot is the Owner's responsibility. Any damage must be reported immediately to the Management Company. The Owner will be held liable for the actions of his/her contractors, subcontractors and/or workers and the Owner will be responsible for any costs of repair incurred by the Association in accordance with the Declaration.

4. **Working Hours.** Working hours for any Improvements are limited to Monday through Saturday, 8:00 a.m. to 5:00 p.m. or such hours as are permitted by the City, whichever are more restrictive. No work is allowed on Sundays or on federal or state holidays. Workers may access the Community thirty minutes before the applicable "Working Hours," but may not make any disruptive noise until "Working Hours" begin. Painting that does not disrupt others and work that does not create disturbing noise, vibrations or odors is not subject to the "Working Hours" limitation.
5. **Parking of Vehicles.** Contractors must park vehicles in accordance with the Association Rules and any other requirements established by the Association.
6. **Conduct by Workers.** Workers are not allowed to bring their pets within the Community. Workers are prohibited from creating nuisance noise unrelated to the construction work. All workers must wear shoes, pants or shorts and shirts at all times. No workers may use the power from the Association Property or Association Maintenance Areas.
7. **Stopping Work.** The Association has the right to stop any work that is in violation of these Architectural Guidelines, creates a fire or safety hazard, or interferes with activities in the Association Property or Association Maintenance Areas.
8. **Equipment.** Workers are prohibited from leaving their equipment on the Association Property. The Association is not responsible for the disappearance or theft of any tools, equipment or materials left in the Association Property.
9. **Construction Materials.** All construction materials must be stored within the Owner's Residential Lot. Any construction materials that are delivered and deposited on the Public Streets must be relocated to the Owner's Residential Lot. The Owner who is making the Improvements shall be responsible for removing all debris and maintaining all portions of the Association Property affected by such Owner's construction activities, including any Public Street and walkways, in a clean and attractive condition. The Board has the right to levy Compliance Assessments against the Owner who is making the Improvements to recover the cost of cleaning or restoring any Association Property to the condition that existed prior to the commencement of such Improvements pursuant to the Declaration and the Bylaws, to the extent that such Owner fails to do so in accordance with this provision.
10. **Construction Equipment.** The Owner who is making Improvements shall be responsible for ensuring that construction equipment such as trucks, concrete mixers, trailers, trash bins, and compressors shall not be parked or placed on the Community's streets for an unreasonable amount of time. Any damage to the Public Street, curbs, landscaped areas, fences, walls or other Association Property improvement shall be repaired at the Owner's expense. If such expenses are not promptly repaid by the Owner's to the Association, the Board shall, after Notice and Hearing, levy a Compliance Assessment against such Owner for reimbursement.
11. **Violation of Rules.** The Board has the right to levy against the Owner who is making such Improvements, Compliance Assessments as a disciplinary measure for a violation of the foregoing provisions and for reimbursement of any costs incurred by the Association in the repair of damage for which such Owner, or such Owner's agents or contractors was allegedly responsible, as set forth in the Declaration and the Association Rules.

**P. Dust and Noise.**

The Owner shall be responsible for controlling dust and noise from any construction on his or her Residential Lot.

**Q. Excavation.**

Excess excavation materials must be hauled away in a legal manner and must be properly protected with plastic and sand bags so that loose soils will not wash down into the Community's storm drains.

**R. Restoration or Repair of Other Property Damaged.**

Damage to other property, including without limitation, other Residential Lots, Association Property, or other Improvements shall be repaired or restored promptly at the expense of the Owner of the Lot where the construction activity is taking place. Upon completion of construction, the Owner shall clean the construction site and repair or restore all damaged property, including without limitation, restoring grades, and repairing streets, curbs, driveways, sidewalks, drains, culverts, ditches, signs, lighting, fencing, irrigation and planting.

**S. Maintenance of Improvements.**

The repair and maintenance of any work or Improvements will be the responsibility of the installing Owner and subsequent Owners of the Residential Lot.

**T. Drainage.**

There shall be no interference with the originally installed rain gutters, downspouts, subterranean drain line(s), or other drainage systems (whether surface or subterranean) or any other interference with the established drainage pattern over any of the Residential Lot or Association Property. All on Residential Lot drainage systems shall be connected to the existing drain line from the in-street storm drain to one or several roof gutter down spouts. The Owner shall protect all such existing drain lines in place.

**U. Workmanship.**

The quality of new Improvements shall match the quality of the existing structures. Any work deemed by the ARC to be of inferior quality shall be reworked or removed and the building restored by the Owner to its original condition prior to commencement of the work by the Owner. If the Owner refuses to rework or remove and restore as called for above, the ARC shall request the Board of Directors to cause such rework, removal or restoration and the cost thereof shall be a Compliance Assessment against the Owner as provided in the Declaration.

**V. Enforcement.**

Failure to obtain the necessary prior approval from the ARC prior to installation of any Improvement constitutes a violation of the Declaration and these Architectural Guidelines and may require modifications or removal of work at the expense of the Owner.

**W. Violations.**

All Owners have the right and the responsibility to bring to the attention of the ARC any violations of the Declaration and these Architectural Guidelines.

**X. Amendments.**

These Architectural Guidelines, along with the provisions set forth in the Declaration for the Community, form the basis and criteria for evaluation of Applications, including Plans and Specifications, submitted for review and approval by the ARC. The Architectural Guidelines may be amended or supplemented from time to time as provided for in the Declaration.

**Y. Conditions Not Covered.**

With respect to any proposed Improvement or other condition not specifically addressed in these Architectural Guidelines, the ARC shall apply these Architectural Guidelines in the manner that is most consistent with the original architectural and landscaping character established by the Declarant for the Community where the Owner proposes to construct the Improvements, so as to preserve aesthetic harmony between the proposed Improvements and the existing Improvements within the Community.

**Z. Inapplicability to Declarant.**

In accordance with the Declaration, nothing in these Architectural Guidelines shall apply to any Improvements installed or repaired by Declarant or limit the rights of the Declarant to construct Improvements on any Residential Lot or Association Property.

**AA. Contractor BMPs.**

See Water Quality Management Best Management Practice Guidelines, (Form G)



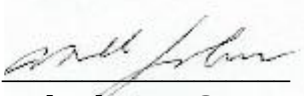
# TRACY HILLS DEVELOPMENT PHASE 2 FIRE PROTECTION PLAN Tracy, California



**June 22, 2023**

Owner: Lennar Homes  
2603 Camino Ramon Ste. 525  
San Ramon, CA 94583

Prepared by: Herbert Spitzer, Senior Wildland Fire Associate  
**FIREWISE2000, LLC**

Certified by:   
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**(760) 745-3947**

# TRACY HILLS DEVELOPMENT PHASE 2

## FIRE PROTECTION PLAN

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# **TRACY HILLS DEVELOPMENT PHASE 2 FIRE PROTECTION PLAN**

## **Tracy, California June 22, 2023**

### **1.0 GENERAL DESCRIPTION**

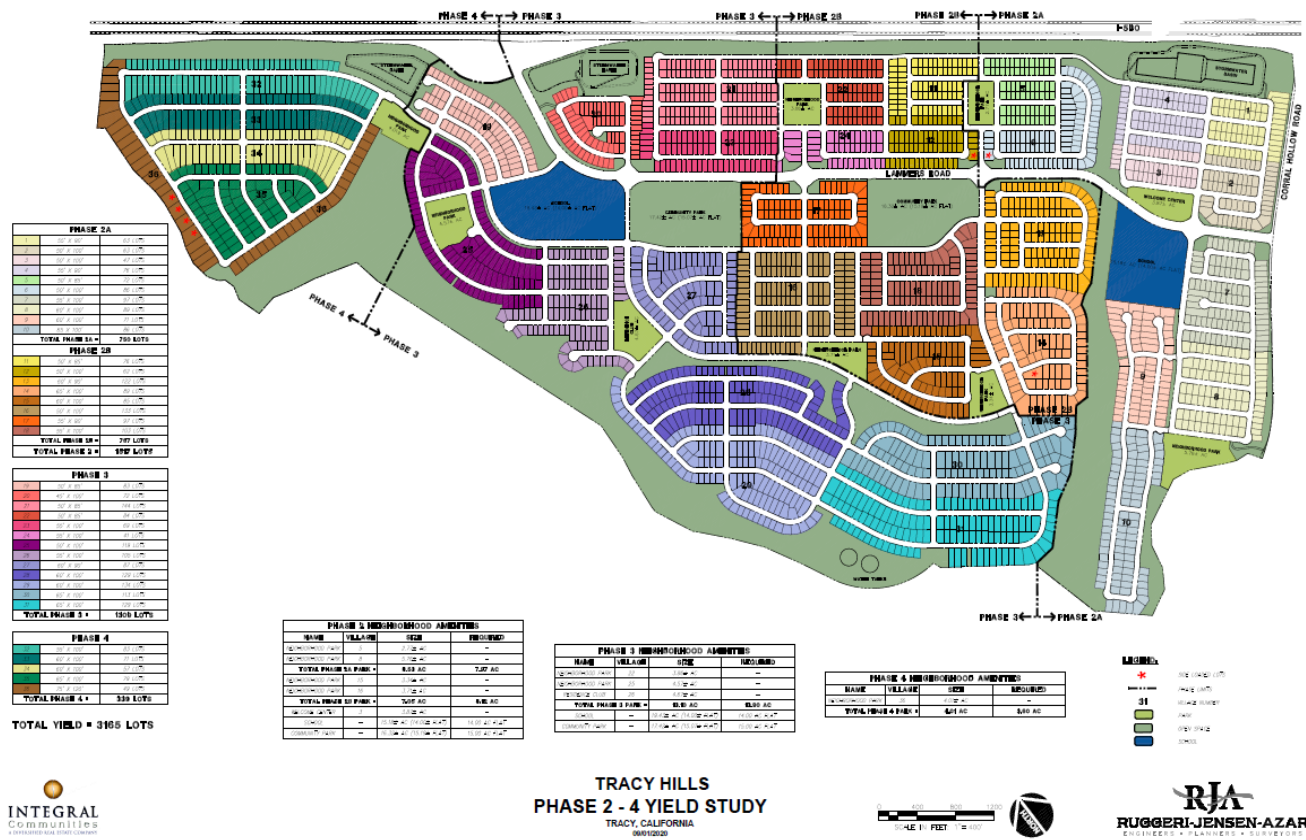
The Tracy Hills Development project hereinafter referred to as the “Development” is located in San Joaquin County northwest of the intersection of Corral Hollow Road with Interstate 580 in the City of Tracy, California (see Photo #1). The Development is located adjacent to Moderate and High Fire Hazard Zones as identified by CalFire. Wildland and exotic fuels are present to the north, west and south directions of the project. The Development abuts Interstate 580 along its entire length to the east. The South San Joaquin County Fire Authority (SSJCFA) is the fire authority for the Development.



**↑ Photo #1 – Aerial Photo of the Project Area Showing Nearby Undeveloped Land and Interstate 1580. The Yellow Arrow Points to the Approximate Center of the Development.**

The master plan for the Tracy Hills Development consists of the construction of approximately 3,065 single-family homes on approximately 1,315 acres of land located within the City of Tracy. The individual lots range in size from 4,250 to 9,000 square feet. Also, several neighborhood and community parks are to be built on approximately 61.76 acres. Two school sites, one of approximately 19.43 acres and another of 15.18 acres are planned. The homes will be 1 to 2 stories in height. In addition, over 3,500 acres of open space has been dedicated with Conservation Easements in place. This land is primarily located to the west and north of the Development. Additionally, approximately 130 acres of open space will exist within the development. This FPP is for Phase 2 and is located adjacent to Corral Hollow Road. Please refer to the attached Fire Protection Plan Map Exhibits for the illustration of property lines, proposed structure locations, and related vegetation management. Additional phases of the project will have their own standalone Fire Protection Plans.

The Development is part of a master planned community of low and medium density urban areas. Illustration #1 below is the current Master Plan showing phases 2, 3, and 4 which will include parks, open space, a residence clubhouse, and elementary schools. A new SSJCA Fire Station has been built on the east side of the 580 Freeway and will serve the development.



This Fire Protection Plan (FPP) has been developed for Phase 2 of the Project with input from the SJCFA. This FPP assesses the overall (on-site and off-site) wildland fire hazards and risks that may threaten life and property associated with the proposed Development. In addition, the FPP establishes both short-term and long-term Vegetation Management actions required to minimize any projected wildland fire hazards and assigns annual maintenance responsibilities for each of the required actions.

### **1.1 General Information**

|                        |                                                                                |
|------------------------|--------------------------------------------------------------------------------|
| Owner:                 | Lennar Homes of CA, LLC<br>23603 Camino Ramon, Ste. 525<br>San Ramon, CA 94583 |
| Approving Departments: |                                                                                |
| Fire Authority:        | South San Joaquin County Fire Authority                                        |
| Building:              | City of Tracy                                                                  |
| Water:                 | City of Tracy                                                                  |

The purpose of this FPP is to provide Vegetation Management Zone treatment and construction feature direction for developers, architects, builders, the SSJCFA, City of Tracy, San Joaquin County officials, and the owners to use in making the structures in the proposed project relatively fire hardened from future wildfires. Appendices attached to this FPP that provide additional information shall be considered part of this FPP.

### **1.2 Relevant Building Codes and Standards**

Requirements of this FPP are based upon requirements listed in the 2022 California Fire Code, Chapter 49, Public Resources Code, Sections 4201 through 4204, and Government Code, Sections 51175 through 51189, or other areas designated by the enforcing agency to be at a significant risk from wildfires. Local Amendments as required; Chapter 7A-California Building Code; 2022 California Residential Code Section R337; National Fire Protection Association Standards (NFPA) 13-D, 2022 Edition, NFPA Standard 13-R, and NFPA Standard 1140 – Standard for Wildland Fire Protection. Future development and/or additions will comply with codes in place at that time.

### **1.3 Hazardous Vegetation Around Buildings - Laws and Regulations**

The following laws and regulations guide the requirements for fuel modification. These include the following: Public Resources Code, Section 4291. California Code of Regulations, Title 14, Division 1.5, Chapter 7, Subchapter 3, Section 1299 (see guidance for implementation “General Guideline to Create Defensible Space”). California Code of Regulations, Title 19, Division 1, Chapter 7, Subchapter 1, Section 3.07. Future development and/or additions will comply with laws and regulations in place at that time.

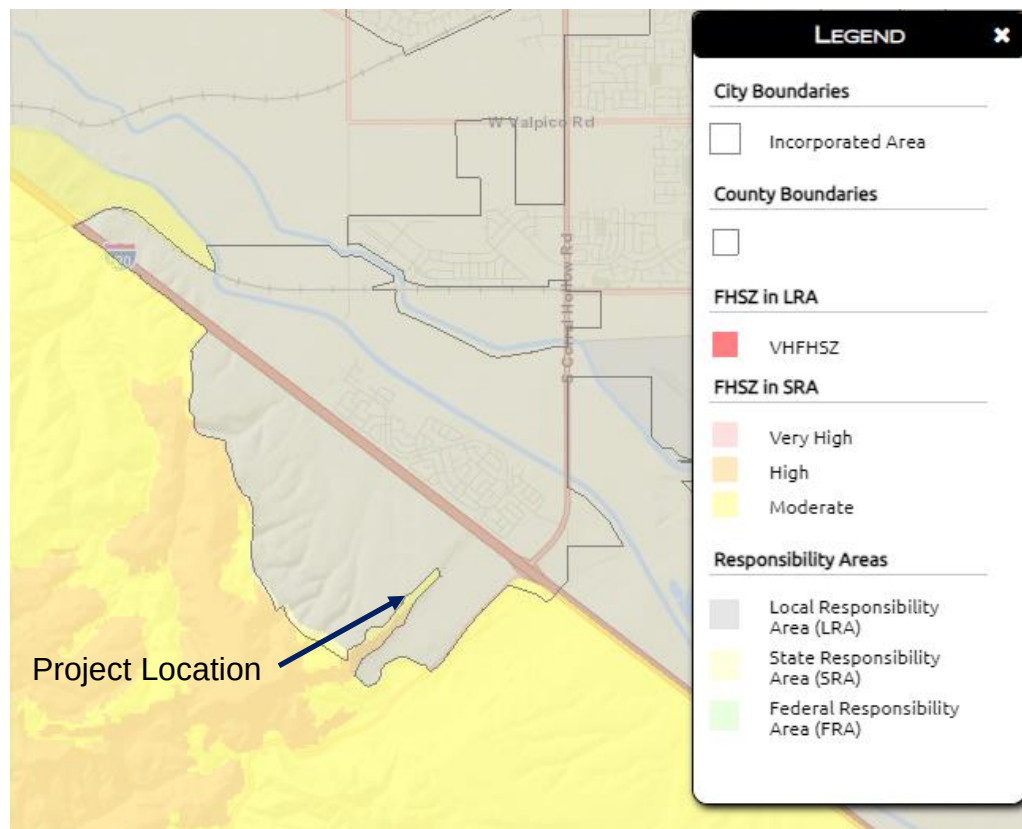
## **2.0 WILDLAND FIRE HAZARD AND RISK ASSESSMENT**

In assessing the wildland fire hazard, it is necessary to consider plant succession and the climax plant communities. The vegetation described below is the most likely climax plant community that will exist without human intervention and the one utilized for planning purposes.

## 2.1 On and Off-Site Fire Hazard and Risk Assessment

The proposed Development is located on lightly sloping terrain that has historically been used for grazing of livestock. The California Vegetation/Wildlife Habitat classification for the entire project area is California Grassland. Within the Development, much of the project area will be graded removing all wildland and exotic fuels. The vegetation that is to remain on adjacent land and within the open space consists of various grass species, goldfields, buckwheat, fiddleneck, mustard, and other related species (see Photo #2). For fire behavior planning purposes, the mature vegetation is best described as a combined Fuel Model of gr4 (moderate load, dry climate grass with 1-hour fuels of 0.25 tons/acre and Fuel Model sh1 (Low Load Dry Climate Shrub, with 1-hour fuels of 0.25 tons/acre and 10-hour fuels of .25 tons/acre. All native plants are adapted to intense wildfires needed for species regeneration.

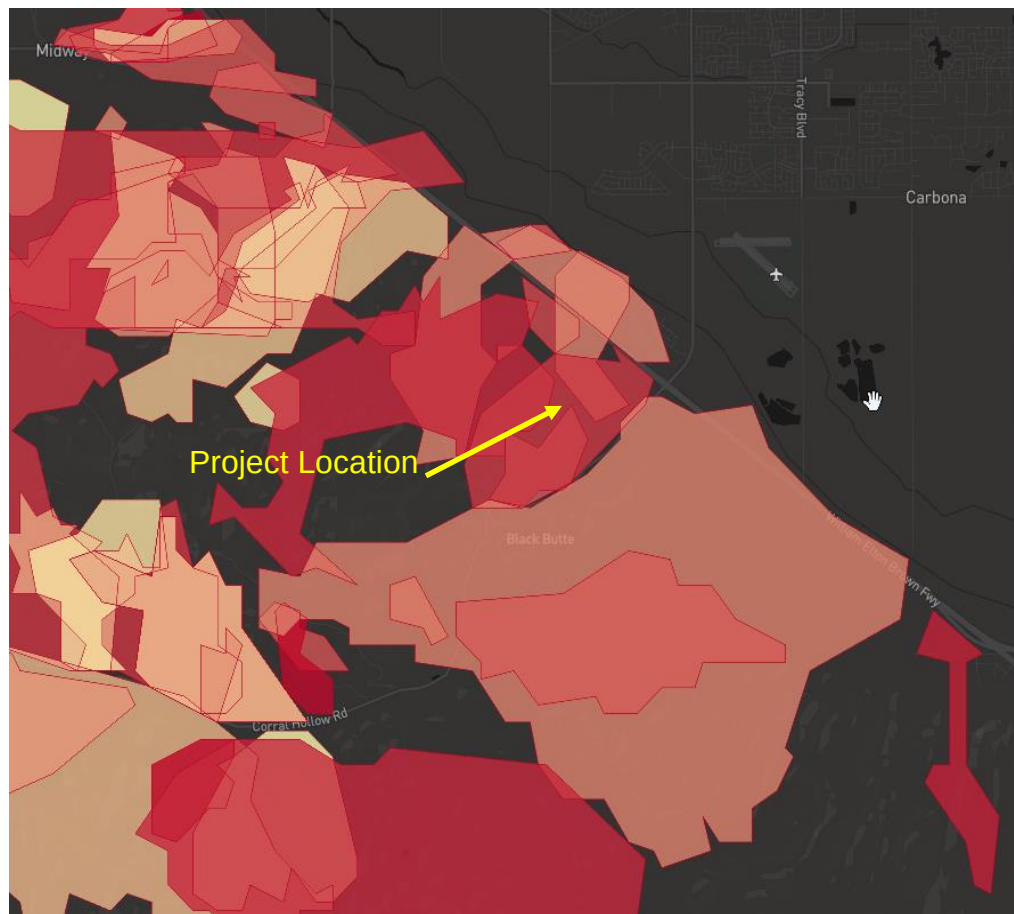
The City of Tracy has not declared any lands within the project as a wildland fire hazard. The State of California has declared both moderate and high fire hazard areas adjacent to the Development. See Illustration #2 for the State Responsibility Area (SRA) declared wildland fire hazard.



**Illustration #2 – Declared Fire Hazards by The City of Tracy.** Moderate and high zones only exist on the perimeter of the Project. The higher hazards are located in higher and steeper terrain west of the Development.

There is a significant history of wildfire in the area (See Illustration #3). The most recent large fire that burned in the vicinity of the project was the August 18, 2020, SCU Lightning Complex that burned south of the city but caused many health issues due to smoke. It burned within 5 counties and was active for 44 days. The final acreage was 396,624 acres. The second most recent large fire was the 2,163-acre Explosive Fire of June 19, 2009. On July 11, 2006, the Midway Fire burned

6,400 acres north of the planned Development. This fire burned during strong westerly winds and jumped to the east side of Interstate 580. A year prior to this, the Tesla Fire burned over 6,744 acres north of the Midway Fire on July 19, 2005. It should be noted that Interstate 580, which the project abuts was closed by the California Highway Patrol for over 3 ½ hours on July 12, 2006, due to the Midway Fire. This active fire history is because of the local Mediterranean climate where warm wet winters promote abundant new plant growth, and long, hot, and very dry summer seasons frequently occur. Occasionally, multi-year droughts cause significant parts of these plants to die back.



**Illustration #3 – Major Wildland Fire History.** The yellow arrow points to the development's general location. Over the past 40 years, several major fires have burned nearly all the Project area. Due to periodic fire activity and grazing, the current vegetation as shown in this FPP is in the early stages of plant succession.

It is interesting to note that most of the large fires occur during the summer months of June and July. Since the area has historically been grazed, these fires sometimes occurred before the livestock had time to consume significant amounts of grass thus making for higher intensity fire behavior than what would be expected later in the fire season. The California Grazing Handbook notes a different time period for grazing might be prescribed based on the need for fire hazard control; where grass fires are a concern, grazing should continue long enough into the spring or summer to adequately reduce standing fuels prior to the fire season.

The major wildland fire threat is from the north and west of the Development. This threat comes from the adjacent undeveloped land and its associated fuels, history of significant fires and fire weather. Fire history and adjacent vegetation that borders the project along the north and west sides of the Development can be seen in Photos #2 - 6.



***Photo #2 – Typical Late Summer Vegetation Looking Northwest Parallel to Interstate 580. The Vegetation is Light due in Part to Recent Fire Activity, Grazing and Drought. The development would be built from the base of the hills to where the photo was taken.***



***Photo #3 - Looking Southwest toward Corral Hollow Road Located in the Bottom of the Drainage. Note the adjacent land being dominated by grasslands with only riparian vegetation being seen along the intermittent stream at the bottom of the drainage.***



***Photo #4 – Looking North Parallel to I580. Most of the fuels are annual grasses and Fiddleneck, a common flowering plant found throughout much of California. In normal rainfall years, Popcorn Flower and Common Goldfields will also be found growing here. Note the taller vegetation within the freeway right of way. This area is not subject to grazing. The vegetation is therefore heavier.***



**Photo #5 – Looking North From Corral Hollow Road Approximately 1 Mile West of I-580.** This is near the southern Development boundary. Note the scattered clumps of California Buckwheat on the hillside above the fence. Homes are to be built above this hillside as part of phase 2.



**Photo #6 – Looking Northeast Toward Tracy.** Note the existing home construction on the east side of I-580. This construction is part of Phase 1 of the Tracy Hills Master Plan.

As of the date of this report, there are over 500 homes that have been built and occupied east of I-580 in Phase 1. Additionally, several commercial businesses are under construction on the east side of I-580 (Photo #6). The land surrounding Phase 2 is currently all undeveloped. The existing fuels, primarily grass, are broken up by an occasional dirt roadway and a few cross-fence lines.

There is a historic pattern of significant wildland fires burning from the Northwest, West and Southwest as demonstrated in Illustration #3. Occasionally, a hot dry, southwest to west wind of 50 MPH will occur with low relative humidity. This strong, dry wind condition usually occurs in

the late afternoon or early evenings on very hot days, especially during the summer (June through August) months.

Another critical weather pattern to the project area is a hot, dry offshore wind, typically called in this part of California as a *Foehn Wind*. These winds tend to be stronger further to the east near the base of the Sierra Nevada Mountain range. Such wind conditions are usually associated with strong (>30 MPH), hot, dry winds with very low (<15%) relative humidity. Foehn winds originate over the dry desert land and can occur anytime of the year; however, they generally occur in the late fall (September through November). This is also when non-irrigated vegetation is at its lowest moisture content.

The undeveloped land in proximity to the Development can contribute to a damaging wildland fire event. To the project's benefit, the land to the west of the project is required to have grazing continued to thereby help restrict plant succession per the 3,535-acre Tracy Hills Habitat Conservation Plan CE Area (CE Area). Any wind driven wildfire burning under a northeastern (*foehn*) wind pattern through areas to the north or east creates a wildland fire hazard to the proposed structures. Wildland fires starting north of the proposed residences on a typical fire day with a southwest wind will burn away from the proposed structures and will generally not be a significant wildland fire hazard.

All structures in the area are threatened through wind-blown embers, the closer a home sits to wildland vegetation, the greater the threat. Embers have been known to travel over a mile during high winds and start new fires when they land on dry vegetation, combustible construction, or other flammable fuels. The installation of ember resistant venting throughout the Development will mitigate against the wind-blown ember threat (see Section 6.0 for a discussion of this feature). The goal of this FPP is to prevent the loss of lives, buildings, and personal property when wildfires occur with the challenge of allowing the construction of a well-planned project site. This goal is accomplished by requiring each structure to be built on the edge of the Development that abuts wildland vegetation with ignition resistant materials. Throughout the Development, properly designed and maintained vegetation management treatments should safely mitigate the fire hazard and threat from embers to less than significant levels.

## **2.2 Predicting Wildland Fire Behavior**

The BEHAVE 6.0.0 Fire Behavior Prediction and Fuel Modeling System developed by USDA–Forest Service research scientists Patricia L. Andrews and Collin D. Bevins at the Intermountain Forest Fire Laboratory, Missoula, Montana, is one of the best systematic methods for predicting wildland fire behavior. The BEHAVE fire behavior computer modeling system is utilized by wildland fire experts and managers nationwide. It is used for forecasting fire behavior, assisting current wildfire incidents and for post incident analysis. The program projects the expected fire intensity, rate-of-spread and flame lengths with a reasonable degree of certainty for use in Fire Protection Planning purposes. **FIREWISE2000, LLC** used the BEHAVE 6.0.0 Fire Behavior Prediction Model for the Tracy Hills Development to make the fire behavior assessments discussed below.

## **2.3 Wildland Fire Behavior Calculations for the Off-Site Hazardous Vegetative Fuels**

Wildland fire behavior calculations have been performed for the moderate and high hazard vegetative fuels for the undeveloped areas that will be in proximity to and within the project. These projections are based on scenarios that are ‘worst case’ San Joaquin County fire weather

assumptions in the vicinity of the project area. Historical weather data was obtained from the RAWS (Remote Automatic Weather Station) network stations located closest to the project area. The closest RAWS to the project is the Altamont RAWS located at Latitude 37° 41' 35" and Longitude 121° 36' 34" at an altitude of RAWS 1,436 feet. The station is approximately 8.9 miles NW of the project. This weather station is also over 1,000 feet higher than the project site. The Western Region Climate Center located in Reno, NV houses all historic weather data.

The four tables which follow are the projected fire behavior under “worst case” fuel and weather conditions (shown in **Red**) and the expected fire behavior following the herein described fuel treatments (shown in **Green**).

The four worst case scenarios depicted below in Tables 2.3.1 thru 2.3.4 display the expected Rate of Fire Spread (expressed in feet per minute), Fireline Intensity (expressed in BTU’s/feet/second) and Flame Length (expressed in feet) in a combined fuel model consisting of gr4 – Moderate Load – Dry Climate Grass (90%) and gs1 – Low load, dry climate grass-shrub (10%). The tables also include the calculation inputs used in the BEHAVE program which were obtained from Project site observations and fuel moisture levels typically observed during the local fire season. In addition, the tables show the change in Rate of Fire Spread, Fireline Intensity, and Flame Length following the completion of the required Vegetation Management fuel treatment which is characterized by a Combined Fuel Model [Tl6– Moderate Load Broadleaf Litter 50% and Gr1 – Short Sparse Dry Climate Grass 50%].

| <b>Table 2.3.1</b><br><b><u>Fire Scenario # 1 - Fire Approaching from the North or Northeast</u></b><br><b><u>(Late Fire Season With 40 MPH North or Northeast Wind Conditions)</u></b>                                             |                                                                                                                                                                                                                                                                                                                     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Fire Behavior Calculation Input Data</b> <ul style="list-style-type: none"> <li>• 5 percent slope</li> <li>• 40 mph 20-foot wind speed</li> <li>• 45° wind direction from north</li> <li>• 180° aspect from the north</li> </ul> | <b>Anticipated Fuel Moistures</b> <ul style="list-style-type: none"> <li>* 1-Hour Fine Fuel Moisture of.....2%</li> <li>* 10-Hour Fuel Moisture of.....3%</li> <li>* 100-Hour Fuel Moisture of.....5%</li> <li>* Live Herbaceous Fuel Moisture of.....30%</li> <li>* Live Woody Fuel Moisture of.....50%</li> </ul> |
| <b>Expected Fire Behavior – <b>Native Fuels</b></b><br><b>Combined Fuel Model [Gr4 – Moderate load, Dry Climate Grass (90%) and</b><br><b>Sh1 – Low Load Dry Climate Shrub (10%)]</b>                                               |                                                                                                                                                                                                                                                                                                                     |
| <b>Rate of Spread - 923 ft/min</b>                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                     |
| <b>Fireline Intensity - 8,921 Btu/ft/s</b>                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                     |
| <b>Flame Length - 29.5 feet</b>                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                     |
| <b>Expected Fire Behavior in <b>Treated Fuels</b></b><br><b>Combined Fuel Model - [tl6 – Moderate Load Broadleaf Litter (50%)</b><br><b>and gr1 – Short Sparse Dry Climate Grass (50%)]</b>                                         |                                                                                                                                                                                                                                                                                                                     |
| <b>Rate of Spread - 38.8 ft/min</b>                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                     |
| <b>Fireline Intensity - 326 Btu/ft/s</b>                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                     |
| <b>Flame Length - 6.4 feet</b>                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                     |

| <b>Table 2.3.2</b><br><b><i>Fire Scenario # 2 - Fire Approaching from the East or Southeast</i></b><br><b><i>(Late Fire Season With 30 MPH East or Southeast Wind Conditions)</i></b>                                               |                                                                                                                                                                                                                                                                                                                     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Fire Behavior Calculation Input Data</b> <ul style="list-style-type: none"> <li>• 25 percent slope</li> <li>• 30 mph 20-foot wind speed</li> <li>• 90° wind direction from north</li> <li>• 90° aspect from the north</li> </ul> | <b>Anticipated Fuel Moistures</b> <ul style="list-style-type: none"> <li>* 1-Hour Fine Fuel Moisture of.....2%</li> <li>* 10-Hour Fuel Moisture of.....3%</li> <li>* 100-Hour Fuel Moisture of.....5%</li> <li>* Live Herbaceous Fuel Moisture of.....30%</li> <li>* Live Woody Fuel Moisture of.....60%</li> </ul> |
| <b>Expected Fire Behavior – Native Fuels</b><br><b>Combined Fuel Model [Gr4 – Moderate load, Dry Climate Grass (90%) and Sh1 – Low Load Dry Climate Shrub (10%)]</b>                                                                |                                                                                                                                                                                                                                                                                                                     |
| Rate of Spread - 636.3 ft/min                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                     |
| Fireline Intensity - 6,033 Btu/ft/s                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                     |
| <b>Flame Length - 24.7 feet</b>                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                     |
| <b>Expected Fire Behavior in Treated Fuels</b><br><b>Combined Fuel Model - [tl6 – Moderate Load Broadleaf Litter (50%) and gr1 – Short Sparse Dry Climate Grass (50%)]</b>                                                          |                                                                                                                                                                                                                                                                                                                     |
| Rate of Spread - 34.4 ft/min                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                     |
| Fireline Intensity - 225 Btu/ft/s                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                     |
| <b>Flame Length - 5.4 feet</b>                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                     |

| <b>Table 2.3.3</b><br><b><i>Fire Scenario # 3 - Fire Approaching from the Southwest or West</i></b><br><b><i>(Late Fire Season With 50 MPH West or Southwest Wind Conditions)</i></b>                                                     |                                                                                                                                                                                                                                                                                                                     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Fire Behavior Calculation Input Data</b> <ul style="list-style-type: none"> <li>• 15 percent slope</li> <li>• 50 mph 20-foot wind speed</li> <li>• 240° wind direction from the north</li> <li>• 110° aspect from the north</li> </ul> | <b>Anticipated Fuel Moistures</b> <ul style="list-style-type: none"> <li>* 1-Hour Fine Fuel Moisture of.....2%</li> <li>* 10-Hour Fuel Moisture of.....3%</li> <li>* 100-Hour Fuel Moisture of.....5%</li> <li>* Live Herbaceous Fuel Moisture of.....30%</li> <li>* Live Woody Fuel Moisture of.....60%</li> </ul> |
| <b>Expected Fire Behavior – Native Fuels</b><br><b>Combined Fuel Model [Gr4 – Moderate load, Dry Climate Grass (90%) and Sh1 – Low Load Dry Climate Shrub (10%)]</b>                                                                      |                                                                                                                                                                                                                                                                                                                     |
| Rate of Spread - 1,294 ft/min                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                     |
| Fireline Intensity - 12,272 Btu/ft/s                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                     |
| <b>Flame Length - 34.2 feet</b>                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                     |
| <b>Expected Fire Behavior in Treated Fuels</b><br><b>Combined Fuel Model - [tl6 – Moderate Load Broadleaf Litter 50% and gr1 – Short Sparse Dry Climate Grass 50%]</b>                                                                    |                                                                                                                                                                                                                                                                                                                     |
| Rate of Spread - 44.8 ft/min                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                     |
| Fireline Intensity - 449 Btu/ft/s                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                     |
| <b>Flame Length - 7.5 feet</b>                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                     |

| <b>Table 2.3.4</b><br><b><i>Fire Scenario #4 - Fire Approaching from the West or Northwest</i></b><br><b><i>(Late Fire Season With 50 MPH West or Northwest Wind Conditions)</i></b>                                                      |                                                                                                                                                                                                                                                                                                                     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Fire Behavior Calculation Input Data</b> <ul style="list-style-type: none"> <li>• 15 percent slope</li> <li>• 50 mph 20-foot wind speed</li> <li>• 290° wind direction from the north</li> <li>• 100° aspect from the north</li> </ul> | <b>Anticipated Fuel Moistures</b> <ul style="list-style-type: none"> <li>* 1-Hour Fine Fuel Moisture of.....2%</li> <li>* 10-Hour Fuel Moisture of.....3%</li> <li>* 100-Hour Fuel Moisture of.....5%</li> <li>* Live Herbaceous Fuel Moisture of.....30%</li> <li>* Live Woody Fuel Moisture of.....60%</li> </ul> |
| <b>Expected Fire Behavior – Native Fuels</b><br><b>Combined Fuel Model [Gr4 – Moderate load, Dry Climate Grass (90%) and Sh1 – Low Load Dry Climate Shrub (10%)]</b>                                                                      |                                                                                                                                                                                                                                                                                                                     |
| <b>Rate of Spread - 1,293.6 ft/min</b>                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                     |
| <b>Fireline Intensity - 12,272 Btu/ft/s</b>                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                     |
| <b>Flame Length - 34.2 feet</b>                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                     |
| <b>Expected Fire Behavior in Treated Fuels</b><br><b>Combined Fuel Model - [tl6 – Moderate Load Broadleaf Litter 50% and gr1 – Short Sparse Dry Climate Grass 50%]</b>                                                                    |                                                                                                                                                                                                                                                                                                                     |
| <b>Rate of Spread - 44.7 ft/min</b>                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                     |
| <b>Fireline Intensity - 448 Btu/ft/s</b>                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                     |
| <b>Flame Length - 7.5 feet</b>                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                     |

The above fire behavior calculations demonstrate that 100 feet of fuel treatment will be sufficient to protect the structures located on the perimeter of the Development from flame impingement, radiant and convective heat from a wildfire.

### 3.0 ASSESSING STRUCTURE IGNITIONS IN THE WILDLAND/URBAN INTERFACE

Structure ignitions from wildland wildfires basically come from three sources of heat: convective firebrands (flying embers), direct flame impingement, and radiant heat. The Behave Plus Fire Behavior Computer Modeling Program does not address wind blown embers or firebrands. However, ignition resistant exterior building materials will be used in the construction of the Tracy Hills Development that will significantly reduce the threat from embers (see APPENDIX ‘C’ Ignition Resistant Construction). Radiant and convective heat issues are addressed in this FPP principally through the creation of Vegetation Management Zones and associated fuel treatments found in Section 5.0.

#### 3.1 Firebrands

Firebrands are pieces of burning materials that detach from burning fuel due to the strong convection drafts in the flaming zone. Firebrands may also be referred to as embers. Firebrands can be carried a long distance (one mile or more) by fire drafts and strong winds. Severe wildland/urban interface fires can produce heavy showers of firebrands. The chance of these firebrands igniting a structure will depend on the size and number of the firebrands, how long each ember burns after contact, and the type of building materials, building design, and construction features of the structure. Firebrands

landing on combustible roofing and decks are common sources for structure ignition. They can also enter a structure through unscreened vents and chimneys, and unprotected skylights and windows.

Even with non-combustible roofing, firebrands landing on leaves, needles, and other combustibles located on a roof (due to lack of maintenance) can cause structure ignition. Any open windows, doors or other types of unscreened openings are sources for embers to enter a structure during a wildland fire. If the herein maintenance issues are addressed on a regular basis, firebrands should not be a concern for the Development as each home will be constructed with ignition resistant building materials.

To the Developments benefit, the majority of vegetation types located adjacent to the project contain few plants that produce significant embers. It was observed that there are historical wooden fences and other combustibles intermixed with the grassland fuels that are capable of producing embers, but their numbers will be limited due to their low numbers.

### **3.2 Radiant Heat/Direct Flame Impingement**

Radiation and convection involve the transfer of heat directly from the flames. Unlike radiation heat transfer, convection requires that the flames or heat column contact the structure. An ignition from radiation (given an exposed flammable surface) heat transfer depends on two aspects of the flame: 1) the radiant heat flux to a combustible surface and, 2) the duration (length of time) of the radiant flux. The radiant heat flux depends on the flame zone size, flame-structure distance, and how much combustible material of the structure is exposed to the flame. While the flame from a wildfire may approach 1,800 degrees Fahrenheit, it is the duration of heat that is more critical. For example, a blow torch flame typically approaches 2,100 degrees Fahrenheit, yet a person can easily pass his/her hand through the flame. Heat duration only becomes critical to a building with a wood exterior surface if the heat is allowed to remain for 30-90 seconds.

Research scientist Jack Cohen of the United States Forest Service has found that a home's characteristics-its exterior materials and design in relation to the immediate area around a home within 100 feet - principally determine the home ignition potential. He calls the home and its immediate surroundings the "home ignition zone". In a study of ignition of wood wallboard, tests by a USDA Forest Service research team described in the Proceedings, 1st International Fire and Materials Conference showed that flame impingement for sufficient length of time (approximately 1 min.) ignites a typical hardboard siding material. Since the requirement in this FPP is for a non-combustible wall or 1-hour fire resistive construction for the exterior portion of a structure, the likelihood of structure's exterior reaching ignition temperature is very unlikely due to either radiant or convective heat.

Fire agencies consider vegetation management a principal approach to wildland fire hazard reduction. Whenever the flame length, 1-2 minutes in duration or more, is equal to or more than the separation of combustible vegetation from a combustible structure, there is a high probability of structure ignition. Contact with a fire's convection heat column also may cause ignition but the temperature of the column's gases generally is not hot enough or long enough in duration to sustain the ignition of the structure.

Comparing the expected wildland fire behavior projections in each of the scenarios in Section 2.3 against the required fuel modification zones outlined in Section 5.0, demonstrates substantial reductions in the expected flame length and fireline intensity.

By requiring the structures built adjacent to wildland fuels to incorporate the following guidelines, those structures will be provided with the most effective treatment for minimizing losses from flame impingement and associated radiant heat intensities.

- Each structure is constructed of ignition resistant building materials.
- The area surrounding all structures within the Development contains an irrigated zone (defensible space) and a thinning zone (low fuel volume buffer strip) between the irrigated zone and untreated fuels.

Each property owner shall be required to maintain their property to Zone O and 1A Vegetation Management Zone criteria and shall keep the roofs and rain gutters free of leaves, needles and other combustible debris. All firewood and other combustible materials must be properly stored away from each structure so that burning embers falling on or near a structure have no suitable host. Each resident shall be responsible for maintaining their property including the plant material growing in pots and containers on decks and patios and for keeping all doors and windows tightly closed whenever a wildland fire is reported in the vicinity.

### **3.3 Fire Resistant Plant Palette**

Wildland fire research has shown that some types of plants, including many natives, are more fire resistant than others. These low fuel volume, non-oily, non-resinous plants are commonly referred to as ‘fire resistant’. This term comes with the proviso that each year these plants are pruned, all dead wood is removed, and all grasses or other plant material are removed from beneath the circumference of their canopies. Some native species are not considered ‘undesirable’ from a wildfire risk management perspective provided they are properly maintained year-round (refer to APPENDIX ‘A’ for a list of prohibited plant species).

## **4.0 FIRE DEPARTMENT RESPONSE TIMES**

The City of Tracy recently finished a new fire station on the east side of the I-580 freeway on Tracy Hills Dr. This new SSJCFA station is the closest, within 3-5 minutes (travel and get-away time) and less than a mile from the Development. The station will be known as Fire Station 95 and will be located at the corner of Tracy Hills Drive and Criseldo Mina Way from the project entrance. The second closest station is SSJCFA Fire Station #97 located at 595 W. Central Ave, Tracy, CA, approximately 4.6 miles and 9 minutes away from the planned project. Additional agencies such as Cal Fire Station 21 located west of the project and other nearby city fire departments would also respond equipment under mutual aid agreements but most likely arrive after SSJCFA engines were on-scene.

There is no assurance that the closest fire station, the #95 Engine Company, will be in its station when a wildfire threatens the Tracy Hills Project from an ignition in the adjacent wildland. Engines may respond from other stations located further away or from other incidents. On high/extreme fire danger days there often may be multiple fire starts and engine companies may be already deployed on other incidents. This is why planned communities use ‘*defensible space*’, ignition resistant building features, and key fuel treatment strategies to enable residents to substantially increase their ability to survive a wildfire on their own or until such time as firefighting equipment arrives and/or residents can be safely evacuated.

## 5.0 VEGETATION MANAGEMENT ZONE DESCRIPTIONS & REQUIRED TREATMENTS

Each property owner shall be responsible for maintaining the Vegetation Management Zones (VMZ) within their lot. In the event a lot or property is repossessed, the unit/agency holding title to the property will be responsible for VMZ maintenance. Below are the descriptions and required treatments for each VMZ. All distances in this report are measured horizontally. These distances are depicted on the attached Fire Protection Plan Exhibit (See Section 10.0). VMZ throughout the project will provide 100 feet or more of treated area from each structure, depending on the structure's location, which should be sufficient to mitigate for direct flame impingement and the radiant heat effects of a worst case wildland fire with 34.2 foot flame lengths from the southwest or west and 29.5 foot flame lengths on the northwest.

A significant portion of the project area shall consist of Irrigated Zone 1B landscaping which is maintained by the H.O.A. These maintained areas will also improve resident and emergency responder access during a wildfire event as irrigated landscaping will be located along all fire access roads. See Fire Protection Plan Exhibit for details.

### 5.1 Vegetation Management Zone 1A Owner Maintained (*Shown as No Color on the Fire Protection Plan Map Exhibits*)

#### **Defined,**

Vegetation Management Zone 1A is commonly called the defensible space zone and shall be composed of non-combustible, ignition-resistant, or self-extinguishing construction materials excluding fencing. It is an irrigated landscaped zone located throughout each lot. Its dimensions will therefore vary by lot size. It provides the best protection against the high radiant heat produced by wildfire. It also generally provides an open area in which fire suppression forces can operate during wildfire events. Landscaping installed in this area is much less likely to ignite due to maintenance, irrigation, and plant selection. This zone is typically located on a level or nearly level-graded area around each structure but on a portion of the lots within the development, will also include manufactured slopes within the homeowner's lot.

#### **Required Landscaping**

- Plants in this zone need to be fire resistant and shall not include any pyrophytes that are high in oils and resins such as pines, eucalyptus, cedar, cypress, or juniper species. Plants used in fuel modification zones should exhibit the following qualities to be the most "fire resistant: thick, succulent or leathery leaf species with high moisture content; tendency to produce limited litter; the presence of high salt levels or similar compounds which may contribute to fire resistance; ability to withstand drought; and the ability to withstand severe pruning. Refer to APPENDIX 'A' for the Prohibited Plant list.
- Zone 1A will be cleared of all fire prone and undesirable plant species (see APPENDIX 'A').
- Landscape designs using hardscape features such as driveways, swimming pools, concrete, rock, pavers, and similar non-combustible features to break up fuel continuity within Zone 1A are encouraged.
- Xeriscape™ designs, where compatible with hardscape features such as concrete, rock, pavers, water features, artificial turf installed on sand or non-combustible bases that meets a Class A fire resistant rating, and similar non-combustible or ignition resistant features are encouraged to break up fuel continuity within Zone 1A.

- Landscaping shall be permanently irrigated and primarily consist of fire-resistant, maintained native or ornamental plantings.
- Shrubs shall be low growing when planted over large areas. The mature height of most plants shall not exceed 24 inches.
- Groups of larger shrubs shall be spaced by the greater of the following two measurements: A distance of 15 feet minimum (or) 3 times the height of the tallest specimen in any of the groups.
- Shrubs of over 2 feet shall not be grown beneath or within 5 feet of the canopy of a tree.
- All small shrubs and trees may be in groups of 3 specimens or less. No horizontal spacing is required inside the group.
- Trees are to be planted such that the mature canopies will be at least 10 feet from the exterior walls of each structure or from the most distal point of a combustible projection, an attached accessory structure, or an accessory structure within 10 feet of a habitable building.
- Trees must have a minimum of six feet of vertical separation from low growing, irrigated vegetation beneath the canopy of each tree.

#### **Required Maintenance**

- Vegetation Management Zone 1A shall be maintained year-round by the owner(s) within their property boundary as required by this FPP and SSJCFA.
- Irrigation systems shall be checked bi-weekly to ensure proper working order.
- Any dead or dying plant material shall be removed and replaced as needed. Shrubs and trees are to be bi-annually maintained free of dead material.
- Trees must be maintained to have a minimum of six feet of vertical separation from low growing, irrigated vegetation beneath the canopy of each tree.
- All trees must be maintained to the current ANSI A300 standards [*Tree, Shrub, and Other Woody Plant Maintenance — Standard Practices (Pruning)*] (see [http://www.tcia.org/TCIA/TCIA/BUSINESS/A300\\_Standards/A300\\_Standards.aspx](http://www.tcia.org/TCIA/TCIA/BUSINESS/A300_Standards/A300_Standards.aspx)).

#### **5.2 Fuel Treatment Zone 1B – H.O.A. Maintained (Shown as Green on the Fire Protection Plan Map Exhibits)**

##### **Defined**

Zone 1B is an irrigated zone that includes manufactured slopes and greenbelts that are located in common areas and maintained by the H.O.A.

##### **Required Landscaping**

Same as Zone 1A. Drip irrigation should be considered for more remote manufactured slopes, especially during plant establishment.

##### **Required Maintenance**

Same as Zone 1A

#### **5.3 Vegetation Management Zone 2A (H.O.A. Maintained) - (Shown as Yellow on the Fire Protection Plan Map Exhibits)**

##### **Defined**

Zone 2A is a transition area between the strict requirements of Zone 1A or 1B and the frequently undisturbed native and exotic vegetation designed to maintain a reasonably open character in this area or may be located on manufactured slopes. Zone 2A is located in common areas, typically a non-irrigated thinning zone 50 - 100 from a structure depending on location beginning at the outer

edge of Zone 1A or 1B or within stormwater basins. Zone 2A is utilized to reduce the fuel load of a wildland area adjacent to buildings thereby reducing both radiant and convective heat of wildland fires. In areas where shrubs exist, the intent is to achieve and maintain an overall 50 percent reduction of the canopy cover spacing and a 50 percent reduction of the original fuel loading by reducing the fuel in each remaining shrub or tree without substantially decreasing the canopy cover. Care shall be taken not to remove soil holding root systems. Portions of the zone will be considered temporary as future development will eliminate the need for this fuel treatment.

#### **Required Landscaping**

- Thinning the native shrub vegetation where applicable to a point where 50% open space is created and only grass exists between the shrubs.
- Removal of all dead, woody debris and exotic flammable vegetation including designated prohibited plants (Appendix A).
- If native shrubs are located within a tree's drip line, the lowest branch of the tree shall be a distance from the ground of at least three times the height of the shrub or 10 feet, whichever is greater.
- Trees and shrubs may be established in this zone if they meet the plant species requirements set in Zone 1A. Trees should be separated by a minimum of 30 feet and not include any of the species found in Appendix 'A'. Shrubs shall be single specimens or a grouping not exceeding three plants.
- Allowances for the needs of protected species and habitats will be considered in this zone.
- No combustible construction or materials are allowed in Zone 2A.

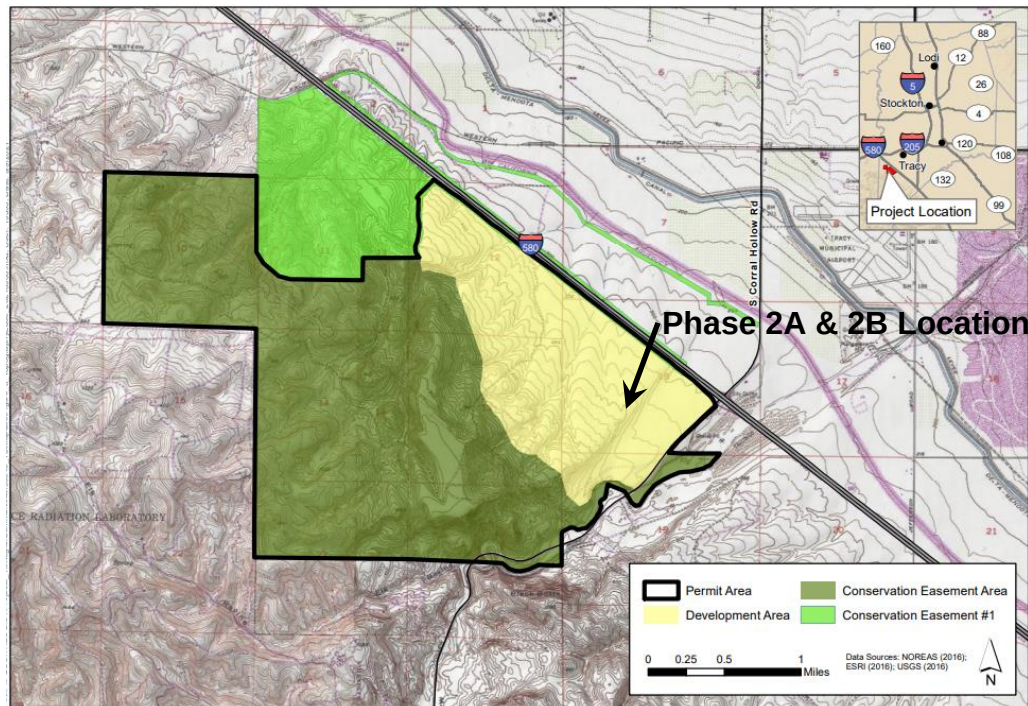
#### **Required Maintenance**

- As trees mature, annually maintain all tree crowns to keep a separation of ten feet between the ground fuels (shrubs and ground covers) and the lower limbs. All trees must be maintained to the current ANSI A300 standards [*Tree, Shrub, and Other Woody Plant Maintenance —Standard Practices (Pruning)*] see <https://www.isa-arbor.com/store/product/124>.
- Annually remove any undesirable exotic vegetation (see APPENDIX 'A') to maintain a 50% thinning from the original vegetation cover.
- Individual shrubs shall be thinned/pruned to reduce their foliage mass or fuel loading.
- Native and exotic annual and perennial grasses will be allowed to grow and produce seed during the winter and spring. As grasses begin to cure (dry out), they shall be cut to 4 inches or less in height and maintained at that height until the following growing season. Mowing and similar cutting methods should be restricted to the morning hours before 12 noon or when relative humidity is high such as on cloudy overcast days to reduce the chance of equipment starting a fire.
- Bi-annually remove all dead and dying vegetation and highly flammable exotic species (see APPENDIX 'A').

#### **5.4 Vegetation Management Zone 2B (Conservation Easement Grazing Tenant Land Manager Maintained) - (Shown as Blue on the Fire Protection Plan Map Exhibits)** **Defined**

Zone 2B is a transition area between the strict requirements of Zone 1A or 1B and undisturbed native and exotic vegetation designed to maintain a reasonably open character in this area. This zone is located in Conservation Easements: one established in October of 2011 for the Preserve Management Plan for the Tracy 580 BP Preserve (580 Preserve); second and third areas through

the creation of a Management Plan for the Tracy Hills Habitat Conservation Plan (THHCP); and Conservation Easement (CE) areas which was established in March 2021. Each plan is very similar, the main difference is that each addresses different land areas. What is important is that together they abut planned development on the west, north and a portion of the south side of the Development. See Illustration #4 below for the locations of each CE which abut the project on the North (CE1), and West and South (CE2 and CE3).



**Figure 1**  
Tracy Hills Management Plan: Conservation Easement Area

**Illustration #4 – Conservation Easements.** *The Development abuts two (2) Conservation Easements which contain requirements for the creation of a firebreak 70-feet in width each year adjacent to the Development.*

Vegetation Management Zone 2B will be located within lands identified in the THHCP and 580 Preserve. These CE Plans have been developed by ICF International of Sacramento, CA. Each plan calls for the CE holder, to ensure compliance with the terms of the CE Plans. This includes a key wildlife management responsibility to manage both plant and animal habits.

One of the key elements of each CE plan is a Grazing Tenant. The Grazing Tenant is the entity which will hold a grazing lease for the CE Area. The Grazing Tenant will graze cattle or other livestock on the CE areas consistent with provisions in the THHCP and 580 BP Preserve in coordination with a Land Manager. Cattle grazing will be used to maintain the grassland in optimum condition and maximize habitat values for San Joaquin kit fox and other THHCP and 580 BP Preserve covered species. To maintain optimum habitat values, average grass height should be maintained in the range of 3–12 inches year-round, with 4–7 inches being optimal. A grass height of 12 inches or above is acceptable for short periods during the growing season. This action will be effective in reducing the intensity of future wildland fires adjacent to the Tracy Hills Development.

An additional provision in the CE Plans is the requirement for the creation of a 70-foot-wide firebreak area immediately adjacent to those lots that abut the CE area. The Conservation Easement Grazing Tenant Land Manager will be annually responsible for construction and maintenance of the fuel break.

It should be noted that the THHCP permit period is for 15 years or until the permit is terminated. Any future permits shall include a provision for continued “firebreak maintenance” as this is critical to future community life safety.

#### **Required Landscaping**

No landscaping within this zone, it is all protected habitat where only grazing is allowed.

#### **Required Maintenance**

The following grazing management practices were extracted directly from one of the preserve management plans:

“A firebreak will be allowed within a 70-foot-wide area adjacent to proposed development as shown in the Fire Protection Plan Map Exhibit, Section 10.0. Mowing and disking will be permitted in the construction and maintenance of this 70-foot-wide firebreak. However, disking, mowing, and other forms of vegetation management other than grazing will be prohibited outside of the firebreak. This prohibition includes ground disturbance for the purpose of fuel management except as may be required for public safety under emergency conditions (e.g., if control of a wildfire requires use of bulldozer or other equipment). The Land Manager will be responsible for construction and maintenance of the firebreak.”

While the CE agreement allows for disking, the preferred maintenance method would be to mow the area. Disking while being highly effective frequently allows for the introduction of exotic species such as the highly flammable Russian Thistle and due to the soil disturbance, provides an area for wind erosion. Russian thistle or tumble weed can affect cattle health. Should they consume sufficient quantities of it, it can result in nitrate poisoning according to the University of Colorado’s Guide to Poisonous Plants.

#### **5.5 Roadside Fuel Treatment – H.O.A. Maintained (Shown as **Bright Green** on the Fuel Modification Plan Map Exhibits).**

All publicly accessible roads within the Tracy Hills Development shall be cleared of all combustible vegetation for a minimum of 20-feet on the side of each roadway and landscaped per the criteria outlined in Vegetation Management Zone 1B. Sidewalks and related non-combustible improvements may be placed in this fuel treatment zone to further increase the level of protection. The purpose of this action is to minimize the cutting-off of workers, property owners and guests from safely evacuating the area when a wildland fire occurs and for the safe ingress by emergency responders. In addition to Zone 1A and 1B, it is the most critical zone found within the Development.

## **5.6 No-Build Zone – Lot Owner Maintained (Shown as **Purple** on the Fire Protection Plan Map Exhibits)**

### **Defined**

The 'No Build Zone' is 30-feet in width and has the same landscaping and maintenance requirements as Zone 1A and is located on perimeter lots that front the CE area. No combustible structures, which include the house, can be built within this zone. Combustible decks, patio covers, and gazebos shall be prohibited in this zone. Heavy timber construction, non-combustible structures, patios, pools, etc. are allowed in this zone.

## **6.0 Construction Standards**

Construction requirements prior to lumber drop and by location within the Development.

### **Pre-Construction Requirements**

Prior to the delivery of any combustible building construction materials to the project site the following conditions shall be completed to the satisfaction of the SSJCFA:

- All wet and dry utilities, including fire hydrants, shall be installed and approved by the appropriate inspecting department or agency.
- Approved vehicle access for firefighting shall be provided to all construction sites prior to the start of construction.
- Clearance of Vegetation Management Zone 1A and 1B and Vegetation Management Zone 2A and 2B vegetation management shall be provided prior to combustible material arriving on the site and shall be maintained throughout the duration of construction. The SSJCFA may allow this clearance to occur in phases to help protect the soil from erosion.
- Street names shall be made available to the SSJCFA prior to the start of construction.
- Lot numbers and/or address identification shall be provided for each lot under construction and posted at the front of the unit.

### **Interior Structures**

All structures within the interior portions of the Development that are not located adjacent to wildland fuels shall meet all the building standards to the satisfaction of the SSJCFA and be designed and constructed pursuant to the Building, Fire, Plumbing, Electrical, and Mechanical codes as adopted by the State of California in addition to the Tracy Municipal Code. All construction shall meet the 2022 California Fire Code; 2022 California Building Code (CBC); and the California Residential Code, or the codes in force at the time of construction.

### **Perimeter Structures**

All perimeter structures located adjacent to wildland fuels shall be constructed per Chapter 7A of the California Building Code and per the California Residential Code, Section R337. The lots impacted are those located adjacent to Fuel Modification Zone 1B except when Zone 1B is located in a lot designated as a park, school, clubhouse, or similar area within the project. For a summary description of ignition resistant construction requirements under CBC Chapter 7A and CRC Section R337 for wildland urban interface zones as of the date of this report, see APPENDIX 'C'.

Any future additional structures (such as additions, etc.) within any perimeter lot that abuts wildland fuels will require evaluation; will need to be designed and constructed with the current Ignition

Resistant Construction requirements in place at the time of approval; and comply with the the construction requirements outlined in APPENDIX ‘C’. Fire or building officials may require additional mitigation on a case-by-case basis. All non-habitable accessory structures such as decks, balconies, patios, covers, and gazebos shall be built from non-combustible, ignition resistant, or heavy timber materials. The owners are not restricted from having concrete or stone patios and walkways or swimming pools within their property in compliance with other codes. Refer to APPENDIX ‘B’ for photos and descriptions of non-combustible decks, patio covers, and railings for non-habitable accessory structures.

### **Additional Construction Requirements Required for all Lots**

In addition to the requirements listed above, the following are required for all lots located within the Development:

1. All operable windows shall be provided with metal mesh bug screens or similar non-combustible screens over the operable opening to replace traditional vinyl bug screens to prevent embers from entering the structure during high wind conditions when windows may be inadvertently left open.
2. All vents shall be flame and ember resistant type vents such as “Brandguard”, “O’Hagin Fire & Ice® Line – Flame and Ember Resistant” or other equivalent product.

## **7.0 INFRASTRUCTURE**

The basic systems needed to develop a property and support its use by its residents and businesses. For fire protection planning, these typically consist of the water supply for fire hydrants and fire sprinkler systems and accessways to and from the property.

### **7.1 Water Supply**

The water supply will be provided by the City of Tracy. The water supply shall consist of pressure tanks, elevated tanks, water mains or other fixed systems capable of providing the required fire flow. Per table B105.1 of the California Fire Code, the minimum fire flow for each hydrant within residential areas shall be 1,000 GPM at 20 psi residual pressure for a 2-hour duration. This flow is based on the exception that is allowed for buildings with automatic sprinkler systems. The minimum fire flow for schools and commercial property shall be 2,500 GPM at 20 psi residual pressure for a 4-hour duration. The SSJCFA may, at their discretion, require an alternative flow based on their equipment and anticipated future needs. The water supply system shall be designed as a looped system to allow water to be supplied from more than one source.

The location, size, type, and number of fire hydrants shall be reviewed and approved by the SSJCFA Fire Marshal prior to their installation. Each new fire hydrant shall meet the current SSJCFA and the City of Tracy Engineering Design & Construction standards.

For all commercial buildings and schools, protected with an automatic fire extinguishing system, a Fire Control Room shall be provided in which are housed the control valves and where practical, the fire alarm panel, smoke exhaust controls and all other equipment (excluding fire pump) as designated by the fire code official. If electrical power equipment is not located within the Fire Control Room, then, it shall be in a room immediately adjacent thereto or as approved by the fire code official. The fire control room shall be located so as to be directly accessible

from the exterior of the building and provided with a durable and permanent sign on the exterior of the access door to identify the space as the fire control room.

## **7.2 Access Roads**

The primary ingress and egress for the Development will be from Corral Hollow Road. The major North/South roadway within the development is designated as Sierra View Drive and will be a minimum of 4-lanes in width. Several interior 2-lane roadways will connect to Sierra View Drive to create several looped roadways that link with Sierra View Drive.

The City of Tracy has approved the Tracy Hills Specific Plan which calls for access improvements to Interstate 580 and Corral Hollow Road. The Tracy Hills Development plan calls for the extension of the 4-lane Sierra View Drive within the Development westerly then northerly through an existing underpass of Interstate 580 as an interim accessway. Due to the width of this underpass, only two-lane traffic can be supported at this time creating a potential bottleneck for not only evacuation but emergency response. The City and developer will need to coordinate the timing of the new I-580 and Sierra View Drive interchange construction for Phases 3 and 4 to support safe evacuation and ingress.

All roadways within the Development that provide access shall be termed 'Fire Access Roads' within this FPP. The fire access roads shall meet the requirements of the SSJCFA and shall be of a paved all-weather surface capable of supporting loads of 70,000 lbs gross vehicle weight and with overhead clearance that is a minimum of 13 feet 6 inches. All interior access roads shown in Illustration #1 shown on page 2 shall be a minimum of 36 feet in width to accommodate fire apparatus and allow parking on both sides of each roadway. A width of 30 feet is allowed if parking is only allowed on one side of the roadway. Grades must not exceed 10% however, grades between 10% and 15% may be allowed for short distances but must be paved with brushed concrete or an equivalent material that is approved by the SSJCFA.

Traffic calming devices shall be prohibited unless approved by the fire code official.

Each fire apparatus access road shall comply with the requirements of this section and shall extend to within 150 feet of all portions of the exterior walls of the first story of any building as measured by an approved route around the exterior of the building or facility. The Development shall be designed such that all sides of each structure can be reached with a maximum hose pull of 150 feet from a fire apparatus. Fire access roads shall be maintained for clear access for emergency vehicles. No vehicle storage, such as RV's and boats, shall be allowed along all fire access roadways.

Where a bridge or an elevated surface is part of a fire apparatus access road, the bridge shall be constructed and maintained in accordance with AASHTO HB-17 and designed per the San Joaquin County Fire Apparatus Access Road Standard. Bridges and elevated surfaces shall be designed for a live load sufficient to carry the imposed loads of fire apparatus.

Dead-end roads that are over 150 feet in length shall be provided with an approved fire apparatus turnaround. Turnarounds can range from cul-de-sacs that are a minimum of 24 feet in improved width to hammerhead turnaround roadway configurations. No parking shall be allowed within any cul-de-sacs or turnarounds. The area shall be signed to indicate "No Parking" per City of Tracy requirements.

### **7.3 Gates and Bollards**

Gates whether installed during construction or in the future, and intended for automatic operation, shall be designed, constructed, and installed to comply with the requirements of ASTM F 2200. All manual gates shall be equipped with a Knox-Box containing a key to the gate, or an approved Knox-Padlock. As part of the California Building Code, per Division 10 – Development Regulations, Chapter 9-1022.2(f) requires that gates to be setback from the property line a minimum of ten (10) feet. Knox switches shall be provided on both sides of any gate unless an exit loop is provided at automatic gates.

Electric gate operators, where provided, shall be listed in accordance with UL 325. Each gate shall be equipped with traffic preempting optical signal receivers compatible with the emitters used by the SSJDFA which will activate each gate and override all command functions of the gate controller. All automatic gates shall have a battery back-up, or a manual mechanical disconnect readily accessible to emergency personnel in case of power failure.

Removeable bollards in roadways are often used to limit access to all but emergency responders, bicyclists, and pedestrians. To ensure that the posts can be easily removed, the H.O.A. shall have bollards, located on private streets, inspected, and tested yearly to ensure that they do not have debris within the collar that goes into the ground that might prevent their easy removal. As an alternative, fold down bollards may be utilized. Each bollard shall have a locking mechanism approved by the SSJCFA.

### **7.4 Signage and Address Identification**

A metal sign with raised letters at least 1 inch (25 mm) in stroke width shall be mounted on all fire department connections serving automatic sprinklers, standpipes, or fire pump connections. Such signs shall read: AUTOMATIC SPRINKLERS or STANDPIPES or TEST CONNECTION or a combination thereof as applicable.

All structures shall be provided and maintained with approved address identification. The identification shall comply with all the following:

1. Not less than 4" high with a 1/2" stroke width
2. Located a minimum of 6' above grade.
3. Illuminated at night. Illumination shall be either internally or externally at a minimum intensity of 5.0 foot-candles.
4. Numbers shall contrast with the background.
5. Numbers shall be placed on a portion of the building that is both legible and visible from the street that fronts the property.
6. Numbers shall not be placed on a moveable door and shall not be obstructed from view from the street.
7. Addresses shall be English numbers or alphabetical letters and conventional in form.

## **8.0 HOMEOWNER/BUYER REQUIREMENTS AND EDUCATION**

This portion of the FPP provides both methods for residents to reduce the likelihood of starting a fire (risk) and information concerning evacuation should evacuation be needed. Each homeowner, by reviewing this Fire Protection Plan, shall be aware of the herein described fire protection measures; the types of non-combustible construction; and the plant materials that are allowed within the Development. Of particular importance to each homeowner are Section 5.1 and Appendices 'A', 'B' and 'C' of this plan, which provide guidance in the types of plants that are prohibited in Vegetation Management Zones and appropriate building measures for decks and patios. Plant selection is critical as embers often travel over a mile during strong wind driven wildland fire events.

A copy of this FPP shall be available in the Tracy Hills Sales office for review by any potential owner, employee, or worker. A copy of this Fire Protection Plan shall be provided to each initial buyer at the close of escrow. In all subsequent sales of the property, the new property owner(s) shall be provided with a copy of this FPP by the escrow company to ensure continued compliance with all Fire Protection Plan maintenance and construction requirements contained herein.

The Rules and Regulations for the Association, shall inform its residents that in the event of a wildland fire, they should always relocate to a safe area well beyond the path of the threatening wildland fire. The ignition resistant buildings will have a 'defensible space' area around each structure for firefighters to make their stand in the protection of each structure. In the event firefighting forces are not readily available, the defensible space will substantially increase the probability of 'structure survivability'.

When performing maintenance such as mowing or using a chainsaw, be especially careful as a spark can start a wildfire. The use of battery-operated equipment is less likely to cause a problem. Modern battery technology includes a heat sensor inside the electric motor and when it gets hot it flips a switch killing the motor until it has had a chance to cool down. This feature lessens the likelihood of a fire.

The Project electricity is provided by the East Bay Community Energy (EBCE). To reduce the risk of a fire starting, EBCE may elect in the future to implement what is known as a Public Safety Power Shutoff (PSPS). This may occur when there are high winds or a forecast for them and very high or extreme wildland fire danger.

Electricity is required to operate garage doors and landscape irrigation systems. Should a PSPS notification be issued, it is highly recommended that the vehicle that would be used to evacuate be taken out of the garage and parked in the driveway prior to electricity being shut down. During an electric outage, the irrigation system may have to be operated manually to maintain high moisture levels.

Where this FPP requires specific construction features, these features shall not be changed without the approval of the SSJCFA. These features are required to maintain reasonable fire safety.

Homeowners should be aware that smoke is harmful to your health, especially if a person has asthma or chronic obstructive pulmonary disease, including bronchitis and emphysema. People with pre-existing health conditions related to the heart or circulatory systems may want to relocate to a safe area before official notification to relocate to avoid smoke impacts. It is recommended that people leave the area affected by wildfire smoke if indoor air cannot be kept clean.

Ready, Set, Go is the evacuation strategy proposed for this Development as described on the Cal Fire website (<https://www.readyforwildfire.org/prepare-for-wildfire/ready-set-go/>) Should a wildfire exist that threatens the property or safety of people located in the Tracy Hills Development, the following actions shall be implemented:

**1. Ready – Preparing for the Fire Threat:** *Take personal responsibility and prepare long before the threat of a wildfire so the home is ready in case of a fire. Maintain a defensible space by clearing brush away from all structures. Use fire-resistant landscaping and harden structures with fire-safe construction measures. Assemble emergency supplies and belongings in a safe spot. Make sure all individuals within the area are ‘on the same page’ in commitment to advance preparation. Plan escape routes.*

**2. Set – Situational Awareness When a Fire Starts:** *Pack vehicle(s) with emergency items. Stay aware of the latest news from local media and the local fire department for updated information on the fire and perform the following:*

- ✓ *Close all windows and doors that lead outside to prevent sparks from entering the house.*
- ✓ *Close all doors within the house in case the house does catch on fire; this will slow down the spread of the fire from room to room.*
- ✓ *Move all combustible materials in the home away from windows to prevent the possibility of heat from a fire radiating through windows and glass doors and catching flammable materials inside the home on fire. This includes drapes, curtains and furniture.*
- ✓ *Close windows and all Venetian blinds or noncombustible window coverings.*
- ✓ *Turn on the lights in each room, porch, and yard. This aids in visibility when the smoke gets thick and darkens the sky.*
- ✓ *Fill all sinks, bathtubs and buckets with water in case the power goes out.*
- ✓ *Shut off any gas valves within the house or outside.*
- ✓ *Open the damper on fireplaces to stabilize inside/outside pressure, but close fireplace screens to keep sparks from igniting the house.*

**3. Go – Leave early!** *Following an Action Plan makes one prepared and firefighters are now able to best maneuver the wildfire and ensure everyone’s safety. Follow instructions given by the Fire Department official on site.*

## **9.0 Mandated Inclusions in the CC&R’s**

The CC & R’s shall include the following statements:

- 1) Each lot owner is personally responsible for all Zone 1A landscaping and fuel treatment measures within their property.
- 2) Each lot owner shall annually financially contribute their fair share of HOA required fuel treatment costs.
- 3) Addition permanent structures, must be reviewed and approved by the the South San Joaquin County Fire Authority.

- 4) The South San Joaquin County Fire Authority will hold the each property owner accountable for compliance with all wildland fire protection issues discussed in this plan.
- 5) Residents are prohibited from dumping or disposing of trash or green waste in the fuel treatment zones or open space areas.
- 6) The H.O.A. is responsible to the South San Joaquin County Fire Authority for the completion of all required Fuel Treatments in the common areas. Required on-going maintenance will be accomplished on an as needed basis. Should maintenance not be performed in a manner consistent with this Plan, the South San Joaquin County Fire Authority shall have the right to abate any treatment zone they deem a threat to the Tracy Hills Development or adjoining properties. In doing so, all costs incurred will be billed to the owner(s). At the discretion of the South San Joaquin County Fire Authority Fire Marshal, yearly inspection of treatment areas may be required.
- 7) The irrigation system for all Fuel Modification Zones shall be kept in good condition and proper working order. The irrigation system shall not be turned off except for necessary repairs, maintenance or during extended rainfall.
- 8) Any disputes related to individual lot landscaping or fuel treatment, with respect to interpretation of the Fire Protection Plan, shall be decided by the South San Joaquin County Fire Authority or its designated representative and whose decision shall be final and binding on the lot owner.

## **10.0 FIRE PROTECTION PLAN MAP EXHIBIT**

Attached to this FPP are the Tracy Hills Phase 2 Fire Protection Map Exhibits or a file containing the exhibit depicting the location of all proposed fuel treatments within each Village, as well as roads, lot lines and project boundaries. These maps also depict adjacent roadways and stormwater basins for the interlinking of fuel treatments.

**Note:** All the photos within this document were taken in May of 2021. The state and local area have experienced a significant drought and the vegetative cover is thus lighter than what would typically be seen. The 3<sup>rd</sup> driest water year (October to March) on record was in 2021 based on more than 100 years of precipitation records according to the California Department of Water Resources.

# **APPENDIX ‘A’**

## **Prohibited Plants and Trees**

# APPENDIX 'A'

## Prohibited Plants and Trees For Fuel Modification Zones in Moderate, High & Very High Hazard Areas

The following plant species are highly flammable and are more susceptible to burning, due to rough or peeling bark, production of large amounts of litter, vegetation that contains oils, resin, wax, or pitch, large amounts of dead material in the plant, or plantings with a high dead to live fuel ratio.

| Botanical Name                                                         | Common Name          | Plant Form   |
|------------------------------------------------------------------------|----------------------|--------------|
| Acacia species                                                         | Acacia               | Shrub/Tree   |
| Adenostema fasciculatum                                                | Chamise              | Shrub        |
| Adenostema sparsifolium                                                | Red Shank            | Shrub/Tree   |
| Arborvitae                                                             | Thuja                | Shrub/Tree   |
| Artemisia californica                                                  | California Sagebrush | Shrub        |
| Anthemis cotula                                                        | Mayweed              | Weed         |
| Arundo donax                                                           | Giant reed           | Grass/weed   |
| Bambusa species                                                        | Bamboo               | Shrub        |
| Brassica nigra                                                         | Black Mustard        | Weed         |
| Brassica ropa                                                          | Yellow Mustard       | Weed         |
| Cedrus species                                                         | Cedar                | Tree         |
| Cirsim vugare                                                          | Wild Artichoke       | Weed         |
| Conyza canadensis                                                      | Horseweed            | Weed         |
| Cortaderia selloana                                                    | Pampas Grass         | Tall Grass   |
| Cupressus species                                                      | Cypress              | Tree         |
| Cytisus species                                                        | Broom                | Shrub        |
| Eriogonum fasciculatum                                                 | Common Buckwheat     | Shrub        |
| Eucalyptus species                                                     | Eucalyptus           | Shrub/Tree   |
| Gensita species                                                        | Broom                | Shrub        |
| Hedera canariensis                                                     | Algerian Ivy         | Ground Cover |
| Heterotheca grandiflora                                                | Telegraph plant      | Weed/shrub   |
| Juniperus species                                                      | Junipers             | Shrub        |
| Miscanthus sinensis                                                    | Maiden Grass         | Tall Grass   |
| Nicotiana bigelevelil                                                  | Indian tobacco       | Shrub        |
| Palmae species                                                         | Palms                | Tree         |
| Pennisetum species                                                     | Fountain Grass       | Ground cover |
| Picea species                                                          | Spruce               | Tree         |
| Pinus species                                                          | Pines                | Tree         |
| Rosmarinus species                                                     | Rosemary             | Shrub        |
| Retama monosperma                                                      | Broom                | Shrub        |
| Salvia species *                                                       | Sage                 | Shrub        |
| Silybum marianum                                                       | Milk thistle         | Weed         |
| Spartium junceum                                                       | Spanish Broom        | Shrub        |
| Ulex europea                                                           | Gorse                | Shrub        |
| Washingtonia species                                                   | Palms                | Tree         |
| * Except -Salvia columbariae (chia), Salvia sonomensis (Creeping Sage) |                      |              |

**Notes:**

- A. Certain natives are suitable to use in Fuel Modification Zone 2, where noted, if maintained. See comments in the Comment column.
- B. Plants that freeze should not be planted as they create additional maintenance requirements and fuel for wildfire.
- C. Not all plants could be listed. Here are the characteristics of more fire prone species:
  - Dry and dead leaves or twigs
  - Dry, leathery leaves
  - Abundant, dense foliage
  - High oil or resin content including gums or terpenes.
  - Shaggy, rough, or peeling bark
  - Abundant number of dead leaves underneath the plant (litter)
  - Needle-like or very fine leaves
  - Foliage with low moisture

**Information:**

1. Some plants on this list that are considered invasive. There are many other plants considered invasive that should not be planted in a fuel modification zone and they can be found on The California Invasive Plant Council's Website [www.cal-ipc.org/ip/inventory/index.php](http://www.cal-ipc.org/ip/inventory/index.php). Other plants not considered invasive at this time may be determined to be invasive after further study.
2. For the purpose of using this list as a guide in selecting plant material, it is stipulated that all plant material will burn under various conditions.
3. The absence of a particular plant, shrub, groundcover, or tree from this list does not necessarily mean it is fire resistive and does not imply that a particular plant, shrub, groundcover, or tree will be approved by the fire code official or H.O.A. for landscaping in a Wildland Urban Interface Fire Area.
4. Landscape architects may submit proposals for use of certain vegetation on a project specific basis. They shall also submit justifications as to the fire resistivity of the proposed vegetation.
5. Tracy is located USDA Climate Zone 9b or Climate Zones 9b as defined in Sunset Western Garden Book. Plants, shrubs, groundcover, or trees recommended for this climate zone can be submitted for approval for landscaping purposes unless the plant is listed in this prohibited list.
6. Native, drought tolerant plants are encouraged unless they are on this list or otherwise known as flammable or invasive. Note that invasive species tend to require more maintenance and are therefore discouraged.
7. Notwithstanding the type of plant not included on this list, spacing and configuration of plantings in relationship to structures is critical to stopping fire spread. Spacing and configuration shall be approved by the H.O.A.
8. This list was created by **Firewise2000, LLC**. It is based on a review of several public agencies, non-profits and firesafe councils lists utilized in central and northern California and **Firewise2000, LLC** personal knowledge and experience.

## **APPENDIX ‘B’**

### **Examples of Non-Combustible & Ignition Resistant Building Materials For Balconies, Carports, Decks, Patio Covers and Floors**

# Appendix B

## Non-Combustible & Fire-Resistant Building Materials For Balconies, Carports, Decks, Patio Covers and Floors

**Note:** The Office of the State Fire Marshal (SFM) Fire Engineering Division administers licensing programs and performs engineering functions affecting consumer services and product evaluation, approval and listing. The following link is to the State Fire Marshal's office for more information on the Building Material List for non-combustible and fire resistant building materials: <https://osfm.fire.ca.gov/divisions/fire-engineering-and-investigations/building-materials-listing/bml-search-building-materials-listing>.

Examples of non-combustible & fire-resistant building materials for balconies, carports, decks, patio covers, and floors are listed below. These are only examples, and materials listed here must meet local fire and building codes and are not an endorsement of any brand or manufacturer.

### I. NON-COMBUSTIBLE HEAVY GAGE ALUMINUM MATERIALS - Metals USA Building Products Group - Ultra-Lattice



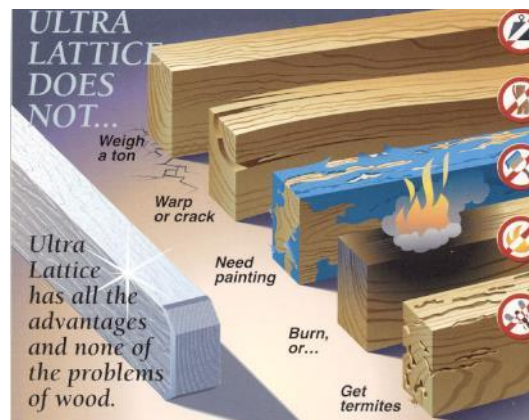
**Ultra-Lattice Stand Alone Patio Cover**



**Ultra-Lattice Attached Patio Cover**



**Ultra-Lattice Solid Patio Cover**



**Ultra-Lattice Vs. Wood**

## II. FRX EXTERIOR FIRE-RETARDANT TREATED WOOD

FRX® fire retardant treated wood may be used in exterior applications permitted by the codes where: public safety is critical, other materials would transfer heat or allow fires to spread, sprinkler systems cannot easily be installed, corrosive atmospheres necessitate excessive maintenance of other materials, or fire protection is inadequate or not readily available. The International Building, Residential and Urban Wildland Interface Codes and regulations, permit the use of fire-retardant treated wood in specific instances. See below for typical exterior uses and typical residential uses.

### *Typical Exterior Uses*

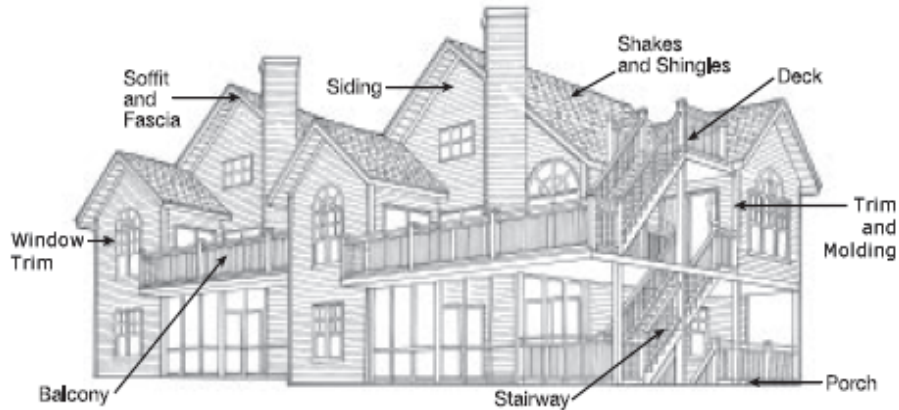
- Wall coverings
- Balconies
- Decks
- Stairways
- Fences
- Sheds
- Gazebos
- Roof coverings
- Open-air roof systems
- Canopies and awnings
- Storefronts and facades
- Eaves, soffits and fascia
- Agricultural buildings and horse stalls
- Scaffolding and scaffold planks
- Construction staging
- Various other residential and commercial uses



Property owners and Architects: See this [2-minute video](#) and the illustration below.



### **Typical Residential Uses**



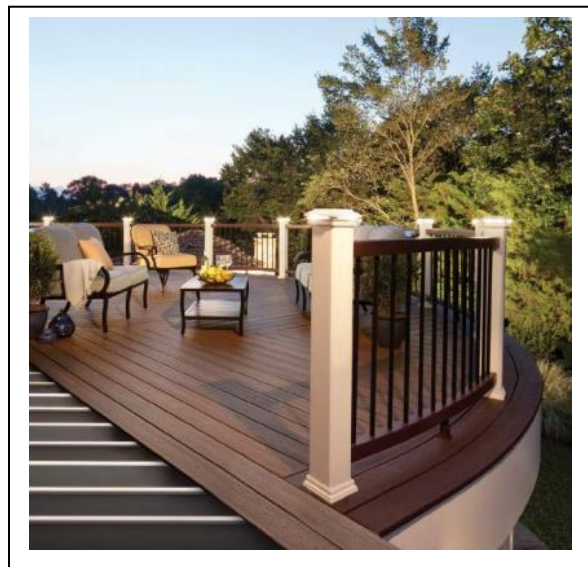
Rising concerns over fire damage and the adoption of urban-wildland interface codes have increased the use of FRT wood in residential structures.

For information on fire retardant treated wood for exterior uses, visit [www.frxwood.com](http://www.frxwood.com).

### **III. DECKING MATERIALS**

**Trex Company, Inc.** – “Trex Transcend®, Trex Select® and Trex Enhance® wood and polyethylene composite deck board, nominal ranging in size from 1” x 5-1/2” to 1-3/8” x 5-1/2” installed per manufacturer maximum edge-to-edge gap of 3/16”. All Trex decking products meet or exceed the SFM 12-7A-4A testing protocol.

Trex combines both beauty and fire defense. A few examples of installations are shown below:





#### **IV. SOLID “WOOD” DECKING**

Company Name: Various Manufacturers

Product Description: Solid “Wood” decking, when installed over minimum 2” x 6” solid “Douglas Fire” or better joists, space 24” or less on center, and decking and joints comply with American Softwood Lumber Standard PS2o as follows:

Minimum nominal 5/4” thick and nominal 6” wide decking boards with a maximum 3/8” radius edges made of solid wood species “Redwood”, “Western Red Cedar”, “Incense Cedar”, “Port Orford Cedar”, or “Alaska Yellow Cedar” having a Class B Flame Spread rating when tested in accordance with ASTM E84. Lumber grades; construction common, commercial or better grade for Redwood; 3 common, commercial or better grades for Cedars.

## V. Vents

### Examples of Ember Resistant Approved Vents

#### Brandguard



#### O'Hagin Fire & Ice® Line – Flame and Ember Resistant

An available option for all O'Hagin attic ventilation products, this attic vent not only features all the same design, construction elements and color choices as the O'Hagin Standard Line, but also features an interior stainless-steel matrix that resists the intrusion of flames and embers. This patent-pending attic vent is accepted for use by many local fire officials for installation in Wildland Urban Interface (WUI) zones.





## Vulcan Vents

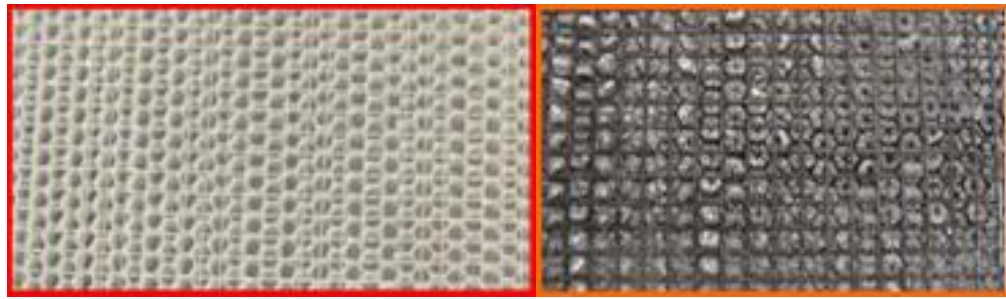
The founders of Gunter Manufacturing have been working closely over the last two years, with the scientists and inventors of Vulcan Technologies to bring to market this incredible product.

Combining our quality vent products with the fire-stopping honeycomb matrix core designed by Vulcan has produced unique and remarkable results.

At Gunter manufacturing has over 50 years of combined sheet metal manufacturing experience. Special orders are not a problem. Their vent frames are industry standard frames so there is little or no learning curve for installers and contractors. Their stated goal is to provide people with the vents they need to secure their homes with additional safety against wildfires and give them piece of mind from knowing that their home or structure is protected by a product that works!

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The core of their fire and ember safe vents are manufactured out of hi-grade aluminum honeycomb and coated with an intumescent coating made by [FireFree Coatings](#). The intumescent coating is designed to quickly swell up and close off when exposed to high heat. The expanded material acts as an insulator to heat, fire, and embers

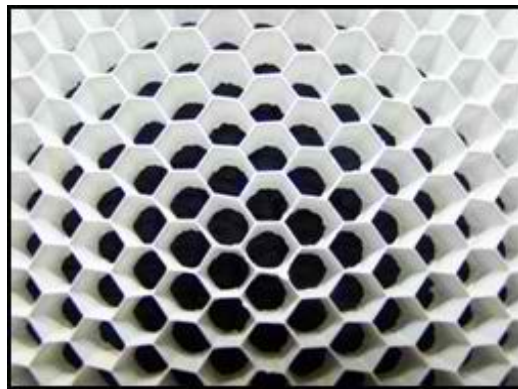


**Before**

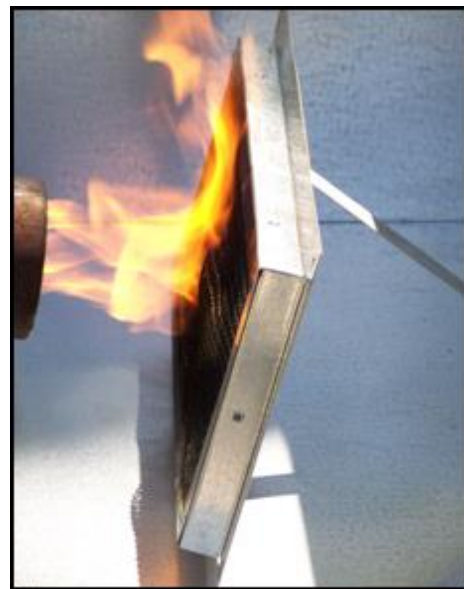
**After**

After the cells close off, they are extremely well insulated, and fire or embers cannot penetrate.

Even before the cells close off, the vent is designed to protect against flying embers. In many cases embers will attack a structure before fire ever comes near, so this feature is very important.



**Close-up of the coated honeycomb matrix.**



Fire easily passes through a standard vent, on the left, but stops cold when it comes up against a Vulcan Vent shown on right.

# **APPENDIX ‘C’**

## **Ignition Resistant Construction Requirements**

# Appendix ‘C’

## Ignition Resistant Construction Requirements

The following is a summary of the current requirements for ignition resistant construction for high fire hazard areas under Chapter 7A of the California Building Code (CBC) and California Residential Code, Section R337. However, the requirements listed below are not all inclusive and all exterior building construction including roofs, eaves, exterior walls, doors, windows, decks, and other attachments must meet the current CBC Chapter 7A ignition resistance requirements, the California Fire Code, and any additional County and/or City codes in effect at the time of building permit application. See the current applicable codes for a detailed description of these requirements and any exceptions.

1. All structures will be built with a Class A Roof Assembly and shall comply with the requirements of Chapter 7A and Chapter 15 of the California Fire Code. Roofs shall have a roofing assembly installed in accordance with its listing and the manufacturer’s installation instructions.
2. Roof valley flashings shall be not less than 0.019-inch (0.48 mm) No. 26 gage galvanized sheet corrosion-resistant metal installed over not less than one layer of minimum 72-pound (32.4 kg) mineral-surfaced nonperforated cap sheet complying with ASTM D3909, at least 36-inch-wide (914 mm) running the full length of the valley.
3. Attic or foundation ventilation louvers or ventilation openings in vertical walls shall be covered with a minimum of 1/16-inch and shall not exceed 1/8-inch mesh corrosion-resistant metal screening or other approved material that offers equivalent protection.
4. Where the roof profile allows a space between the roof covering and roof decking, the spaces shall be constructed to resist the intrusion of flames and embers, be fire stopped with approved materials or have one layer of a minimum 72-pound (32.4 kg) mineral-surfaced nonperforated cap sheet complying with ASTM D3909 installed over the combustible decking.
5. Enclosed roof eaves and roof eave soffits with a horizontal underside, sloping rafter tails with an exterior covering applied to the under-side of the rafter tails, shall be protected by one of the following:
  - noncombustible material
  - Ignition-resistant material
  - One layer of  $\frac{5}{8}$ -inch Type X gypsum sheathing applied behind an exterior covering on the underside of the rafter tails or soffit
  - The exterior portion of a 1-hour fire resistive exterior wall assembly applied to the underside of the rafter tails or soffit including assemblies using the gypsum panel and sheathing products listed in the Gypsum Association Fire Resistance Design Manual
  - Boxed-in roof eave soffit assemblies with a horizontal underside that meet the performance criteria in Section 707A.10 when tested in accordance with the test procedures set forth in ASTM E2957.

- Boxed-in roof eave soffit assemblies with a horizontal underside that meet the performance criteria in accordance with the test procedures set forth in SFM Standard 12-7A-3.

**Exceptions:** The following materials do not require protection:

1. Gable end overhangs and roof assembly projections beyond an exterior wall other than at the lower end of the rafter tails.
2. Fascia and other architectural trim boards.

6. The exposed roof deck on the underside of unenclosed roof eaves shall consist of one of the following:

- Noncombustible material, or
- Ignition-resistant material, or
- One layer of 5/8-inch Type X gypsum sheathing applied behind an exterior covering on the underside exterior of the roof deck, or
- The exterior portion of a 1-hour fire resistive exterior wall assembly applied to the underside of the roof deck designed for exterior fire exposure including assemblies using the gypsum panel and sheathing products listed in the Gypsum Association fire Resistance Design Manual.

**Exceptions:** The following materials do not require protection:

1. Solid wood rafter tails on the exposed underside of open roof eaves having a minimum nominal dimension of 2 inch (50.8 mm).
2. Solid wood blocking installed between rafter tails on the exposed underside of open roof eaves having a minimum nominal dimension of 2 inch (50.8 mm).
3. Gable end overhangs and roof assembly projections beyond an exterior wall other than at the lower end of the rafter tails.
4. Fascia and other architectural trim boards.

7. Vents - ventilation openings for enclosed attics, enclosed eave soffit spaces, enclosed rafter spaces formed where ceilings are applied directly to the underside of roof rafters, and underfloor ventilation openings shall be fully covered with metal wire mesh, vents, other materials or other devices that meet one of the following requirements:

- A. Vents listed to ASTM E2886 and complying with all the following:

- i. There shall be no flaming ignition of the cotton material during the Ember Intrusion Test.
- ii. There shall be no flaming ignition during the Integrity Test portion of the Flame Intrusion Test.
- iii. The maximum temperature of the unexposed side of the vent shall not exceed 662°F (350°C).

- B. Vents shall comply with all the following:

- i. The dimensions of the openings therein shall be a minimum of 1/16-inch (1.6 mm) and shall not exceed 1/8-inch (3.2 mm).
- ii. The materials used shall be noncombustible.

**Exception:** Vents located under the roof covering, along the ridge of roofs, with the exposed surface of the vent covered by noncombustible wire mesh, may be of combustible materials.

- iii. The materials used shall be corrosion resistant.

8. Vents shall not be installed on the underside of eaves and cornices.

**Exceptions:**

1. Vents listed to ASTM E2886 and complying with all the following:
    - There shall be no flaming ignition of the cotton material during the Ember Intrusion Test.
    - There shall be no flaming ignition during the Integrity Test portion of the Flame Intrusion Test.
    - The maximum temperature of the unexposed side of the vent shall not exceed 662°F (350°C).
  2. The enforcing agency shall be permitted to accept or approve special eave and cornice vents that resist the intrusion of flame and burning embers.
  3. Vents complying with the requirements of Section 706A.2 shall be permitted to be installed on the underside of eaves and cornices in accordance with either one of the following conditions:
    - 3.1. The attic space being ventilated is fully protected by an automatic sprinkler system installed in accordance with Section 903.3.1.1 or,
    - 3.2. The exterior wall covering, and exposed underside of the eave are of noncombustible materials, or ignition-resistant materials, as determined in accordance with SFM Standard 12-7A-5 Ignition-Resistant Material and the requirements
9. All chimney, flue or stovepipe openings that will burn solid wood will have an approved spark arrester. An approved spark arrester is defined as a device constructed of nonflammable materials, having a heat and corrosion resistance equivalent to 12-gauge wire, 19-gauge galvanized steel or 24-gauge stainless steel, or other material found satisfactory by the Fire Protection District, having ½-inch perforations for arresting burning carbon or sparks nor block spheres having a diameter less than 3/8 inch (9.55 mm). It shall be installed to be visible for the purposes of inspection and maintenance and removeable to allow for cleaning of the chimney flue.
10. All multi-family structures will have automatic interior fire sprinklers installed according to the National Fire Protection Association (NFPA) 13R 2019 edition - Standard for the Installation of Sprinkler Systems in Low-Rise Residential Occupancies.
11. All single-family structures will have automatic interior fire sprinklers installed according to the National Fire Protection Association (NFPA) 13D 2019 edition – Standard for the Installation of Sprinkler System in One- and Two-Family Dwellings and Manufactured Homes.7
12. The exterior wall covering or wall assembly shall comply with one of the following requirements:
- Noncombustible material, or
  - Ignition resistant material, or
  - Heavy timber exterior wall assembly, or
  - Log wall construction assembly, or
  - Wall assemblies that have been tested in accordance with the test procedures for a 10-minute direct flame contact expose test set forth in ASTM E2707 with the conditions of acceptance shown in Section 707A.3.1 of the California Building Code, or

- Wall assemblies that meet the performance criteria in accordance with the test procedures for a 10-minute direct flame contact exposure test set forth in SFM Standard 12-7A-1.

**Exception:** Any of the following shall be deemed to meet the assembly performance criteria and intent of this section including;

- One layer of 5/8-inch Type X gypsum sheathing applied behind the exterior covering or cladding on the exterior side of the framing, or
- The exterior portion of a 1-hour fire resistive exterior wall assembly designed for exterior fire exposure including assemblies using the gypsum panel and sheathing products listed in the Gypsum Associate Fire Resistance Design Manual.

13. Exterior walls shall extend from the top of the foundation to the roof and terminate at 2-inch nominal solid blocking between rafters at all roof overhangs, or in the case of enclosed eaves, terminate at the enclosure.
14. Gutters shall be provided with the means to prevent the accumulation of leaf litter and debris within the gutter that contribute to roof edge ignition.
15. All rain gutters, down spouts and gutter hardware shall be constructed from metal or other noncombustible material to prevent wildfire ignition along eave assemblies.
16. No attic ventilation openings or ventilation louvers shall be permitted in soffits, in eave overhangs, between rafters at eaves, or in other overhanging areas.
17. All projections (exterior balconies, decks, patio covers, unenclosed roofs and floors, and similar architectural appendages and projections) or structures less than five feet from a building shall be of non-combustible material, one-hour fire resistive construction on the underside, heavy timber construction or pressure-treated exterior fire-retardant wood. When such appendages and projections are attached to exterior fire-resistive walls, they shall be constructed to maintain same fire-resistant standards as the exterior walls of the structure.
18. Deck Surfaces shall be constructed with one of the following materials:
  - Material that complies with the performance requirements of Section 709A.4 when tested in accordance with both ASTM E2632 and ASTM E2726, or
  - Ignition-resistant material that complies with the performance requirements of 704A.3 when tested in accordance with ASTM E84 or UL 723, or
  - Material that complies with the performance requirements of both SFM Standard 12-7A-4 and SFM Standard 12-7A-5, or
  - Exterior fire-retardant treated wood, or
  - Noncombustible material, or
  - Any material that complies with the performance requirements of SFM Standard 12-7A-4A when the attached exterior wall covering is also composed of noncombustible or ignition-resistant material.
19. Accessory structures attached to buildings with habitable spaces and projections shall be in accordance with the Building Code. When the attached structure is located and constructed so that the structure or any portion thereof projects over a descending slope surface greater than 10

percent, the area below the structure shall have all underfloor areas and exterior wall construction in accordance with Chapter 7A of the Building Code.

20. Exterior windows, skylights and exterior glazed door assemblies shall comply with one of the following requirements:

- Be constructed of multiplane glazing with a minimum of one tempered pane meeting the requirements of Section 2406 Safety Glazing, or
- Be constructed of glass block units, or
- Have a fire-resistance rating of not less than 20 minutes when tested according to NFPA 257, or
- Be tested to meet the performance requirements of SFM Standard 12-7A-2.

21. All eaves, fascia and soffits will be enclosed (boxed) with non-combustible materials. This shall apply to the entire perimeter of each structure. Eaves of heavy timber construction are not required to be enclosed as long as attic venting is not installed in the eaves. For the purposes of this section, heavy timber construction shall consist of a minimum of 4x6 rafter ties and 2x decking.

22. Detached accessory buildings that are less than 120 square feet in floor area and are located more than 30 feet but less than 50 feet from an applicable building shall be constructed of noncombustible materials or of ignition-resistant materials as described in Section 704A.2 of the California Building Code.

**Exception:** Accessory structures less than 120 square feet in floor area located at least 30 feet from a building containing a habitable space.

23. All side yard fence and gate assemblies (fences, gate and gate posts) when attached to the home shall be of non-combustible material. The first five feet of fences and other items attached to a structure shall be of non-combustible material.

24. Exterior garage doors shall resist the intrusion of embers from entering by preventing gaps between doors and door openings, at the bottom, sides, and tops of doors, from exceeding 1/8 inch. Gaps between doors and door openings shall be controlled by one of the methods listed in this section.

- Weather-stripping products made of materials that:
  - (a) have been tested for tensile strength in accordance with ASTM D638 (Standard Test Method for Tensile Properties of Plastics) after exposure to ASTM G155 (Standard Practice for Operating Xenon Arc Light Apparatus for Exposure of Non-Metallic Materials) for a period of 2,000 hours, where the maximum allowable difference in tensile strength values between exposed and non-exposed samples does not exceed 10%; and (b) exhibit a V-2 or better flammability rating when tested to UL 94, Standard for Tests for Flammability of Plastic Materials for Parts in Devices and Appliances.
- Door overlaps onto jambs and headers.
- Garage door jambs and headers covered with metal flashing.

25. Exterior doors shall comply with one of the following:

1. The exterior surface or cladding shall be of noncombustible material or,
2. The exterior surface or cladding shall be of ignition-resistant material or,

3. The exterior door shall be constructed of solid core wood that complies with the following requirements:
    - 3.1. Stiles and rails shall not be less than 1-3/8 inches thick.
    - 3.2. Panels shall not be less than 1-1/4 inches thick, except for the exterior perimeter of the panel that shall be permitted to taper to a tongue not less than 3/8 inch thick.
  4. The exterior door assembly shall have a fire-resistance rating of not less than 20 minutes when tested according to NFPA 252 or,
  5. The exterior surface or cladding shall be tested to meet the performance requirements of Section 707A.3.1 when tested in accordance with ASTM E2707 or,
  6. The exterior surface or cladding shall be tested to meet the performance requirements of SFM Standard 12-7A-1.
- 
26. Fire access tunnels shall have two hour rated walls consisting of two layers of 5/8" Type 'X' gypsum wallboard panels on each side of the studs. The EZ Taping Systems "Fire Tape" product or equivalent should be used as an alternative to convention joint tape when:
    1. Two or more layers of listed Type 'X' gypsum wallboard are applied vertically with joints staggered and joints of the face board are":
      - a. Tightly butted and taped with EZ Taping Systems "Fire Tape" or equivalent product or
      - b. Finished with joint compound of EZ Taping Systems "Fire Tape" or equivalent product if the gap between gypsum wallboard panels are visible at the joint.
    2. Two or more layers of USG "Sheetrock" Fire code C gypsum wallboard are applied (horizontally or vertically).
    3. Gypsum panels shall be attached with Type S drywall screws, placed 8" oc to vertical edges and 12" oc to top and bottom runners and intermediate studs.
    4. Fire Tape shall be nominal 2" wide and applied on the vertical joints at studs.

\*\* FAHJ – Fire Authority Having Jurisdiction  
SFM – State Fire Marshal  
NFPA – National Fire Protection Association

# APPENDIX ‘D’

## Literature References

For any reference below, the most current version of the document should be consulted.

1. California Code of Regulations, Title 14, section 1280; California Public Resources Codes sections 4201 through 4204
2. California Government Code, sections 51175 through 51189
3. City of Tracy, Engineering Design & Construction Standards. February 18, 2020. 116 pp.
4. 2022 Fire Code portion of the California Building Standards Code, including appendices to Chapters 1 & 4 and appendices B, F & H
5. National Fire Protection Association - NFPA 13R Standard for the Installation of Sprinkler Systems in Low-Rise Residential Occupancies, 2022 Edition.
6. National Fire Protection Association - NFPA 1140 Standard for Wildland Fire Protection. 117 pp., 2022 Edition.
7. Noreas, 2015a. Tracy Hills Project, General Biological Resources Assessment. September, 2015.
8. ICF International. 2011. Preserve Management Plan for the Tracy 580 Business Park Preserve. (ICF 05076.05.) October, Sacramento, CA. Prepared for the San Joaquin Council of Governments, Inc., Stockton, CA.
9. ICF 2021. *Management Plan for the Tracy Hills HCP CE Area*. March. Sacramento, CA. Prepared for Tracy Phase 2, LLC, Tracy Phase 3, LLC, Tracy Phase 4, LLC, Tracy, CA.
10. *The 2022 California Fire Code and Local Amendments*
11. *Chapter 7A- 2022 California Building Code*
12. *The California State and Local Responsibility Area Fire Hazard Severity Zone Map – Fire and Resource Assessment Program of CAL FIRE.*
13. California Residential Code 2022 Edition
14. City of Tracy, Ordinance 1274 adopting CA Fire, Building and related codes. Adopted on November 5, 2019.
15. City of Tracy, Ordinance 1273 adopting the Tracy Municipal Code relating to Landscaping requirements for Parking Areas. Adopted October 15, 2019.
16. City of Tracy, Ordinance 1302 Amending the Tracy Hills Specific Plan. Adopted November 10, 2019.

**TRACY HILLS II COMMUNITY ASSOCIATION  
ARCHITECTURAL GUIDELINES – FORMS**

**FORM A: NEW OWNER TIMELINE FORM**

This timeline will assist you in determining the dates you should be aware of for the first-time installation of landscape Improvements.

| <b>Deadline Date</b>                             | <b>Requirement</b>                                 |
|--------------------------------------------------|----------------------------------------------------|
| Deadline is six (6) months from close of escrow  | Submit plans for rear yard landscape improvements. |
| Deadline is nine (9) months from close of escrow | Complete rear yard landscape improvements.         |

**Application Submittal / Review Process**

|                                                                                                                                                                                                                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Owner</b></p> <p>Completes and Forwards:</p> <ol style="list-style-type: none"> <li>1. Design Review Application (1 copy)</li> <li>2. Color Photos of Area</li> <li>3. Color Photo of Front Yard Showing Entire House &amp; Yard</li> </ol> |
| <p><b>Association</b></p> <p>Receives application for completeness and forwards all applications to the Architectural Review Committee</p>                                                                                                        |
| <p><b>Architectural Review Committee</b></p> <p>The Architectural Review Committee reviews</p>                                                                                                                                                    |
| <p><b>Architectural Review Committee</b></p> <p>Has 45 days to review and approve/deny plans</p>                                                                                                                                                  |

| <b>Approve Plans</b>                                                                                         | <b>Denied Plans</b>                                                                                                                 |
|--------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Returned to Owner</b></p> <p>ARC Approved Plan Letter noting any conditions that must be followed.</p> | <p><b>Returned to Owner</b></p> <p>ARC Letter listing why specific items are not approved and what should be changed to comply.</p> |

**TRACY HILLS II COMMUNITY ASSOCIATION  
ARCHITECTURAL GUIDELINES – FORMS**

**FORM B: ARCHITECTURAL REVIEW APPLICATION CHECKLIST**

This checklist shall be completed by the Owner and be attached to the Design Review Request Form. Failure to complete and include this checklist will cause the submittal application to be deemed an incomplete submittal. All incomplete submittals will be returned without review by the Architectural Review Committee.

**SUBMITTAL FEES:** \$175 Minor Review Fee or \$200 Major Review Fee  
\$250 Refundable Security Deposit

A description of what must be included on each of the forms required below may be found in the Design Guidelines. **Please check all that apply:**

**PART I - ALL IMPROVEMENTS:** This part lists the submittal requirements for **ALL IMPROVEMENTS** and must be included with **ANY AND ALL** submittal requests.

- ☐ Completed Design Review Application Checklist (Form B)
- ☐ Completed Design Review Request Form (Form C)
- ☐ Plot Plan
- ☐ A signed copy of the Water Quality Management Best Management Practice Guidelines (Form G)

**PART II – LANDSCAPE AND HARDSCAPE IMPROVEMENTS:** This part must be completed for improvements involving any landscaping (grading, drainage, hardscape, irrigation, plumbing and lighting).

- ☐ Site Color Photos (Front Yard, Side Yards, Back Yard)
- ☐ Landscape Construction Plan and Details
- ☐ Grading and Drainage Plan
- ☐ Irrigation Plan
- ☐ Planting Plan
- ☐ Landscape Lighting Plan
- ☐ Site Color Photos
- ☐ Exterior Elevations/Building Sections
- ☐ Floor Plan (must be included on a Plot Plan)
- ☐ Roof Plan
- ☐ Finish and Materials Schedule

**PLEASE NOTE THAT THIS PROCESS CAN TAKE ABOUT 30 DAYS.  
ANY CHANGES MADE AFTER SUBMITTAL MAY DELAY THE PROCESS.**

**TRACY HILLS II COMMUNITY ASSOCIATION  
ARCHITECTURAL GUIDELINES – FORMS**

**FORM B: ARCHITECTURAL REVIEW APPLICATION CHECKLIST (Continued)**

I (WE) UNDERSTAND AND AGREE THAT:

No work on any improvement described on my Design Review Request Form shall commence until written approval of the Architectural Review Committee has been received. Proposed improvements may require a permit from the City Building Department or other government agencies and Owner will obtain all required permits before commencing any work. No work will change the existing drainage patterns. Any changes in the existing drainage pattern may result in substantial damage to adjacent properties, for which Owner will be held responsible. The conditions and restrictions noted in the Design Guidelines and Declaration shall apply to any approval.

Owner assumes the responsibility for any work, including conformity of completed improvements to the Plans and Specifications as approved by the Board or the Architectural Review Committee and the satisfaction of any time limitations for their completion as may be specified in conjunction with such approval under the above proposed modifications/improvements.

Further, Owner assumes full responsibility for any work and that any contractor accomplishes which may, in the future, adversely affect adjacent properties and/or Association Property. Owner will assume responsibility for all future maintenance of the modifications and/or improvements. Owner shall complete all improvements within six (6) months of approval, other than the initial landscaping for the entire rear lot, which must be completed within nine (9) months of Close of Escrow.

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

**Do not write below this line (For Board/Architectural Review Committee use only)**

Form B Part I Received ☐

Form B Part II Received ☐

Form B Part III Received ☐

Form B Signed ☐

Form C Completed ☐

Accepted as a Complete Package Date: \_\_\_\_\_

Accepted by Association Staff Name: \_\_\_\_\_

**TRACY HILLS II COMMUNITY ASSOCIATION  
ARCHITECTURAL GUIDELINES – FORMS**

**FORM C: ARCHITECTURAL REVIEW REQUEST FORM**

Name: \_\_\_\_\_ Date: \_\_\_\_\_

Property

Address: \_\_\_\_\_

Mailing Address (if different from above): \_\_\_\_\_

Phone: \_\_\_\_\_ Email: \_\_\_\_\_

Type of Work:

(Please Check one or more)

Architectural ☐ Landscape ☐ Hardscape ☐ Water Feature ☐ Patio Cover ☐ Lighting ☐

Solar Equipment ☐ Other ☐ \_\_\_\_\_

**Mail or deliver to:**

**Tracy Hills II Community Association**  
c/o Seabreeze Management Company  
5000 Hopyard Road, Suite 310  
Pleasanton, CA 94588  
Attn: Alaina Martinez  
Phone: (925) 268-0242  
Email: [Alaina.Martinez@seabreezemgmt.com](mailto:Alaina.Martinez@seabreezemgmt.com)

**Do not write below this line (For Board/Architectural Review Committee use only)**

Architectural Review Committee's response is subject to notes on plan and Architectural Review Committee approval letter.

- ☐ APPROVAL
- ☐ APPROVED WITH CONDITIONS NOTED ON CHECKLIST
- ☐ DISAPPROVED WITH COMMENTS NOTED ON CHECKLIST
- ☐ RESUBMIT ITEMS LISTED:

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- ☐ RESUBMIT WITH INCOMPLETE ITEMS LISTED:

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**TRACY HILLS II COMMUNITY ASSOCIATION  
ARCHITECTURAL GUIDELINES – FORMS**

**FORM C: DESIGN REVIEW REQUEST FORM (Continued)**

The Architectural Review Committee has reviewed the proposed improvements to determine whether they are aesthetically compatible with the architectural scheme of the Community and consistent with the Declaration and the Design Guidelines. These plans have not been reviewed for construction, safety, function, views, plant material survivability, privacy, or any and all engineering requirements including, but not limited to, soils, geotechnical, drainage, structural, mechanical or electrical. The Owner understands that he/she must comply with the Design Guidelines and the Declaration. The Architectural Review Committee has not considered whether, and its approval does not indicate that the proposed improvements are in compliance with applicable laws, ordinances, regulations and codes. The Owner must obtain all necessary building permits for applicable structures from the applicable public agency. Please be advised that the plans and specifications are not approved for (a) engineering design, (b) compliance with zoning and building codes, and other applicable statutes, ordinances or governmental rules or regulations, (c) compliance with the requirements of any public utility, (d) consistency with easements or other matters of record, or (e) preservation of any view. By approving such plans and specifications, the Architectural Review Committee, the members thereof, the Association, the Board, Declarant, and their respective agents, employees and consultants do not assume any liability or responsibility relating thereto (including, without limitation, any defect in any Improvements constructed from such plans and specifications, or for any obstruction or impairment of view caused or created as the result of any Improvements approved by the Architectural Review Committee).

Sincerely,

TRACY HILLS II COMMUNITY ASSOCIATION

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Print Name and Title

\_\_\_\_\_  
Date

**TRACY HILLS II COMMUNITY ASSOCIATION  
ARCHITECTURAL GUIDELINES – FORMS**

**FORM G: WATER QUALITY MANAGEMENT BEST MANAGEMENT PRACTICE GUIDELINES**

In order to mitigate the potential water pollution concerns associated with human habitation, the California Water Quality Management Board has set strict guidelines for the Community regarding the effects of runoff and storm water pollution.

One of the most sensitive and carefully monitored phases of the Community is the construction period. The requirements are not merely restricted to the development and construction managed by the Community's builder – construction by Owners will also be scrutinized and subject to very severe fines.

To be certain that you understand and accept responsibility for any violations associated with your proposed Improvements; each Owner is required to review this section. It must be signed and returned by you as a required part of your application submitted to the ARC. You must also make a copy for and provide this document to any contractors or consultants whom you employ to ensure their compliance with these requirements, and you should make them responsible for any fines which you may incur as a result of their violation of same. The Association will monitor construction activities as well as check on Best Management Practices; however, the Owner will be solely responsible for any fines incurred by the Association as a result of infractions initiated at Owner's Residence. The Association will take whatever legal action is necessary to ensure compliance and collect for infractions charged to the Association as a result of Owner's, or Owner's contractor's or consultant's, acts or negligence or failure to comply with these requirements.

The following requirements are not meant to be all-inclusive of Regional Water Quality Control Board requirements or of any other agency. It should be understood that any applicable agency's rules and requirements may/will be applied to the activities of any Owner and may supersede these Guidelines. All resulting fines imposed on the Association, or the Owner as a result of any violation of Applicable Laws will be the responsibility of the Owner and the Owner shall indemnify, defend and hold harmless the Association from any such fines or penalties incurred as a result of any violation by Applicable Laws, including without limitation any guidelines or restrictions provided by the California Water Quality Management Board.

1. No construction materials, chemicals or substances may be disposed of or poured into the area drains, street and/or gutter.
2. Area drains should be shielded and/or covered to ensure that construction by-products and/or chemicals are not washed into them.
3. No tools or equipment may be rinsed off on the property in a manner that causes the water to reach the area drains, street and/or gutter.
4. No unprotected stockpiling of sand, gravel, dirt, or other materials in the street is permitted.
5. Any sand, gravel, dirt or other materials piled/stored on the driveway or Owner's Residential Lot must be effectively covered to prevent rain or irrigation water runoff from carrying material residue into the area drains, street and/or gutter.
6. In the event of a runoff event or spill, sandbags must be strategically placed to ensure that no substance makes its way into the area drains and/or storm drains.
7. Hoses and/or irrigation should not be allowed to run in a manner that causes water or any substance to wash into the area drains, street and/or gutter.
8. Containers for hazardous materials such as paint, concrete, chemicals, etc. must be in good condition and not allowed to spill or leak onto the ground or be washed into the area drains, street and/or gutters.
9. No products or chemicals should be buried for disposal.
10. Trash and debris should be properly contained and disposed of off-site.

**TRACY HILLS II COMMUNITY ASSOCIATION  
ARCHITECTURAL GUIDELINES – FORMS**

**FORM G: WATER QUALITY MANAGEMENT BEST MANAGEMENT PRACTICE GUIDELINES (Continued)**

11. No vehicles or equipment should be allowed to leak oil anywhere.
12. No portable restroom facility may be allowed in the street and those stored on the Owner's Residential Lot must be in proper working order so that no waste leaks.
13. Pesticides and/or fertilizers must be monitored and properly used and stored.  
No irrigation runoff should reach the street and/or gutter, as such runoff may carry chemicals from pesticides, fertilizers, etc., into the storm drain.

**THE BASIC GOAL IS TWO-FOLD:**

1. No materials, other than rainwater, should be allowed to flow into the area drains and/or storm drains.
2. No chemicals or products should be allowed to contaminate the groundwater supply.

In addition to the foregoing, you have previously been provided with a set of educational materials attached to the Association Rules regarding best practices associated with water quality and associated issues. You should carefully review these materials and provide them to any contractors or consultants who will be performing work on your Residential Lot or who will be entering the Community at your request. As referenced above, you are responsible for any violations of Applicable Laws by such individuals or entities.

**ACCEPTANCE AND ACKNOWLEDGMENT**

I am the homeowner of record for the residence noted below. I have read and understand the Water Quality Management Best Management Practice Guidelines and agree to inform my contractors and consultants of same and to diligently pursue their compliance with such guidelines. I also understand my liability in the event of an infraction resulting in a fine against me and/or the Association. I understand that I will be held personally responsible for any fines and/or fees levied against me and/or the Association as a result of any infractions caused by me, my contractors or my consultants in connection with the construction, maintenance, or any other activities on my Residential Lot.

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

**TRACY HILLS II COMMUNITY ASSOCIATION  
ARCHITECTURAL GUIDELINES – FORMS**

**FORM E: NOTICE OF COMPLETION**

**Owner shall complete the following:**

*I hereby certify that all work has been completed and done in substantial compliance with the approved Plans and Specifications and the Design Guidelines.*

Name: \_\_\_\_\_ Date: \_\_\_\_\_

Property Address: \_\_\_\_\_ Mailing Address (if different): \_\_\_\_\_

Phone: \_\_\_\_\_ Email: \_\_\_\_\_

Owner Signature: \_\_\_\_\_ Owner Signature: \_\_\_\_\_

Type of Work:

(Please Check one or more)

Architectural ☐ Landscape ☐ Hardscape ☐ Water Feature ☐ Patio Cover ☐ Lighting ☐

Solar Equipment ☐ Other ☐ \_\_\_\_\_

**Submit color photographs of all installed improvements including retaining wall systems, drain inlets, light fixtures, equipment areas, pools, patio covers, backs of fireplaces, equipment areas and trees/plantings.**

Do not write below this line (For Board/Architectural Review Committee use only)

**The Architectural Review Committee conducted the Final Inspection by:**

☐ Reviewing the Owner submitted photographs ☐ Conducting a site visit

**The Architectural Review Committee recommends the following:**

- ☐ APPROVED: Final inspection is complete, and the Improvements are in substantial conformance with the approved plans and the Design Guidelines.
- ☐ DISAPPROVED: The Improvements are **not** in substantial conformance with the approved plans, specifications and/or Design Guidelines. The Applicant must complete/modify/remove the items noted below. After all items have been corrected, re-submit to the ARC for final approval.

\_\_\_\_\_  
ARC Authorized Representative Signature

\_\_\_\_\_  
Date

**Improvements to be removed or modified by Owner:**

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**If no Improvements must be removed or modified, insert "None."**

## TRACY HILLS II COMMUNITY ASSOCIATION ARCHITECTURAL GUIDELINES – FORMS

## FORM F: APPEAL REQUEST

Name: \_\_\_\_\_ Date: \_\_\_\_\_

Property Address: \_\_\_\_\_ Mailing Address (if different): \_\_\_\_\_

Phone: \_\_\_\_\_ Email: \_\_\_\_\_

Owner Signature: \_\_\_\_\_ Owner Signature: \_\_\_\_\_

**Describe appeal request:**

This image shows a single sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.

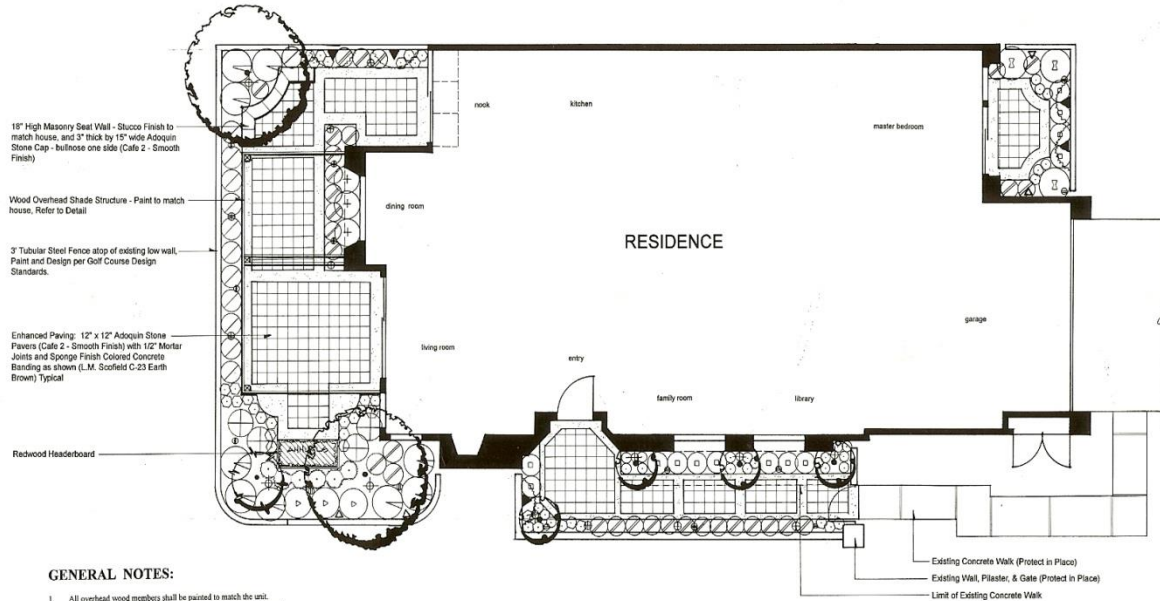
# Exhibit A: Sample Landscape Plan Submittal Document

## FINISH GRADING and DRAINAGE NOTE:

1. All planting areas shall have positive surface drainage of 2% minimum.
2. All finish grade work shall be maintained away from building walls.
3. All paved surfaces shall have positive surface drainage at 1% minimum to planting areas which in turn shall drain to the street in front of the house by means of sheet flow to established flow lines and/or to landscape area drains connected to the existing drainage system of PVC or ADS drain lines, as acceptable to the governing agency.

## IRRIGATION NOTE:

The project landscape planting areas shall receive the following irrigation system. Low precipitation flat shrub and turf spray system automatically programmed with an electric controller. System components will include a gate valve at the point of connection, back flow device, electrically operated remote control valves, and flat spray irrigation nozzles on 12" pop-up bodies in shrub beds supplied by PVC schedule 40 mainline and lateral lines sized according to hydraulic calculations. Circuits shall be determined by solar evapotranspiration and planting area. 100% head to head coverage shall be achieved throughout the system.



## GENERAL NOTES:

1. All overhead wood members shall be painted to match the unit.
2. Additional area drains shall be provided at all roof drain down spout locations.
3. Owner shall approve location of irrigation controller and valves.
4. Owner shall approve lighting fixtures and location of lighting timer.
5. Owner shall approve concrete finish and color.
6. Contractor shall review all existing site conditions prior to submitting bid and prior to commencing installation. Any discrepancies shall be brought to the immediate attention of the Owner.
7. Contractor shall verify location of all utilities prior to construction and shall be held liable for all damages incurred.
8. 1/2" Master Joints are set down. Contractor shall make construction layout adjustments. Refer all questions to the Landscape Architect.

## PRELIMINARY PLAN LIMITATIONS

1. This document is a preliminary plan and is not a contract.
2. The plan is not a final design and is not a final plan.
3. The plan is not a final design and is not a final plan.
4. The plan is not a final design and is not a final plan.
5. The plan is not a final design and is not a final plan.

## LEGEND

### TREES

- Pyrus Kawakami - (2) 24" Box Evergreen Pear
- Magnolia Illiflora 'Nigra' - 1 24" Box Lily Magnolia

### PATIO TREE

- Abutilon 'Rousseau' - (4) 15 Gal. Flowering Maple

### ESPALEIR

- Camellia s. 'Hana Jiman' - (6) 15 Gal.

### VINES

- Clematis armandi - (4) 5 Gal.

### SHRUBS

- Azalea 'Redwing' - (13) 5 Gal.
- Camellia s. 'Jean May' - (3) 5 Gal.
- Camellia s. 'Jordana Pride' - (5) 15 Gal.
- Dietes vegeta - (9) 5 Gal.
- Eucalyptus s. 'Newport Dwarf' - (12) 5 Gal.
- Hedge Laurel - (3) 5 Gal.
- Rosa hybrid Tea - (4) 5 Gal.

Owner to Select

### SUB SHRUBS

- Sunlover Supertunia - (28) 1 Gal.
- Hemerocallis hybrida - (8) 1 Gal.
- Agapanthus s. 'Peter Pan' - (35) 1 Gal.
- Isoetes sempervirens - (25) 1 Gal.

### GROUNDCOVERS

- Master Bedroom & Entry: Helios selvestris (Baby Tears)
- Backyard: Polygonum capitatum (Pink Clover)

### SITE UTILITIES

- Low Voltage Up-Light
- Low Voltage 'Tulip' Walk Light
- 3" Shrub Area Drain

Scale: 1/4"=1'-0"

Note: This exhibit is intended to illustrate graphic and information requirements only. Plan does not reflect a product in the Community.